
CITY OF GALLATIN COUNCIL MEETING

March 16, 2021

6:00 pm

Electronic Meeting

Pursuant to Governor Lee's Executive Orders No. 16 and subsequent orders, and the need to limit the community spread of COVID-19, the March 16, 2021 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Join the Zoom Meeting at <https://us02web.zoom.us/j/86330202276>, dial +1 470 381 2552 or +1 470 250 9358, and enter Webinar ID: 863 3020 2276.

- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Fann – Vice Mayor Fennell– George – Hayes – Love – Overton
- Approval of Minutes: February 16, 2021 City Council Electronic Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Public Hearing Resolution No. R21Ø2-15** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the Annexation of a 59.10 +/- acre parcel (Tax Map 114, Parcel 016.03), located north of Wildcat Run and East of Douglas Lane, and providing for an effective date. **(Councilman Overton)**
2. **Public Hearing Resolution No. R21Ø2-16** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 59.10 +/- acre parcel (Tax Map 114, Parcel 016.03), located north of Wildcat Run and east of Douglas Lane, into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date (ANNX-2020-0016). **(Councilman Overton)**
3. **Public Hearing Ordinance No. O21Ø2-7** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 59.10 +/- acre parcel from the RR-Rural Residential (County) District to the MU-Mixed Use District with a Preliminary Master Development Plan for Twin Eagles Phase 15, located north of Wildcat Run and east of Douglas Lane; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Overton)**
4. **Second Reading Ordinance No. O21Ø2-5** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 16.78 +/- acre portion of a parcel from the R20-Low Density Residential District to the PGC-Planned General Commercial District, rezoning a 2.05 +/- acre portion of a lot from the MU-Mixed Use District to the PGC-Planned General Commercial District, rezoning a 3.80 +/- acre portion of a parcel from the R20-Low Density Residential District to the MRO-Multiple Residential and Office District, and rezoning a 3.04 +/- acre portion of a lot from the MU-Mixed Use District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for The Goat Farm totaling 25.67 +/- acres, located south of Nashville Pike and east of Shutes Lane; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Hayes)**
5. **Resolution No. R21Ø2-13** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the annexation of three (3) parcels, totaling 655.44 +/- acres (Tax Map 113 Parcels 001.00, 002.00, & 045.00), located north of Red River Road and east of Highway 109, and providing for an effective date. **(Councilman Alexander)**

6. **Resolution No. R21Ø2-14** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing a three (3) parcels, totaling 655.44 +/- acres (Tax Map 113 Parcels 001.00, 002.00, & 045.00), located north of Red River Road and east of Highway 109, into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Alexander)**
7. **Second Reading Ordinance No. O21Ø2-6** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning three parcels, totaling 655.44 +/- acres, from the RR-Rural Residential (County) District to the R-8 (PRD) – Medium Density Residential (Planned Residential Development) District (435.6 +/- acres), from the Rural Residential (County) District to the MU-Mixed Use District (132.92 +/- acres), from the RR-Rural Residential (County) District to the PBP-Planned Business Park District (86.92 +/- acres) with a Preliminary Master Development Plan for the Bowles Property, located north of Red River Road and east of Highway 109; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Alexander)**
8. **Resolution No. R21Ø2-17** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the annexation of a 31.378 +/- acre parcel (Tax Map 135, Parcel 032.01), located west of Woods Ferry Road and south of Nichols Lane at 1460 Woods Ferry Road, and providing for an effective date. **(Councilman Overton)**
9. **Resolution No. R21Ø2-18** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 31.378 +/- acre parcel (Tax Map 135, Parcel 032.01), located west of Woods Ferry Road and south of Nichols Lane at 1460 Woods Ferry Road, into the City of Gallatin,; authorizing the annexed property to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Overton)**
10. **Second Reading Ordinance No. O21Ø2-8** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning two (2) parcels totaling 36.598 +/- acres from the RR-Rural Residential (County) and R40-Low Density Residential (County) and R40-Low Density Residential Districts to the R8 (PRD)–Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Woods Crossing, located west of Woods Ferry Road and south of Nichols Lane at 1460 Woods Ferry Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date (Zone-2020-0018). **(Councilman Overton)**
11. **Second Reading Ordinance No. O21Ø2-11** Ordinance appropriating federal grant to Police Department for FY20 Justice Mental Health Collaboration Program **(Councilwoman Love)**
12. **Second Reading Ordinance No. O21Ø2-12** Ordinance appropriating federal grant to Police Department for FY20 Comprehensive Opioid, Stimulant, and Substance Abuse Site-Based Program (COSSAP) **(Councilwoman Love)**
13. **Second Reading Ordinance No. O21Ø2-13** Ordinance appropriating \$255,900 for addition to Fire Station #3 for EMS quarters and vehicle **(Councilman Fann)**
14. **Second Reading Ordinance No. O21Ø2-14** Ordinance appropriating \$20,188.23 from revenue received from insurance for damage to Fire Station #3 **(Councilman Alexander)**
15. **Second Reading Ordinance No. O21Ø2-15** An ordinance of the City of Gallatin, Sumner County, Tennessee, amending Gallatin Municipal Code, Chapter 2, Article III, Division 3, Planning Commission, Section 2-151, Creation and Membership and Section 2-153, Additional Powers **(Councilwoman George)**

16. **First Reading Ordinance No. O21Ø3-16** An ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Winston Place, on a 19.84 +/- acre parcel (Tax Map 114, Parcel 046.02), located east of Highway 109 and south of Red River Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Overton)**
17. **First Reading Ordinance No. O21Ø3-17** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 35.59 +/- acres, consisting of 26.16 +/- acres from the R15-Medium Density Residential District to the R-10 (PRD) – Medium Density Planned Residential Development District and 9.43 +/- acres from the R15-Medium Density Residential District to the PNC-Planned Neighborhood Commercial District with a Preliminary Master Development Plan for the Harsh Property, located north of Cairo Road and south of Hartsville Pike; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilwoman Love)**
18. **First Reading Ordinance No. O21Ø3-18** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and an adjacent 2.04 +/- acre segment of abandoned CSX railroad right-of-way from the RR-Rural Residential (County) District to R-8 PRD – Medium Density Residential Planned Residential Development District with a Preliminary Master Development Plan for Bledsoe Springs and zoning a 1.06 +/- acre of abandoned CSX railroad from RR-Rural Residential (County) District to IR-Industrial Restrictive District, located north of Hartsville Pike and east of Airport Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Love)**
19. **First Reading Ordinance No. O21Ø3-19** Ordinance appropriating \$53,355.68 from Miracle Park Donations Revenue Fund to Miracle Park Expense Fund **(Vice Mayor Fennell)**
20. **Resolution No. R21Ø3-25** Resolution accepting public improvements by the City of Gallatin, Tennessee Revere at Hidden Creek **(Councilman Hayes)**
21. **Resolution No. R21Ø3-26** Resolution authorizing the Mayor to sign contract with Scotty's Contracting for Phase I of the Police/Fire Training Facility **(Councilman Fann)**
22. **Appointment of Interim Fire Chief** **(Paige Brown, Mayor)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

The City of Gallatin City Council Electronic Meeting

Tuesday, February 16, 2021

Mayor Paige Brown called the meeting to order at 6:04 P.M.

Pursuant to Tennessee Governor Bill Lee's Executive Orders #16 and subsequent orders, and the need to limit the community spread of COVID-19, the February 16, 2021 Gallatin City Council Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meeting were available on the City's website.

Vice Mayor Fennell made motion to allow the meeting electronically; Councilwoman Love seconded.

Mayor Brown requested a roll call vote to allow the meeting electronically and a roll call of those present.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Shawn Fennell	Yes/Present
Councilman John D. Alexander	Did Not Vote (Technical Difficulties)
Councilman Steve Fann	Yes/Present
Councilwoman Eileen George	Yes/Present
Councilman Craig Hayes	Yes/Present
Councilwoman Lynda Love	Yes/Present
Councilman Jimmy Overton	Did Not Vote (Technical Difficulties)

Motion passed with 5 ayes and 0 nays.

City Engineer Nick Tuttle led the opening prayer.

Department Heads and Others Present:

Bill McCord, City Planner	Jeff Hentschel, Communications Director
Chuck Stuart, Building Official	Lori Smiley, I.T. Director
Connie Flood, H.R. Director	Nick Tuttle, City Engineer
Connie Kittrell, City Recorder	Rachel Nichols, Finance Director
David Brown, Parks & Rec. Director	Victor Williams, Fire Chief
David Kellogg, Public Utilities Director	Susan High-McAuley, City Attorney
Don Bandy, Police Chief	Zach Wilkinson, Public Works Superintendent
James Fenton, EDA Director	

Approval of Minutes

Mayor presented the February 2, 2021 City Council Minutes for approval.

Councilman Hayes made motion to approve; Vice Mayor Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Did Not Vote (Technical Difficulties)
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 6 ayes and 0 nays.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Susan Chaffin Owens of 1460 Woods Ferry Road spoke in favor of Woods Crossing Development.

With no one else wishing to speak public recognition was closed.

Mayor's Comments

- Mayor thanked everyone for their hard work during the inclement weather.
- Mayor announced this was Public Works Superintendent Zach Wilkinson's official last day. Mayor stated Mr. Wilkinson was an asset to the city and did a tremendous job.

Mr. Wilkinson thanked council for allowing him the opportunity to work for the city and stated he was thankful for his time here.

Agenda

1. Ordinance #O2101-2 - Second Reading

Councilwoman Love presented this ordinance appropriating funds from 2021 General Obligation Bond Issue in the amount of \$11,112,853.25 and \$700,000 from General Fund for capital projects.

Councilwoman Love made motion to approve; Vice Mayor Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

2. Ordinance #O2102-3 - Second Reading

Councilman Alexander presented this ordinance appropriating \$127,769 from Project Woolhawk for Building Codes Department expenses.

Councilman Alexander made motion to approve; Councilman Fann seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

3. Ordinance #O2102-4 – Second Reading

Councilman Fann presented this ordinance amending Gallatin Municipal Code Chapter 5, Buildings and Building Regulations, Article XIV, Fences.

Councilman Fann made motion to approve; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

4. Ordinance #O2102-5 – First Reading

Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 16.78 (+/-) acre portion of a parcel from the R20-Low Density Residential District to the PGC-Planned General Commercial District, rezoning a 2.05 (+/-) acre portion of a lot from the MU-Mixed Use District to the PGC-Planned General Commercial District, rezoning a 3.80 (+/-) acre portion of a parcel from the R20-Low Density Residential District to the MRO-Multiple Residential and Office District, and rezoning a 3.04 (+/-) acre portion of a lot from the MU-Mixed Use District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for the Goat Farm totaling 25.67 (+/-) acres, located south of Nashville Pike and east of Shutes Lane; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Hayes made motion to approve; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

5. Ordinance #O2102-6 - First Reading

Councilman Alexander presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning three parcels, totaling 655.44 (+/-) acres, from the RR-Rural Residential (County) District to the R-8 (PRD) - Medium Density Residential (Planned Residential Development) District (435.6 (+/-) acres), from the Rural Residential (County) District to the MU-Mixed Use District (132.92 (+/-) acres), from the RR-Rural Residential (County) District to the PBP-Planned Business Park District (86.92 (+/-) acres) with a Preliminary Master Development Plan for the Bowles Property, located north of Red River Road and east of Highway 109; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Alexander made motion to approve; Councilman Overton seconded.

Council discussed.

Vice Mayor Fennell made motion to amend to take out 900 rentals and add 750 townhomes.

Motion failed with lack of second.

Council suspended the rules and allowed Development Representative John Hauss to speak about the development.

Council continued discussion.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	No
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	No
Councilwoman Love	No
Councilman Overton	Yes

Motion passed with 4 ayes and 3 nays.

6. Ordinance #O2102-8 – First Reading

Councilman Overton presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning two (2) parcels totaling 36.598 (+/-) acres from the RR-Rural Residential (County) and R40-Low Density Residential (County) and R40-Low Density Residential Districts to the R8 (PRD)-Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Woods Crossing, located west of Woods Ferry Road and south of Nichols Lane at 1460 Woods Ferry Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date (Zone-2020-0018).

Councilman Overton made motion to approve; Councilman Alexander seconded.

Council discussed.

Council suspended the rules and allowed Development Representative Hillary Bonham to speak.

Dewey Construction Owner Michael Dewey spoke about Stormwater reduction runoff.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

7. Ordinance #O2102-9 – First Reading

Vice Mayor Fennell presented this ordinance appropriating funds for Civic Center Pool repairs change order.

Vice Mayor Fennell made motion to approve; Councilwoman Love seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

8. Resolution #R2102-12

Councilman Hayes presented this resolution accepting public improvements by the City of Gallatin, Tennessee Foxland, Phase 6, Section 2.

Councilman Hayes made motion to approve; Councilwoman George seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

9. Resolution #R2102-19

Councilwoman George presented this resolution authorizing the City of Gallatin to participate in the Public Entity Partners Property Conservation Matching Grant Program.

Councilwoman George made motion to approve; Councilman Overton seconded.

City Attorney Susan High-McAuley explained the resolution.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

10. Resolution #R2102-20

Councilwoman Love presented this resolution authorizing the Mayor to sign a contract with Charles Deweese Construction for the widening and repaving of Airport Road from Gregory Drive to Hartsville Pike.

Councilwoman Love made motion to approve; Vice Mayor Fennell seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

11. Resolution #R2102-21

Councilman Fann presented this resolution appointing Lynda Love and Eileen George to the Rose Mont Board

Councilman Fann made motion to approve; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Fennell	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilwoman George	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Other Business

Mayor opened other business.

- Councilman Alexander asked City Engineer Nick Tuttle the cost for sidewalks by Howard School.

Mr. Tuttle stated this was on the sidewalk project list.

With no one else wishing to speak other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor opened public recognition on non-agenda-related items.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Rene Saunders of 2092 Rodman Boulevard asked what the city was doing about the homeless problem.

Mayor asked Ms. Saunders to share the information she has with her.
Mayor added that the Gallatin Police Department has been hard at work making sure all are taken care of during this weather.

Councilman Alexander asked City Attorney Susan High-McAuley to get information on places to use as a shelter.

Ms. High-McAuley stated there are multiple potential liabilities for the city and she would look into the process if council instructed.

Council discussed.

With no one else wishing to speak public recognition on non-agenda-related items was closed.

Adjourn

Councilman Overton made motion to adjourn; Councilman Alexander seconded.

Mayor adjourned the meeting at 7:39 P.M. without objection.

Mayor Paige Brown

City Recorder Connie Kittrell

RESOLUTION NO. R2102-15

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF A 59.10 +/- ACRE PARCEL (TAX MAP 114, PARCEL 016.03), LOCATED NORTH OF WILDCAT RUN AND EAST OF DOUGLAS LANE, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin received a petition by a property owner for the annexation of a 59.10 +/- acre portion of a parcel; and

WHEREAS, the area proposed for annexation to the City of Gallatin is substantially contiguous to the corporate limits to the City and within the City's Urban Growth Boundary; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to Tenn. Code Ann. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, reviewed and did not recommend approval of this Plan of Service, as contained in GMRPC Resolution 2020-144.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'
Legal Description – Tax Map Parcel 114//016.03, 59.10 +/- Acres

TWIN EAGLES PHASE 15

DESCRIPTION OF THE RANDELL JONES AND WIFE, BARBARA JONES PROPERTY:
59.10 Acres+/-

The property described herein is located in the 9th Civil District of Sumner County, Tennessee; situated on the east side of Douglas Lane, approximately 0.86 mile north of the intersection with Tennessee Highway 25 (Red River Road); in detail as follows:

Beginning at a point in the centerline of Douglas Lane; thence with said centerline, N 08°17'41" E a distance of 350.02'; thence leaving the centerline of Douglas Lane and with the southern line of Billy C. Duncan property, S 80°54'51" E a distance of 1213.34' to an iron rod; thence continuing with the Duncan property the following three calls: S 01°11'51" E a distance of 101.63' to a point; thence S 80°54'51" E a distance of 359.73' to an iron rod; thence N 06°05'32" E a distance of 814.66' to an iron rod at the northeast corner of the Duncan property; thence S 80°55'00" E a distance of 1067.05' with the southern line of the Donald W. Martin property to an iron rod; thence with the property line of Pamela K. and Carl D. Newby, S 43°24'24" E a distance of 16.64' to a point; thence S 07°11'25" W a distance of 2104.83' with the Newby line, Twin Eagles Phase 13, Section A and Twin Eagles Phase 10 to an iron rod; thence N 81°01'30" W a distance of 478.02' along the northern boundary of Twin Eagles Phase 14, Sections A and B Subdivisions to point in the northern boundary line of Twin Eagles Phase 14, Section B; thence with the remainder of the northern boundary of Twin Eagles Phase 14, Section B, the northern property line of Thelma J. Schiavone and a portion of the Piper property, N 80°49'57" W a distance of 337.95' to an iron rod at the southeast corner of the Billy and Janice Duncan property; thence with the easterly property line of the Duncan property N 07°11'25" E a distance of 816.35' to an iron rod at the northeast corner of the Duncan property; thence with the northern property line of the Duncan property, N 80°39'43" W a distance of 252.24' to an iron rod in the eastern property line of the Jerry and Barbara Kent property; thence continuing with the Kent line N 09°20'17" E a distance of 232.53' to an iron rod; thence with the northern line of the Kent property N 80°52'33" W a distance of 1599.52' to the point of beginning in Douglas Lane, having an area of 59.10 acres, more or less.

Tax Map Reference: Map 114 Parcel 16.03

EXHIBIT 'B'

PLAN OF SERVICE FOR TAX MAP 114, PARCEL 016.03 (ANNX-2020-0016) pursuant to Tenn. Code Annotated § 6-51-102(b)

A. Potable Water

Water service will be provided by Gallatin Public Utilities Department upon extension of water lines to the property by the property developer. Currently, city water lines extend to the south and east of the property boundaries. The property is now located within the service area of the White House Utilities District. Water service can be provided to accommodate the development by extending water lines through developer-funded and constructed water mains. The 171 homes proposed for the annexation property will generate an estimated flow of 772,989 gallons per month. The developer will be responsible for installing water lines throughout the site and for making any necessary improvements off site to ensure adequate water service levels.

B. Sanitary Sewer

The property is adjacent to a sanitary sewer line on Wildcat Run. Eight (8)-inch Gallatin Public Utility Department sanitary sewer main exists along Dottie Drive within Phase 14 and will be extended by the developer north into Phase 15. The developer will be required to make improvements to the lines and associated infrastructure. Upon submittal of construction plans, any forcemain or gravity flow lines shall be indicated on the drawings. These improvements will be constructed in existing or proposed rights-of-way and/or utility easements. The proposed development will generate approximately 25,419 gallons per day of effluent conveyed by sanitary sewer distribution, trunk lines, lift station, and treatment capacity to the WWTP. The existing trunk line eventually flows via gravity to a lift station located along the East Fork of Camp Creek near Nashville Pike. Sanitary sewer service can be made available to accommodate the development by extending sewer lines through developer-funded and -constructed sewer mains.

C. Street Construction and Maintenance

New Public roadways will be constructed by the developer within Twin Eagles Phase 15. Right-of-way dedication will be required along Douglas Lane. Once accepted, the City will maintain streets within the development.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Residents will also have access to city-operated Resource recovery programs and services.

E. Planning and Zoning Services

Upon annexation, the City of Gallatin will provide planning and zoning services, including zoning enforcement, to all of the 59.10 +/- acre annexed property.

F. Building Inspections and Code Enforcement Services

Upon annexation, building and code inspection services will be provided by the City of Gallatin.

G. Fire Protection

The Gallatin Fire Department will provide fire protection after the effective date of the annexation. Upon development of the properties, the developer will provide fire hydrants in the annexation area pursuant to NFPA Life Safety Standards as determined by the City's Senior Fire Inspector. Once accepted by the City, the fire hydrants will be maintained by the City of Gallatin. The GFD proposes the construction of Fire Station No. 7 in the vicinity of The Meadows development to serve growth occurring on the north side of town. This new station will require the proper number of assigned firefighters, apparatus, and equipment but will make it possible to maintain the current level of service for this development. The station will be developed in concert with the phasing of The Meadows development.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department. The Police Department indicated that additional police officers and departmental vehicles will be needed to provide service to this area.

I. Animal Control

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available to future residents of the property at the City's rates. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. In addition, the development plan includes open space tracts that may serve recreation needs. Common open space may be designated by the developer and the City to serve community recreation needs to meet future recreation level of service standards.

K. Street Lighting and Electric Service

The Cumberland Electric Membership Corporation (CEMC) currently services this area outside of Gallatin city limits. The Gallatin Department of Electricity will provide service upon development of the property. Existing infrastructure will support the proposed development. Electric service by GDE shall comply with service design requirements including, where required, placing service lines underground. Upon completion of any future street construction and acceptance by the City, street lighting will be extended into the annexed area as required by GDE.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate

limits. An existing gas line is located in the vicinity of the property. The Gallatin Public Utilities Department may authorize the extension of natural gas service from this existing line into the property upon development at developer expense. Upon authorization to extend gas lines by Gallatin Public Utilities, the City will maintain and monitor such lines.

M. School System

The City shall provide written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2). The School Board has been notified of the pending annexation and proposed development plan.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 23, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2102-15 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 59.10 +/- acres (Tax Map 114, Parcel 016.03), located north of Wildcat Run and east of Douglas Lane.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 59.10 +/- acres (Tax Map 114, Parcels 016.03) into the City of Gallatin; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission did not recommend approval of the annexation and plan of service (ANNX-2020-0016). The Planning Commission's primary reasoning was because of the increased traffic it will generate on Douglas Lane, which is a narrow country road. Twin Eagles needs another entrance for ingress/egress. Since there are no other suitable roads to the north or east, the Planning Commission did not approve Twin Eagles Phase 15 annexation.

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2102-16

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING A 59.10 +/- ACRE PARCEL (TAX MAP 114, PARCEL 016.03), LOCATED NORTH OF WILDCAT RUN AND EAST OF DOUGLAS LANE, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ANNX-2020-0016).

WHEREAS, the owner of the property of the affected area described in Exhibit 'A' submitted a petition to annex a 59.10 +/- acre parcel located adjacent to and substantially contiguous to the City of Gallatin, Tennessee, city limits and located in the City of Gallatin Urban Growth Boundary; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission by a majority vote did not recommend approval of GMRPC Resolution No. 2020-144 for the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2102-15.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following property as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize, and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 3.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory
Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description –Tax Map Parcel 114//016.03, 59.10 +/- Acres

TWIN EAGLES PHASE 15

DESCRIPTION OF THE RANDELL JONES AND WIFE, BARBARA JONES PROPERTY:
59.10 Acres+/-

The property described herein is located in the 9th Civil District of Sumner County, Tennessee; situated on the east side of Douglas Lane, approximately 0.86 mile north of the intersection with Tennessee Highway 25 (Red River Road); in detail as follows:

Beginning at a point in the centerline of Douglas Lane; thence with said centerline, N 08°17'41" E a distance of 350.02'; thence leaving the centerline of Douglas Lane and with the southern line of Billy C. Duncan property, S 80°54'51" E a distance of 1213.34' to an iron rod; thence continuing with the Duncan property the following three calls: S 01°11'51" E a distance of 101.63' to a point; thence S 80°54'51" E a distance of 359.73' to an iron rod; thence N 06°05'32" E a distance of 814.66' to an iron rod at the northeast corner of the Duncan property; thence S 80°55'00" E a distance of 1067.05' with the southern line of the Donald W. Martin property to an iron rod; thence with the property line of Pamela K. and Carl D. Newby, S 43°24'24" E a distance of 16.64' to a point; thence S 07°11'25" W a distance of 2104.83' with the Newby line, Twin Eagles Phase 13, Section A and Twin Eagles Phase 10 to an iron rod; thence N 81°01'30" W a distance of 478.02' along the northern boundary of Twin Eagles Phase 14, Sections A and B Subdivisions to point in the northern boundary line of Twin Eagles Phase 14, Section B; thence with the remainder of the northern boundary of Twin Eagles Phase 14, Section B, the northern property line of Thelma J. Schiavone and a portion of the Piper property, N 80°49'57" W a distance of 337.95' to an iron rod at the southeast corner of the Billy and Janice Duncan property; thence with the easterly property line of the Duncan property N 07°11'25" E a distance of 816.35' to an iron rod at the northeast corner of the Duncan property; thence with the northern property line of the Duncan property, N 80°39'43" W a distance of 252.24' to an iron rod in the eastern property line of the Jerry and Barbara Kent property; thence continuing with the Kent line N 09°20'17" E a distance of 232.53' to an iron rod; thence with the northern line of the Kent property N 80°52'33" W a distance of 1599.52' to the point of beginning in Douglas Lane, having an area of 59.10 acres, more or less.

Tax Map Reference: Map 114 Parcel 16.03

EXHIBIT 'B'



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 23, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2102-16 of the City of Gallatin, Sumner County, Tennessee, annexing 59.10 +/- acres (Tax Map 114, Parcel 016.03), located north of Wildcat Run and east of Douglas Lane.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 59.10 +/- acres (Tax Map 114, Parcel 016.03) into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission did not recommended approval of the annexation and plan of service (ANNX-2020-0016). The Planning Commission's primary reasoning was because of the increased traffic it will generate on Douglas Lane, which is a narrow country road. Twin Eagles needs another entrance for ingress/egress. Since there are no other suitable roads to the north or east, the Planning Commission did not approve Twin Eagles Phase 15 annexation.

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 59.10 +/- ACRE PARCEL FROM THE RR-RURAL RESIDENTIAL (COUNTY) DISTRICT TO THE MU-MIXED USE DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR TWIN EAGLES PHASE 15, LOCATED NORTH OF WILDCAT RUN AND EAST OF DOUGLAS LANE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the properties submitted a complete application to rezone 59.10 +/- acres with a Preliminary Master Development Plan for Twin Eagles Phase 15, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Emerging Character Area, and the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure, and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety, and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and did not recommend approval of the proposed rezoning with Preliminary Master Development Plan; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 59.10 +/- acre parcel from the RR-Rural Residential (County) District to the MU-Mixed Use District as described in Exhibit "A" and with a Preliminary Master Development Plan for Twin Eagles Phase 15 as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize, and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING: March 2, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Descriptions
Exhibit B: Description of PMDP with conditions

EXHIBIT 'A'

Legal Descriptions

RR (County) TO MU REZONING, TALLING 59.10 +/- ACRES

DESCRIPTION OF THE RANDELL JONES AND WIFE, BARBARA JONES PROPERTY:
Tax Map 114, Parcel 16.03, 59.10 Acres+/-

The property described herein is located in the 9th Civil District of Sumner County, Tennessee; situated on the east side of Douglas Lane, approximately 0.86 mile north of the intersection with Tennessee Highway 25 (Red River Road); in detail as follows:

Beginning at a point in the centerline of Douglas Lane; thence with said centerline, N 08°17'41" E a distance of 350.02'; thence leaving the centerline of Douglas Lane and with the southern line of Billy C. Duncan property, S 80°54'51" E a distance of 1213.34' to an iron rod; thence continuing with the Duncan property the following three calls: S 01°11'51" E a distance of 101.63' to a point; thence S 80°54'51" E a distance of 359.73' to an iron rod; thence N 06°05'32" E a distance of 814.66' to an iron rod at the northeast corner of the Duncan property; thence S 80°55'00" E a distance of 1067.05' with the southern line of the Donald W. Martin property to an iron rod; thence with the property line of Pamela K. and Carl D. Newby, S 43°24'24" E a distance of 16.64' to a point; thence S 07°11'25" W a distance of 2104.83' with the Newby line, Twin Eagles Phase 13, Section A and Twin Eagles Phase 10 to an iron rod; thence N 81°01'30" W a distance of 478.02' along the northern boundary of Twin Eagles Phase 14, Sections A and B Subdivisions to point in the northern boundary line of Twin Eagles Phase 14, Section B; thence with the remainder of the northern boundary of Twin Eagles Phase 14, Section B, the northern property line of Thelma J. Schiavone and a portion of the Piper property, N 80°49'57" W a distance of 337.95' to an iron rod at the southeast corner of the Billy and Janice Duncan property; thence with the easterly property line of the Duncan property N 07°11'25" E a distance of 816.35' to an iron rod at the northeast corner of the Duncan property; thence with the northern property line of the Duncan property, N 80°39'43" W a distance of 252.24' to an iron rod in the eastern property line of the Jerry and Barbara Kent property; thence continuing with the Kent line N 09°20'17" E a distance of 232.53' to an iron rod; thence with the northern line of the Kent property N 80°52'33" W a distance of 1599.52' to the point of beginning in Douglas Lane, having an area of 59.10 acres, more or less.

Tax Map Reference: Map 114 Parcel 16.03

EXHIBIT 'B'

The Preliminary Master Development Plan for Twin Eagles Phase 15 consists of a:

- Ten (10) sheet plan, prepared by GreenLID Design of Gallatin, TN, with project number 19.008G, dated of September 14, 2020,

with the following conditions:

1. Designate and construct Dottie Drive from Douglas Lane to Sparrow Lane and Sparrow Lane to the phase 1 west boundary to city street specifications as part of Phase 1. No certificate of occupancy shall be issued for phase 1 of Twin Eagles Phase 15 until the streets in phase 1 are paved and open to traffic and approved by the Engineering Division.
2. Remove all required bufferyards from private lots and place in common open space tracts.
3. Properly label all stormwater management areas and phases.
4. Label and properly indicate city plan number.
5. Submit a corrected digital copy (PDF & DWG) of the Preliminary Master Development Plan to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 23, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2102-7 of the City of Gallatin, Sumner County, Tennessee, rezoning a 59.10 +/- acre parcel (Tax Map 114, Parcel 016.03) from the RR–Rural Residential (County) District to the MU–Mixed Use District with a Preliminary Master Development Plan for Twin Eagles Phase 15.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 59.10 +/- acre parcel (Tax Map 114, Parcel 016.03) from the RR–Rural Residential (County) District to the MU–Mixed Use District with a Preliminary Master Development Plan for Twin Eagles Phase 15, located north of Wildcat Run and east of Douglas Lane; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission did not recommend approval of the rezoning and master development plan (ZONE-2020-0020). The Planning Commission's primary reasoning was because of the increased traffic it will generate on Douglas Lane, which is a narrow country road. Twin Eagles needs another entrance for ingress/egress. Since there are no other suitable roads to the north or east, the Planning Commission did not approve Twin Eagles Phase 15 annexation.

ATTACHMENT:

☐	Resolution
☒	Ordinance

☐	Correspondence
☐	Contract

☐	Bid Tabulation
☐	Other

Approved	☒
Rejected	☐
Deferred	☐

Notes:

ORDINANCE NO. 02102-5

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 16.78 +/- ACRE PORTION OF A PARCEL FROM THE R20-LOW DENSITY RESIDENTIAL DISTRICT TO THE PGC-PLANNED GENERAL COMMERCIAL DISTRICT, REZONING A 2.05 +/- ACRE PORTION OF A LOT FROM THE MU-MIXED USE DISTRICT TO THE PGC-PLANNED GENERAL COMMERCIAL DISTRICT, REZONING A 3.80 +/- ACRE PORTION OF A PARCEL FROM THE R20-LOW DENSITY RESIDENTIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT, AND REZONING A 3.04 +/- ACRE PORTION OF A LOT FROM THE MU-MIXED USE DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE GOAT FARM TOTALING 25.67 +/- ACRES, LOCATED SOUTH OF NASHVILLE PIKE AND EAST OF SHUTES LANE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone 25.67 +/- acres with a Preliminary Master Development Plan for The Goat Farm, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Commercial Corridor Community Character Area and the Gateway Corridor Overlay Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2021-007; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 16.78 +/- acre portion of a parcel from the R20-Low Density Residential District to the PGC-Planned General Commercial District, rezoning a 2.05 +/- acre portion of a lot from the MU-Mixed Use District to the PGC-Planned General Commercial District, rezoning a 3.80 +/- acre portion of a parcel from the R20-Low Density Residential District to the MRO-Multiple Residential and Office District, and rezoning a 3.04 +/- acre portion of a lot from the MU-Mixed Use district to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for The Goat Farm totaling 25.67 +/- acres as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: February 16, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

R-20 Low Density Residential to PGC-Planned General Commercial – 16.78 +/- Acres

BEGINNING on the southerly right-of-way of Highway 31-E (a.k.a. Nashville Pike, S.R. 6, Gallatin Road) at the Northeast corner of the subject parcel and the herein-described tract. Said beginning point also being the northwest corner of the Old Hickory Hockey, LLC property of record in Record Book 5201, Page 281 in the Registers Office of Sumner County, Tennessee;

Thence leaving said right-of-way, along the westerly line of said Old Hickory Hockey, LLC property for the following calls:

S 22°41'58" E a distance of 50.66';
S 19°41'21" E a distance of 133.43';
S 19°47'47" E a distance of 75.53';
S 20°38'16" E a distance of 12.98';

Thence, leaving said line and crossing the subject parcel for the following calls:

Along a 2,974.67' radius curve to the left, having an arc length of 3.83' and a chord bearing and distance of S 60°16'20" W, 3.83';
Along a 995.00' radius compound curve to the left, having an arc length of 186.91' and a chord bearing and distance of S 54°51'14" W, 186.64';
S 49°28'21" W, a distance of 26.90';
S 49°28'21" W, a distance of 119.92';
S 40°31'39" E, a distance of 5.00';
S 39°29'09" E, a distance of 55.01';
Along a 33.61' radius curve to the left, having an arc length of 32.63' and a chord bearing and distance of S 23°55'44" W, 31.37';
Along a 73.34' radius reverse curve to the right, having an arc length of 20.39' and a chord bearing and distance of S 04°04'27" W, 20.32';
Along a 33.59' radius reverse curve to the left, having an arc length of 32.44' and a chord bearing and distance of S 15°37'49" E, 31.20';
S 49°50'20" W, a distance of 60.01';
S 41°19'27" E, a distance of 261.78';
Along a 368.69' radius curve to the right, having an arc length of 108.67' and a chord bearing and distance of S 32°53'57" E, 108.27' to a point in the southerly line of the subject parcel;

Thence with said southerly line S 34°44'54" W, a distance of 753.89' to the easterly right-of-way of Shute Lane, 25 feet from the center line;

Thence along the easterly right-of-way of Shute Lane for the following calls:

N 52°46'41" W, a distance of 270.51';
N 10°58'03" E, a distance of 29.05';
Along a 904.93' radius curve to the right, having an arc length of 129.46' a chord bearing and distance of N 49°01'25" W, 129.35';
N 28°14'18" W, a distance of 153.05';
N 39°34'05" W, a distance of 152.74' to the intersection of the southerly right-of-way of Vietnam Veterans Boulevard (a.k.a. S.R. 386);

Thence with said southerly right-of-way along a 1,822.95' radius curve to the left, having an arc length of 260.56' and a chord bearing and distance of N 19°45'39" E, 260.34' to the southerly right-of-way of Highway 31-E;

Thence with said right-of-way of Highway 31-E along a 2,800.79' radius curve to the right, having an arc length of 1088.92' and a chord bearing and distance of N 45°37'52" E, 1082.08' to the POINT OF BEGINNING containing 16.78 acres, more or less.

Being a portion of the same property conveyed to Old Hickory Hockey, LLC of record in Record Book 5177, Page 37 (TRACT 1) in the Registers Office of Sumner County, Tennessee.

MU-Mixed Use to PGC-Planned General Commercial – 2.05 +/- Acres

BEGINNING on the southerly right-of-way of Highway 31-E (a.k.a. Nashville Pike, S.R. 6, Gallatin Road) at the Northeast corner of the subject parcel and the herein-described tract. Said beginning point also being the northwest corner of the James N. Hall, Trustee property of record in Record Book 4770, Page 149 in the Registers Office of Sumner County, Tennessee;

Thence leaving said right-of-way, along the westerly line of said James N. Hall, Trustee property
S 27°18'48" E, a distance of 263.15';

Thence crossing the subject parcel and the herein-described tract for the following calls:

S 26°35'08" E, a distance of 13.71';

S 61°03'02" W, a distance of 268.07';

Along a 2,974.67' radius curve to the left, having an arc length of 73.01' and a chord bearing and distance of S 61°00'45" W, 73.00' to the westerly line of the subject parcel and the herein described tract;

Thence with said westerly line for the following calls:

N 20°38'16" W, a distance of 12.98';

N 19°47'47" W, a distance of 75.53';

N 19°41'21" W, a distance of 133.43';

N 22°41'58" W, a distance of 50.66' to the southerly right-of-way of Highway 31-E;

Thence with said right-of-way along a 2,931.33' radius curve to the right, having an arc length of 308.50' and a chord bearing and distance of N 59°41'23" E, 308.36' to the POINT OF BEGINNING containing an area of 2.05 acres, more or less.

Being a portion of the same property conveyed to Old Hickory Hockey, LLC of record in Record Book 5201, Page 281 in the Registers Office of Sumner County, Tennessee.

R-20 Low Density Residential to MRO-Multiple Residential and Office – 3.80 +/- Acres

BEGINNING at the southeast most corner of the subject parcel and the herein-described tract;

Thence with the southerly line of the subject parcel and the herein-described tract for the following calls:

S 61°51'22" W, a distance of 203.10';
S 34°44'54" W, a distance of 83.96';

Thence, leaving said southerly line and crossing the subject parcel for the following calls:

Along a 368.69' radius curve turning to the left, having an arc length of 108.67' and a chord bearing and distance of N 32°53'57" W, 108.27';
N 41°19'27" W, a distance of 261.78';
N 49°50'20" E, a distance of 60.01';
Along a 33.59' radius curve to the right, having an arc length of 32.44' and a chord bearing and distance of N 15°37'49" W, 31.20';
Along a 73.34' radius reverse curve to the left, having an arc length of 20.39' and a chord bearing and distance of N 04°04'27" E, 20.32';
Along a 33.61' radius reverse curve to the right, having an arc length of 32.63' and a chord bearing and distance of N 23°55'44" E, 31.37';
N 39°29'09" W, a distance of 55.01';
N 40°31'39" W, a distance of 5.00';
N 49°28'21" E, a distance of 119.92';
N 49°28'21" E, a distance of 26.90';
Along a 995.00' radius curve to the right, having an arc length of 186.91', having a chord bearing and distance of N 54°51'14" E, 186.64';
Along a 2,974.67' radius compound curve to the right, having an arc length of 3.83' and a chord bearing and distance of N 60°16'21" E, 3.83' to the westerly line of the Old Hickory Hockey, LLC property of record in Record Book 5201, Page 281 in the Registers Office of Sumner County, Tennessee;

Thence with said westerly line for the following calls:

S 20°38'16" E, a distance of 46.46';
S 19°56'14" E, a distance of 130.87';
S 20°22'57" E, a distance of 60.40';
S 17°07'32" E, a distance of 45.03' to southwest corner of said Old Hickory Hockey, LLC property;

Thence with the easterly line of the subject parcel and the herein-described tract S 20°05'19" E, a distance of 239.84' to the POINT OF BEGINNING containing an area of 3.80 acres, more or less.

Being a portion of the same property conveyed to Old Hickory Hockey, LLC of record in Record Book 5177, Page 37 (TRACT 1) in the Registers Office of Sumner County, Tennessee.

MU-Mixed Use to MRO-Multiple Residential and Office – 3.04 +/- Acres

BEGINNING at a corner in the easterly line of the subject parcel at the southwest corner of the James N. Hall, Trustee property of record in Record Book 4770, Page 149 in the Registers Office of Sumner County, Tennessee;

Thence with the easterly line of the subject parcel and the herein described tract for the following calls:

N 62°41'13" E, a distance of 85.60';
S 29°00'34" E, a distance of 51.50';
S 77°20'47" E, a distance of 30.18';
S 29°02'58" E, a distance of 73.95';

Thence S 29°47'43" E, a distance of 98.64';

Thence S 30°41'18" E, a distance of 48.70' to the southeast corner of the subject parcel and the herein-described tract;

Thence with the southerly line of the subject parcel and the herein-described tract for the following calls:

S 60°56'04" W, a distance of 121.64';

S 61°59'15" W, a distance of 94.08';

S 61°02'21" W, a distance of 101.70';

S 61°12'39" W, a distance of 168.24';

S 64°18'02" W, a distance of 12.70';

Thence with the westerly line of the subject parcel and the herein-described tract for the following calls:

N 17°07'32" W, a distance of 45.03';

N 20°22'57" W, a distance of 60.40';

N 19°56'14" W, a distance of 130.87';

N 20°38'16" W, a distance of 46.46';

Thence leaving said westerly line and crossing the subject parcel for the following calls:

Along a 2,974.67' radius curve to the right, having an arc length of 73.01' and a chord bearing and distance of N 61°00'45" E, 73.00';

N 61°03'02" E, a distance of 268.07';

N 26°35'08" W, a distance of 13.71' to the POINT OF BEGINNING containing an area of 3.04 acres, more or less.

Being a portion of the same property conveyed to Old Hickory Hockey, LLC of record in Record Book 5201, Page 281 in the Registers Office of Sumner County, Tennessee.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for The Goat Farm consisting of:

- Sixteen (16) sheet plan, prepared by Lose Design of Nashville, TN, with job number 19035-3, dated December 14, 2020, with a final revision date of February 1, 2021, and a
- A Design Guide for The Goat Farm, consisting of 48 pages, prepared by Lose Design, stamped date received February 1, 2021, with the following conditions:
 1. Update acreages of each area to be rezoned to match legal descriptions.
 2. Revise all roadway cross sections to have a minimum 5' grass strip, 6' minimum sidewalks and 30" curb and gutter section (24" gutter pan) so a portion of the curb inlets are not located in the asphalt pavement.
 3. Add the following note to the plan "Review and approval for construction plans, stormwater calculations, and traffic impact studies will be handled under separate cover. Alterations made by these approved sets must be reflected on this PMDP/FMDP. These revisions may include, but are not limited to changes in lot layout, roadway configuration, and revision to open spaces."
 4. If on-street parking is shown in a typical street sections a wider sidewalk section needs to be shown to accommodate the transition back and forth from curb to grass strip.
 5. Note Road "C" as a right-in/right-out onto U.S. 31E (State Route 6, Nashville Pike).
 6. Note Road "A" as a future signalized intersection when warranted.
 7. Indicate that the development signage at the roadway entrances will be located in open space tracts and will require approval of an Alternative Sign Plan by the Planning Commission. All other signage within city limits shall meet the requirements of the Gallatin Zoning Ordinance.
 8. Indicate public sidewalks along the full extent of Highway 31E and Shutes Lane frontages (including along and through the Shutes Lane/Nashville Pike intersection) and on both sides of all public roadways within the boundaries of the site. Provide a continuous sidewalk between Public Road 'C' to Building Site #10. (Sidewalks may be placed in public access easements.)
 9. Submit digital files consisting of the PDF and AutoCAD (dwg.) drawings of the Preliminary Master Development Plan to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2102-5 of the City of Gallatin, Sumner County, Tennessee, rezoning two parcels totaling 25.67 +/- acres to PGC-Planned General Commercial District and MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for The Goat Farm.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two parcels, consisting of 16.78 +/- acres from R20-Low Density Residential District to the PGC-Planning General Commercial District; 2.05 +/- acres from the MU-Mixed Use District to the PGC-Planned General Commercial District; 3.80 +/- acres from the R20-Low Density Residential District to the MRO-Multiple Residential and Office District; and 3.04 +/- acres from the MU-Mixed Use District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for The Goat Farm, located South of Nashville Pike and East of Shutes Lane; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2021-007 (ZONE-2020-0023).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2102-13

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF THREE (3) PARCELS, TOTALING 655.44 +/- ACRES (TAX MAP 113 PARCELS 001.00, 002.00, & 045.00), LOCATED NORTH OF RED RIVER ROAD AND EAST OF HIGHWAY 109, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin received a petition by the property owner for the annexation of three (3) parcels, totaling 655.44 +/- acres contiguous to the City; and

WHEREAS, the area proposed for annexation to the City of Gallatin is substantially contiguous to the corporate limits to the City and within the City's Planning Region; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to Tenn. Code Ann. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, has reviewed and recommended approval of this Plan of Service, as contained in GMRPC Resolution No. 2020-169.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Tenn. Code Ann. § 6-51-102(b), there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

Legal Description –Tax Map 113, Parcels 001.00, 002.00, & 045.00, 655.44 (+/-) Acres

Land lying on the east side of Tennessee Highway 109 in the ninth civil district, Sumner County, Tennessee. Being the property comprised of land deeded to The Bowles Family Trust by deed recorded in record book 3698, page 195, register's office for Sumner County, Tennessee (R.O.S.C.T.); also comprised of land deeded to Fair Haven LLC by deed recorded in record book 4084, page 61, register's office for Sumner County, Tennessee (R.O.S.C.T.) and more particularly described as follows:

Beginning at a ½" iron rod (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Albert Gallatin Avenue;

Thence, with the lines of the property deeded to Pamela K. Newby by deed recorded in record book 4917, page 275, R.O.S.C.T. the following three calls:

South 48°53'40" east, 397.03 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 72°47'28" east, 357.72 feet to a ½" iron rod (old) with a cap stamped "RLS 910";

North 06°44'18" east, 1,856.47 feet to a 5/8" iron rod (old) on the east right of way line of Tennessee Highway 109;

Thence, with the east right of way line of Tennessee Highway 109 the following three calls:

North 25°26'30" east, 613.32 feet to a concrete right of way monument (old);

North 31°42'37" east, 401.82 feet to a concrete right of way monument (old);

North 23°02'35" east, 81.96 feet to a ½" iron rod (old) at a corner of the Newby property;

Thence with a south line of the Newby property, south 74°45'02" east, 1,943.62 feet to the northwest corner of the property deeded to Clayton Properties Group, Inc. by deed recorded in record book 4917, page 275, R.O.S.C.T.;

Thence, with the west line of the Clayton Properties Group property, south 08°45'57" west, 1,281.67 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, continuing with the west line of the Clayton Properties Group property and with the west line of the property deeded to Sumner Special Housing, Inc. by deed recorded in record book 1696, page 188, R.O.S.C.T., south 08°16'04" west, 755.90 feet to a ¾" iron rod (old) at the northwest corner of the property deeded to W. Brandt Wood by deed recorded in record book 4802, page 314, R.O.S.C.T.;

Thence, with the west line of the Wood property, south 07°57'04" west, 278.52 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, with the south line of the Wood property, south 83°00'18" east, 1,234.37 feet to an iron rod (old) with a cap stamped "Rainey" at the southwest corner of the property deeded to Homer E. Vaughn, jr. by deed recorded in record book 4981, page 664, R.O.S.C.T.;

Thence, with the south line of the Vaughn property and with the south line of the property deeded to James M. Irion by deed recorded in record book 3979, page 419, R.O.S.C.T., south 82°30'23" east, 575.42 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, continuing with the south line of the Irion property, south 52°16'00" east, 65.38 feet to a point in east Camp Creek;

Thence, with East Camp Creek, south 23°16'21" west, 31.43 feet to the southwest corner of the terminus of Baker Lane;

Thence, with the south right of way line of Baker Lane, south 53°53'54" east, 530.53 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates" on the north line of the property deeded to Debbie Holland by deed recorded in record book 1202, page 562, R.O.S.C.T.;

Thence, with the north line of the Holland property, north 72°39'54" west, 529.23 feet to a point in the center of East Camp Creek;

Thence, with East Camp Creek the following eleven calls:

South 21°17'16" west, 16.74 feet to a point;

South 19°43'20" west, 167.12 feet to a point;

South 33°30'28" west, 103.44 feet to a point;

South 40°59'53" west, 131.95 feet to a point;

South 35°41'59" west, 63.53 feet to a point;

South 24°33'33" west, 76.76 feet to a point;

South 05°01'45" east, 75.88 feet to a point;

South 17°18'50" east, 60.95 feet to a point;

South 31°34'26" east, 119.00 feet to a point;

South 20°47'15" east, 85.83 feet to a point;

South 02°02'14" west, 13.40 feet to a point on the north right of way line of said Albert Gallatin Avenue (under construction);

Thence, north 73°27'11" west, 29.51 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, south 16°59'26" west, 18.93 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, south 16°59'26" west, 60.29 feet to a point on the centerline of said Albert Gallatin Avenue (under construction);

Thence, south 16°59'26" west, 40.75 feet to a point;

Thence, south 37°57'56" west, 20.13 feet to a point;

Thence, along a curve to the right having an arc length of 23.65 feet, having a radius of 8251.89 feet, a delta angle of 00°09'51", and with a chord bearing south 78°38'45" west, 23.65 feet to a point in the center of East Camp Creek;

Thence, with East Camp Creek the following fifty-five calls:

South 48°34'22" west, 237.38 feet to a point;

South 58°01'34" west, 88.36 feet to a point;

South 52°46'00" west, 449.04 feet to a point;

South 45°35'57" west, 117.29 feet to a point;

South 23°47'43" west, 42.84 feet to a point;

South 12°18'17" west, 100.79 feet to a point;

South 00°59'18" west, 77.28 feet to a point;

South 13°08'57" west, 60.93 feet to a point;

South 25°05'59" west, 40.66 feet to a point;

South 27°38'03" west, 84.83 feet to a point;

South 35°49'49" west, 88.53 feet to a point;

South 38°30'24" west, 40.75 feet to a point;

South 47°43'04" west, 47.11 feet to a point;

South 59°46'16" west, 94.87 feet to a point;

South 65°32'07" west, 51.30 feet to a point;

South 73°35'08" west, 54.29 feet to a point;

South 86°51'06" west, 97.21 feet to a point;

South 73°19'05" west, 68.66 feet to a point;
South 62°25'27" west, 64.07 feet to a point;
South 57°20'59" west, 176.14 feet to a point;
South 44°06'56" west, 63.73 feet to a point;
South 35°23'26" west, 52.19 feet to a point;
South 02°29'18" east, 46.18 feet to a point;
South 11°26'38" east, 123.09 feet to a point;
South 09°52'23" east, 236.06 feet to a point;
South 11°17'45" west, 76.85 feet to a point;
South 25°38'40" west, 81.38 feet to a point;
South 08°44'55" west, 59.38 feet to a point;
South 13°52'29" east, 105.70 feet to a point;
South 33°47'41" east, 62.10 feet to a point;
South 00°27'57" east, 79.71 feet to a point;
South 14°21'51" west, 51.46 feet to a point;
South 27°40'46" west, 60.52 feet to a point;
South 72°56'44" west, 24.37 feet to a point;
South 82°35'56" west, 215.64 feet to a point;
South 70°39'45" west, 82.98 feet to a point;
South 60°27'33" west, 158.37 feet to a point;
South 49°59'41" west, 93.40 feet to a point;
South 41°40'28" west, 97.98 feet to a point;
South 37°52'30" west, 387.03 feet to a point;
South 20°09'55" west, 140.91 feet to a point;
South 03°48'23" east, 106.98 feet to a point;

South 13°31'52" east, 149.60 feet to a point;

South 01°04'21" west, 78.00 feet to a point;

South 24°01'48" west, 61.26 feet to a point;

South 35°57'30" west, 56.68 feet to a point;

South 51°13'29" west, 234.47 feet to a point;

South 61°51'53" west, 161.40 feet to a point;

South 66°09'05" west, 156.84 feet to a point;

South 71°42'08" west, 147.10 feet to a point;

South 57°15'37" west, 67.35 feet to a point;

South 47°20'52" west, 102.78 feet to a point;

South 37°46'02" west, 94.96 feet to a point;

South 28°39'49" west, 341.12 feet to a point;

South 33°06'19" west, 113.07 feet to a point on the north right of way line of Tennessee Highway 25;

Thence, with the north right of way line of Tennessee Highway 25 the following five calls:

North 61°15'25" west, 186.83 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Along a curve to the left having an arc length of 218.79 feet, having a radius of 2021.00 feet, a delta angle of 06°12'10", and with a chord bearing north 64°21'30" west, 218.69 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 67°27'35" west, 2638.39 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 49°57'34" west, 104.56 feet to a concrete right of way monument (old);

North 53°35'54" west, 152.43 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Tennessee Highway 25;

Thence, with the east right of way line of Tennessee Highway 109 the following eight calls:

North 15°34'48" east, 335.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 12°08'28" east, 400.64 feet to a concrete right of way monument;

North 18°39'58" east, 443.29 feet to a concrete right of way monument;

North 28°30'09" east, 197.85 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 15°35'44" east, 294.92 feet to a concrete right of way monument;

North 26°29'38" east, 147.18 feet to a concrete right of way monument;

North 26°33'54" east, 709.21 feet to a 5/8" iron rod (old);

North 25°35'37" east, 538.18 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the south right of way line of Albert Gallatin Avenue;

Thence, along the present right of way of Tennessee Highway 109 the following seven calls:

North 18°20'51" east, 101.34 feet to a point;

North 33°36'29" east, 247.00 feet to a point;

North 24°29'34" east, 650.73 feet to a point;

North 31°16'43" east, 501.36 feet to a point;

North 17°36'28" east, 253.18 feet to a point;

North 34°36'10" east, 152.49 feet to a point;

North 25°51'56" east, 41.61 feet to the point of beginning;

Containing an area of 29,468,400 square feet or 676.50 acres, more or less.

Included in the above description, but expressly excluded from this requested zoning area is the existing public right of way as recorded in record book 4084, page 61, R.O.S.C., TN, and being more particularly described as follows;

Beginning at a ½" iron rod (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Albert Gallatin Avenue;

Thence, along a line across the Bowles property the following fourteen calls:

South 04°22'40" west, 105.04 feet to a point;

South 07°00'14" east, 144.22 feet to a point;

South 15°42'41" east, 155.72 feet to a point;

South 02°40'34" east, 291.24 feet to a point;

South 66°22'23" east, 301.20 feet to a point;

Along a curve to the left having an arc length of 229.30 feet, having a radius of 1804.86 feet, a delta angle of 07°16'46", and with a chord bearing south 79°10'48" east, 229.15 feet to a point;

South 82°49'11" east, 177.35 feet to a point;

South 07°10'49" west, 45.00 feet to a point;

South 82°49'11" east, 2350.00 feet to a point;

North 07°10'49" east, 40.00 feet to a point;

South 82°49'11" east, 60.00 feet to a point;

South 07°10'49" west, 40.00 feet to a point;

South 82°49'11" east, 782.27 feet to a point;

Along a curve to the right having an arc length of 568.33 feet, having a radius of 7699.44 feet, a delta angle of 04°13'45", and with a chord bearing south 80°42'18" east, 568.20 feet to a point lying on the Bowles property boundary;

Thence, with the Bowles Property line the following three calls:

South 16°59'26" west, 60.29 feet to a point lying on the centerline of Albert Gallatin Avenue;

South 16°59'26" west, 40.57 feet to a point;

South 37°57'56" west, 20.13 feet to a point;

Thence, leaving said Bowles property boundary along a line across said Bowls property the following sixteen calls:

Along a curve to the left having an arc length of 540.34 feet, having a radius of 7579.44 feet, a delta angle of 04°05'05", and with a chord bearing north 80°46'39" west, 540.23 feet to a point;

North 82°49'11" west, 702.27 feet to a point;

South 07°10'49" west, 30.00 feet to a point;

North 82°49'11" west, 65.00 feet to a point;

North 07°10'49" east, 30.00 feet to a point;

North 82°49'11" west, 2325.00 feet to a point;

South 07°10'49" west, 45.00 feet to a point;

North 82°49'11" west, 125.00 feet to a point;

North 07°10'49" east, 45.00 feet to a point;

North 85°11'03" west, 563.02 feet to a point;

North 81°48'55" west, 300.96 feet to a point;

South 65°49'11" west, 47.05 feet to a point;

South 67°05'36" west, 256.09 feet to a point;

South 38°36'25" west, 91.98 feet to a point;

South 31°31'48" west, 296.06 feet to a point;

South 33°47'49" west, 409.09 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the south right of way line of Albert Gallatin Avenue;

Thence, along the present right of way of Tennessee Highway 109 the following seven calls:

North 18°20'51" east, 101.34 feet to a point;

North 33°36'29" east, 247.00 feet to a point;

North 24°29'34" east, 650.73 feet to a point;

North 31°16'43" east, 501.36 feet to a point;

North 17°36'28" east, 253.18 feet to a point;

North 34°36'10" east, 152.49 feet to a point;

North 25°51'56" east, 41.61 feet to the point of beginning;

Containing an area of 917,360 square feet or 21.06 acres, more or less.

EXHIBIT 'B'
PLAN OF SERVICE FOR PROPOSED BOWLES PROPERTY DEVELOPMENT
TAX MAP 113, PARCELS 001.00, 002.00, & 045.00
(ANNX-2020-0017) pursuant to Tenn. Code Annotated § 6-51-102(b)

A. Potable Water

The Public Utilities Department indicated that existing water infrastructure is available to support the proposed annexation and development. An extension of the water lines will be required to serve the proposed development. Detailed plans and specifications for water and sanitary sewer shall be submitted to the Gallatin Public Utilities Department for review and approval.

The developer will be required to construct an off-site extension and on-site improvements of the water distribution system to ensure sufficient capacities for domestic use and fire protection for the proposed development.

B. Sanitary Sewer

The Public Utilities Department indicated that existing sanitary sewer infrastructure is available to support the proposed annexation and development. An extension of the sanitary sewer lines will be required to serve the proposed development. Detailed plans and specifications for water and sanitary sewer shall be submitted to the Gallatin Public Utilities Department for review and approval.

The developer will be required to extend the sanitary sewer collection system within and adjacent to the site from the existing system as the proposed development is constructed.

C. Street Construction and Maintenance

New Public roadways will be constructed by the developer within the Bowles Property Development. Once accepted, the City will maintain streets and other public requirements within the development. Private street will be maintained by the developer or assigned homeowner/property owner association.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Residents and business will also have access to city operated resource recovery programs and services.

E. Planning and Zoning Services

Planning and zoning services of the City of Gallatin are currently provided in a limited capacity for the property because it is located in the Planning Region. Most services are provided by the county. Upon annexation, the city will provide all planning services to the property.

F. Building Inspections and Code Enforcement Services

Building and code inspection services of the City of Gallatin are currently provided in a limited capacity in the annexation area because it is located in the Planning Region. Most

services are provided by the county. Upon annexation, the city will provide all building code and enforcement services to the property.

G. Fire Protection

After the effective date of the annexation, the Gallatin Fire Department will provide fire protection. Upon development of the property, the developer will provide fire hydrants in the annexation area pursuant to NFPA Life Safety Standards as determined by the City's Senior Fire Inspector. Once accepted by the City, the fire hydrants will be maintained by the City of Gallatin. Upon annexation, the property will be primarily served by Gallatin Fire Station #3, which has the appropriate number of personnel and number of department vehicles to service this development. Fire Station #3 is located ¾ mile from the main residential structure in the center of the property.

The Fire Department indicated that no additional firefighters, facilities, or vehicles would be required to provide service to the proposed development.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department. The Police Department indicated that an additional police officer and departmental vehicle will be needed to provide service to this area. These resources will be allocated upon incremental development of the property as determined by the Police Department.

I. Animal Control

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available to existing and future residents of the property at the City's rates. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. In addition, the development plan includes open space tracts that may serve recreation needs. Common open space may be designated by the developer and the City to serve community recreation needs to meet future recreation level of service standards.

K. Street Lighting and Electric Service

Gallatin Department of Electricity indicated that adjacent electrical facilities will need to be upgraded and new facilities will need to be extended into the annexed area. The developers must meet all GDE underground and commercial policies. This includes providing all associated fees for line extensions. Any of GDE's existing facilities that are required to be relocated will be at the developer's expense. The developer will be responsible for coordinating relocations and associated expenses of existing utilities that belong to entities other than GDE. Upon completion of any future street construction and acceptance by the City, street lighting will be provided into the annexed area as required by GDE.

L. Gas

The Public Utilities Department indicated that existing gas infrastructure is available to support the proposed annexation and development. An extension of the gas lines by the developers will be required to serve the proposed development.

M. School System

The City has provided written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2102-13 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 655.44 +/- acres (Tax Map 113, Parcels 001.00, 002.00, and 045.00), located north of Red River Road and east of Highway 109.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 655.44 +/- acres (Tax Map 113, Parcels 001.00, 002.00, and 045.00) into the City of Gallatin; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-169. (ANNX-2020-0017)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R21Ø2-14

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING A THREE (3) PARCELS, TOTALING 655.44 +/- ACRES (TAX MAP 113 PARCELS 001.00, 002.00, & 045.00), LOCATED NORTH OF RED RIVER ROAD AND EAST OF HIGHWAY 109, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the affected area described in Exhibit 'A' submitted a petition to annex three (3) parcels, totaling 655.44 +/- acres, substantially contiguous to the City of Gallatin city limits and located within the City of Gallatin Planning Region; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission has by a unanimous vote recommended approval of GMRPC Resolution No. 2020-169 for the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R21Ø2-13.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following property as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 5.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory

Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description –Tax Map 113, Parcels 001.00, 002.00, & 045.00, 655.44 (+/-) Acres

Land lying on the east side of Tennessee Highway 109 in the ninth civil district, Sumner County, Tennessee. Being the property comprised of land deeded to The Bowles Family Trust by deed recorded in record book 3698, page 195, register's office for Sumner County, Tennessee (R.O.S.C.T.); also comprised of land deeded to Fair Haven LLC by deed recorded in record book 4084, page 61, register's office for Sumner County, Tennessee (R.O.S.C.T.) and more particularly described as follows:

Beginning at a ½" iron rod (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Albert Gallatin Avenue;

Thence, with the lines of the property deeded to Pamela K. Newby by deed recorded in record book 4917, page 275, R.O.S.C.T. the following three calls:

South 48°53'40" east, 397.03 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 72°47'28" east, 357.72 feet to a ½" iron rod (old) with a cap stamped "RLS 910";

North 06°44'18" east, 1,856.47 feet to a 5/8" iron rod (old) on the east right of way line of Tennessee Highway 109;

Thence, with the east right of way line of Tennessee Highway 109 the following three calls:

North 25°26'30" east, 613.32 feet to a concrete right of way monument (old);

North 31°42'37" east, 401.82 feet to a concrete right of way monument (old);

North 23°02'35" east, 81.96 feet to a ½" iron rod (old) at a corner of the Newby property;

Thence with a south line of the Newby property, south 74°45'02" east, 1,943.62 feet to the northwest corner of the property deeded to Clayton Properties Group, Inc. by deed recorded in record book 4917, page 275, R.O.S.C.T.;

Thence, with the west line of the Clayton Properties Group property, south 08°45'57" west, 1,281.67 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, continuing with the west line of the Clayton Properties Group property and with the west line of the property deeded to Sumner Special Housing, Inc. by deed recorded in record book 1696, page 188, R.O.S.C.T., south 08°16'04" west, 755.90 feet to a ¾" iron rod (old) at the northwest corner of the property deeded to W. Brandt Wood by deed recorded in record book 4802, page 314, R.O.S.C.T.;

Thence, with the west line of the Wood property, south 07°57'04" west, 278.52 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, with the south line of the Wood property, south 83°00'18" east, 1,234.37 feet to an iron rod (old) with a cap stamped "Rainey" at the southwest corner of the property deeded to Homer E. Vaughn, jr. by deed recorded in record book 4981, page 664, R.O.S.C.T.;

Thence, with the south line of the Vaughn property and with the south line of the property deeded to James M. Irion by deed recorded in record book 3979, page 419, R.O.S.C.T., south 82°30'23" east, 575.42 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, continuing with the south line of the Irion property, south 52°16'00" east, 65.38 feet to a point in east Camp Creek;

Thence, with East Camp Creek, south 23°16'21" west, 31.43 feet to the southwest corner of the terminus of Baker Lane;

Thence, with the south right of way line of Baker Lane, south 53°53'54" east, 530.53 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates" on the north line of the property deeded to Debbie Holland by deed recorded in record book 1202, page 562, R.O.S.C.T.;

Thence, with the north line of the Holland property, north 72°39'54" west, 529.23 feet to a point in the center of East Camp Creek;

Thence, with East Camp Creek the following eleven calls:

South 21°17'16" west, 16.74 feet to a point;

South 19°43'20" west, 167.12 feet to a point;

South 33°30'28" west, 103.44 feet to a point;

South 40°59'53" west, 131.95 feet to a point;

South 35°41'59" west, 63.53 feet to a point;

South 24°33'33" west, 76.76 feet to a point;

South 05°01'45" east, 75.88 feet to a point;

South 17°18'50" east, 60.95 feet to a point;

South 31°34'26" east, 119.00 feet to a point;

South 20°47'15" east, 85.83 feet to a point;

South 02°02'14" west, 13.40 feet to a point on the north right of way line of said Albert Gallatin Avenue (under construction);

Thence, north 73°27'11" west, 29.51 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, south 16°59'26" west, 18.93 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, south 16°59'26" west, 60.29 feet to a point on the centerline of said Albert Gallatin Avenue (under construction);

Thence, south 16°59'26" west, 40.75 feet to a point;

Thence, south 37°57'56" west, 20.13 feet to a point;

Thence, along a curve to the right having an arc length of 23.65 feet, having a radius of 8251.89 feet, a delta angle of 00°09'51", and with a chord bearing south 78°38'45" west, 23.65 feet to a point in the center of East Camp Creek;

Thence, with East Camp Creek the following fifty-five calls:

South 48°34'22" west, 237.38 feet to a point;

South 58°01'34" west, 88.36 feet to a point;

South 52°46'00" west, 449.04 feet to a point;

South 45°35'57" west, 117.29 feet to a point;

South 23°47'43" west, 42.84 feet to a point;

South 12°18'17" west, 100.79 feet to a point;

South 00°59'18" west, 77.28 feet to a point;

South 13°08'57" west, 60.93 feet to a point;

South 25°05'59" west, 40.66 feet to a point;

South 27°38'03" west, 84.83 feet to a point;

South 35°49'49" west, 88.53 feet to a point;

South 38°30'24" west, 40.75 feet to a point;

South 47°43'04" west, 47.11 feet to a point;

South 59°46'16" west, 94.87 feet to a point;

South 65°32'07" west, 51.30 feet to a point;

South 73°35'08" west, 54.29 feet to a point;

South 86°51'06" west, 97.21 feet to a point;

South 73°19'05" west, 68.66 feet to a point;

South 62°25'27" west, 64.07 feet to a point;

South 57°20'59" west, 176.14 feet to a point;

South 44°06'56" west, 63.73 feet to a point;
South 35°23'26" west, 52.19 feet to a point;
South 02°29'18" east, 46.18 feet to a point;
South 11°26'38" east, 123.09 feet to a point;
South 09°52'23" east, 236.06 feet to a point;
South 11°17'45" west, 76.85 feet to a point;
South 25°38'40" west, 81.38 feet to a point;
South 08°44'55" west, 59.38 feet to a point;
South 13°52'29" east, 105.70 feet to a point;
South 33°47'41" east, 62.10 feet to a point;
South 00°27'57" east, 79.71 feet to a point;
South 14°21'51" west, 51.46 feet to a point;
South 27°40'46" west, 60.52 feet to a point;
South 72°56'44" west, 24.37 feet to a point;
South 82°35'56" west, 215.64 feet to a point;
South 70°39'45" west, 82.98 feet to a point;
South 60°27'33" west, 158.37 feet to a point;
South 49°59'41" west, 93.40 feet to a point;
South 41°40'28" west, 97.98 feet to a point;
South 37°52'30" west, 387.03 feet to a point;
South 20°09'55" west, 140.91 feet to a point;
South 03°48'23" east, 106.98 feet to a point;
South 13°31'52" east, 149.60 feet to a point;
South 01°04'21" west, 78.00 feet to a point;
South 24°01'48" west, 61.26 feet to a point;
South 35°57'30" west, 56.68 feet to a point;
South 51°13'29" west, 234.47 feet to a point;

South 61°51'53" west, 161.40 feet to a point;

South 66°09'05" west, 156.84 feet to a point;

South 71°42'08" west, 147.10 feet to a point;

South 57°15'37" west, 67.35 feet to a point;

South 47°20'52" west, 102.78 feet to a point;

South 37°46'02" west, 94.96 feet to a point;

South 28°39'49" west, 341.12 feet to a point;

South 33°06'19" west, 113.07 feet to a point on the north right of way line of Tennessee Highway 25;

Thence, with the north right of way line of Tennessee Highway 25 the following five calls:

North 61°15'25" west, 186.83 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Along a curve to the left having an arc length of 218.79 feet, having a radius of 2021.00 feet, a delta angle of 06°12'10", and with a chord bearing north 64°21'30" west, 218.69 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 67°27'35" west, 2638.39 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 49°57'34" west, 104.56 feet to a concrete right of way monument (old);

North 53°35'54" west, 152.43 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Tennessee Highway 25;

Thence, with the east right of way line of Tennessee Highway 109 the following eight calls:

North 15°34'48" east, 335.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 12°08'28" east, 400.64 feet to a concrete right of way monument;

North 18°39'58" east, 443.29 feet to a concrete right of way monument;

North 28°30'09" east, 197.85 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 15°35'44" east, 294.92 feet to a concrete right of way monument;

North 26°29'38" east, 147.18 feet to a concrete right of way monument;

North 26°33'54" east, 709.21 feet to a 5/8" iron rod (old);

North 25°35'37" east, 538.18 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the south right of way line of Albert Gallatin Avenue;

Thence, along the present right of way of Tennessee Highway 109 the following seven calls:

North 18°20'51" east, 101.34 feet to a point;

North 33°36'29" east, 247.00 feet to a point;

North 24°29'34" east, 650.73 feet to a point;

North 31°16'43" east, 501.36 feet to a point;

North 17°36'28" east, 253.18 feet to a point;

North 34°36'10" east, 152.49 feet to a point;

North 25°51'56" east, 41.61 feet to the point of beginning;

Containing an area of 29,468,400 square feet or 676.50 acres, more or less.

Included in the above description, but expressly excluded from this requested zoning area is the existing public right of way as recorded in record book 4084, page 61, R.O.S.C., TN, and being more particularly described as follows;

Beginning at a ½" iron rod (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Albert Gallatin Avenue;

Thence, along a line across the Bowles property the following fourteen calls:

South 04°22'40" west, 105.04 feet to a point;

South 07°00'14" east, 144.22 feet to a point;

South 15°42'41" east, 155.72 feet to a point;

South 02°40'34" east, 291.24 feet to a point;

South 66°22'23" east, 301.20 feet to a point;

Along a curve to the left having an arc length of 229.30 feet, having a radius of 1804.86 feet, a delta angle of 07°16'46", and with a chord bearing south 79°10'48" east, 229.15 feet to a point;

South 82°49'11" east, 177.35 feet to a point;

South 07°10'49" west, 45.00 feet to a point;

South 82°49'11" east, 2350.00 feet to a point;

North 07°10'49" east, 40.00 feet to a point;

South 82°49'11" east, 60.00 feet to a point;

South 07°10'49" west, 40.00 feet to a point;

South 82°49'11" east, 782.27 feet to a point;

Along a curve to the right having an arc length of 568.33 feet, having a radius of 7699.44 feet, a delta angle of 04°13'45", and with a chord bearing south 80°42'18" east, 568.20 feet to a point lying on the Bowles property boundary;

Thence, with the Bowles Property line the following three calls:

South 16°59'26" west, 60.29 feet to a point lying on the centerline of Albert Gallatin Avenue;

South 16°59'26" west, 40.57 feet to a point;

South 37°57'56" west, 20.13 feet to a point;

Thence, leaving said Bowles property boundary along a line across said Bowls property the following sixteen calls:

Along a curve to the left having an arc length of 540.34 feet, having a radius of 7579.44 feet, a delta angle of 04°05'05", and with a chord bearing north 80°46'39" west, 540.23 feet to a point;

North 82°49'11" west, 702.27 feet to a point;

South 07°10'49" west, 30.00 feet to a point;

North 82°49'11" west, 65.00 feet to a point;

North 07°10'49" east, 30.00 feet to a point;

North 82°49'11" west, 2325.00 feet to a point;

South 07°10'49" west, 45.00 feet to a point;

North 82°49'11" west, 125.00 feet to a point;

North 07°10'49" east, 45.00 feet to a point;

North 85°11'03" west, 563.02 feet to a point;

North 81°48'55" west, 300.96 feet to a point;

South 65°49'11" west, 47.05 feet to a point;

South 67°05'36" west, 256.09 feet to a point;

South 38°36'25" west, 91.98 feet to a point;

South 31°31'48" west, 296.06 feet to a point;

South 33°47'49" west, 409.09 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the south right of way line of Albert Gallatin Avenue;

Thence, along the present right of way of Tennessee Highway 109 the following seven calls:

North 18°20'51" east, 101.34 feet to a point;

North 33°36'29" east, 247.00 feet to a point;

North 24°29'34" east, 650.73 feet to a point;

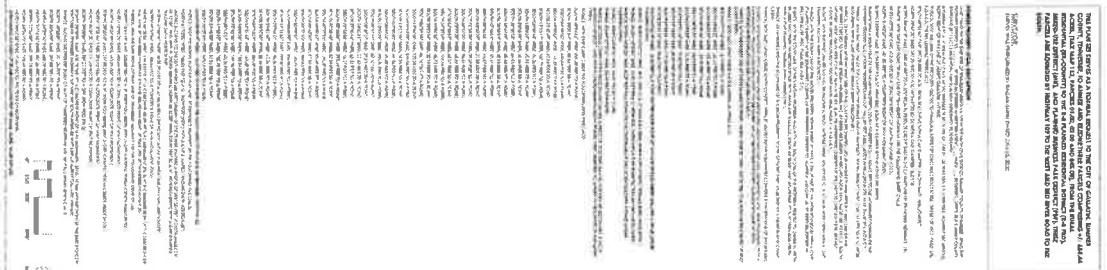
North 31°16'43" east, 501.36 feet to a point;

North 17°36'28" east, 253.18 feet to a point;

North 34°36'10" east, 152.49 feet to a point;

North 25°51'56" east, 41.61 feet to the point of beginning;

Containing an area of 917,360 square feet or 21.06 acres, more or less.



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R21Ø2-14 of the City of Gallatin, Sumner County, Tennessee, annexing 655.44 +/- acres (Tax Map 113, Parcels 001.00, 002.00, and 045.00), located north of Red River Road and east of Highway 109.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 655.44 +/- acres (Tax Map 113, Parcels 001.00, 002.00, and 045.00) into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-169. (ANNX-2020-0017)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02102-6

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING THREE PARCELS, TOTALING 655.44 +/- ACRES, FROM THE RR-RURAL RESIDENTIAL (COUNTY) DISTRICT TO THE R-8 (PRD) – MEDIUM DENSITY RESIDENTIAL (PLANNED RESIDENTIAL DEVELOPMENT) DISTRICT (435.6 +/- ACRES), FROM THE RURAL RESIDENTIAL (COUNTY) DISTRICT TO THE MU-MIXED USE DISTRICT (132.92 +/- ACRES), AND FROM THE RR-RURAL RESIDENTIAL (COUNTY) DISTRICT TO THE PBP-PLANNED BUSINESS PARK DISTRICT (86.92 +/- ACRES) WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE BOWLES PROPERTY, LOCATED NORTH OF RED RIVER ROAD AND EAST OF HIGHWAY 109; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone 655.44 +/- acres with a Preliminary Master Development Plan for the Bowles Property, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established North Gallatin Emerging Business Park Character Area and Emerging Walkable Community Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2020-170; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a portion of three parcels, totaling 655.44 +/- acres, from the RR-Rural Residential (County) to the R-8 (PRD) – Medium Density Residential (Planned Residential Development) District (435.6 +/- acres), from the RR-Rural Residential (County) District to the MU-Mixed Use District (132.92 +/- acres), and from the RR-Rural Residential (County) District to the PBP-Planned Business Park District (86.92 +/- acres) with a Preliminary Master Development Plan for the Bowles Property as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: February 16, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

RR-Rural Residential (County) to R-8 (PRD) – Medium Density Residential (Planned Residential Development – 435.6 +/- Acres

RR to R-08 PRD (NORTH OF ALBERT GALLATIN)

Beginning at a point along a south line of the Newby property, also being a point on the east side right of way of Tennessee Highway 109;

Thence, with said property line, south 74°45'02" east, 1943.62 feet to the northwest corner of the property deeded to Clayton Properties Group, Inc. by deed recorded in record book 4917, page 275, R.O.S.C.T.;

Thence with the west line of the Clayton Properties Group property, south 08°45'57" west, 1281.67 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates",

Thence continuing with the west line of the Clayton Properties Group property and with the west line of the property deeded to Sumner Special Housing, Inc. by deed recorded in record book 1696, page 188, R.O.S.C.T., south 08°16'04" west, 755.90 feet to a ¾" iron rod (old) at the northwest corner of the property deeded to W. Brandt Wood by deed recorded in record book 4802, page 314, R.O.S.C.T.,

Thence with the west line of the Wood property, south 07°57'04" west, 278.52 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence with the south line of the Wood property, south 83°00'18" east, 1234.37 feet to an iron rod (old) with a cap stamped "Rainey" at the southwest corner of the property deeded to Homer E. Vaughn, Jr. by deed recorded in record book 4981, page 664, R.O.S.C.E.;

Thence, with the south line of the Vaughn property and with the south line of the property deeded to James M Irion by deed recorded in record book 3979, page 419, R.O.S.C.T., south 82°30'23" east, 575.42 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, continuing with the south line of the Irion property, south 52°16'00" east, 65.38 feet to a point in East Camp Creek;

Thence, with East Camp Creek, south 23°16'21" west, 31.43 feet to the southwest corner of the terminus of Baker Lane, said point being located along the center of East Camp Creek;

Thence, south 53°53'54" east, 530.53 feet to a point;

Thence, north 72°39'54 west, 596.23 feet to a point located along the center of East Camp Creek;

Thence, with the center of East Camp Creek the following twelve calls:

South 26°17'35" west, 172.79 feet to a point;

South 21°17'16" west, 16.74 feet to a point;

South 19°43'20" west, 167.12 feet to a point;

South 33°30'28" west, 103.44 feet to a point;

South 40°59'53" west, 131.95 feet to a point;

South 35°41'59" west, 63.53 feet to a point;

South 24°33'33" west, 76.76 feet to a point;

South 05°01'45" east, 75.88 feet to a point;

South 17°18'50" east, 60.95 feet to a point;

South 31°34'26" east, 119.00 feet to a point;

South 20°47'15" east, 85.83 feet to a point;

South 02°02'14" west, 13.40 feet to a point on the north right of way line of said Albert Gallatin Avenue (under construction);

Thence, with the north right of way line of Albert Gallatin Avenue the following eight calls:

North 73°27'11" west, 29.51 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 16°59'26" west, 18.93 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

Along a curve to the left an arc length of 568.33 feet, having a radius of 7699.44 feet, a delta angle of 04°13'45", and with a chord bearing north 80°42'18" west, 568.20 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 82°49'11" west, 782.27 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 07°10'49" east, 40.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 82°49'11" west, 60.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 07°10'49" west, 40.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 82°49'11" west, 1556.55 feet to a point on the north right of way line of said Albert Gallatin Avenue (under construction);

Thence, leaving said right of way line and continuing along a line across the proposed Bowles property the following twenty-three calls:

North 07°10'53" east, 453.64 feet to a point;

North 07°10'53" east, 572.35 feet to a point;

Along a curve to the right an arc length of 117.81 feet, having a radius of 75 feet, a delta angle of 90°00'00", and with a chord bearing north 52°10'53" east, 106.07 feet to a point;

South 82°49'07" east, 724.51 feet to a point;

North 15°22'36" west, 116.71 feet to a point;

North 28°40'18" west, 91.99 feet to a point;

North 10°39'20" west, 111.73 feet to a point;

North 01°31'32" west, 287.88 feet to a point;

North 06°35'09" east, 98.12 feet to a point;

North 07°41'55" west, 315.01 feet to a point;

North 01°41'09" east, 101.67 feet to a point;

North 17°27'53" west, 303.94 feet to a point;

North 37°21'26" west, 76.79 feet to a point;

North 10°49'33" west, 213.68 feet to a point;

North 19°46'36" west, 302.10 feet to a point;

North 32°06'30" west, 259.54 feet to a point;

North 51°09'49" west, 86.16 feet to a point;

North 79°09'23" west, 113.88 feet to a point;

North 65°36'56" west, 166.70 feet to a point;

North 78°41'48" west, 42.69 feet to a point;

North 54°23'19" west, 68.65 feet to a point;

North 43°15'50" west, 128.94 feet to a point;

North 42°03'23" west, 134.55 feet to a point lying on the east side right of way of Tennessee Highway 109;

Thence with said right of way the following two calls;

North 31°42'37" east, 66.61 feet to a point lying on the east side right of way of Tennessee Highway 109;

North 23°01'28" east, 81.99 feet to the point of beginning;

Containing an area of 5,443,615 square feet or 124.97 acres, more or less.

RR to R-08 PRD (SOUTH OF ALBERT GALLATIN)

Beginning at a point in the center of east camp creek, said point being the north east most corner of the southern part of the Bowles Property. Point also lying on the south right of way line of Albert Gallatin Avenue;

Thence, with east camp creek the following fifty-five calls;

South 48°34'22" west, 237.38 feet to a point;

South 58°01'34" west, 88.36 feet to a point;

South 52°46'00" west, 449.04 feet to a point;

South 45°35'57" west, 117.29 feet to a point;

South 23°47'43" west, 42.84 feet to a point;

South 12°18'17" west, 100.79 feet to a point;

South 00°59'18" west, 77.28 feet to a point;

South 13°08'57" west, 60.93 feet to a point;

South 25°05'59" west, 40.66 feet to a point;

South 27°38'03" west, 84.83 feet to a point;

South 35°49'49" west, 88.53 feet to a point;

South 38°30'24" west, 40.75 feet to a point;

South 47°43'04" west, 47.11 feet to a point;

South 59°46'16" west, 94.87 feet to a point;

South 65°32'07" west, 51.30 feet to a point;

South 73°35'08" west, 54.29 feet to a point;

South 86°51'06" west, 97.21 feet to a point;

South 73°19'05" west, 68.66 feet to a point;

South 62°25'27" west, 64.07 feet to a point;

South 57°20'59" west, 176.14 feet to a point;

South 44°06'56" west, 63.73 feet to a point;

South 35°23'26" west, 52.19 feet to a point;

South 02°29'18" east, 46.18 feet to a point;

South 11°26'38" east, 123.09 feet to a point;

South 09°52'23" east, 236.06 feet to a point;

South 11°17'45" west, 76.85 feet to a point;
South 25°38'40" west, 81.38 feet to a point;
South 08°44'55" west, 59.38 feet to a point;
South 13°52'29" east, 105.70 feet to a point;
South 33°47'41" east, 62.10 feet to a point;
South 00°27'57" east, 79.71 feet to a point;
South 14°21'51" west, 51.46 feet to a point;
South 27°40'46" west, 60.52 feet to a point;
South 72°56'44" west, 24.37 feet to a point;
South 82°35'56" west, 215.64 feet to a point;
South 70°39'45" west, 82.98 feet to a point;
South 60°27'33" west, 158.37 feet to a point;
South 49°59'41" west, 93.40 feet to a point;
South 41°40'28" west, 97.98 feet to a point;
South 37°52'30" west, 387.03 feet to a point;
South 20°09'55" west, 140.91 feet to a point;
South 03°48'23 east, 106.98 feet to a point;
South 13°31'52" east, 149.6 feet to a point;
South 01°04'21" west, 78.00 feet to a point;
South 24°01'48" west, 61.26 feet to a point;
South 35°57'30" west, 56.68 feet to a point;
South 51°13'29" west, 234.47 feet to a point;
South 61°51'53" west, 161.40 feet to a point;
South 66°09'05" west, 156.84 feet to a point;
South 71°42'08" west, 147.10 feet to a point;
South 57°15'37" west, 67.35 feet to a point;
South 47°20'52" west, 102.78 feet to a point;
South 37°46'02" west, 94.96 feet to a point;

South 28°39'49" west, 341.12 feet to a point;

South 33°06'19" west, 113.07 feet to a point on the north right of way line of Tennessee Highway 25;

Thence, with the north right of way line of Tennessee Highway 25 the following three calls;

North 61°15'25" west, 186.83 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

Along a curve to the left having an arc length of 218.80 feet, having a radius of 2021.00 feet, a delta angle of 06°12'11", and with a chord bearing north 64°21'30" west, 218.69 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 67°27'35" west, 2060.74 feet to a point;

Thence, leaving said right of way line and along a line across proposed Bowles property the following nine calls;

North 22°22'13" east, 201.05 feet to a point;

Along a curve to the left having an arc length of 70.06 feet, having a radius of 635.00 feet, a delta angle of 06°19'18", and with a chord bearing north 19°12'34" east, 70.03 feet to a point;

North 16°02'56" east, 1725.77 feet to a point;

Along a curve to the right having an arc length of 821.75 feet, having a radius of 2965.00 feet, a delta angle of 15°52'46", and with a chord bearing north 23°59'19" east, 819.12 feet to a point;

South 82°44'00" east, 1426.53 feet to a point;

Along a curve to the left an arc length of 26.85 feet, having a radius of 25 feet, a delta angle of 61°32'32", and with a chord of north 66°29'44" east, 25.58 feet to a point;

North 35°43'28" east, 455.33 feet to a point;

With a curve to the left having an arc length of 12.45 feet, having a radius of 25.00 feet, a delta angle of 28°32'23", and with a chord bearing north 21°27'17" east, 12.32 feet to a point;

North 07°11'05" East, 953.86 feet to a point lying on the right of way line of Albert Gallatin Avenue;

Thence, along the right of way line the following six calls;

South 82°49'11" east, 1652.25 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 07°10'49" west, 30.00 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 82°49'11" east, 65.00 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 07°10'49" east, 30.00 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 82° 49' 11" east, 702.27 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

Along a curve to the right having an arc length of 563.99 feet, having a radius of 7579.44 feet, a delta angle of 4°15'48", and with a chord bearing south 80°41'17" east, 563.86 feet to a point;

Containing an area of 13,531,193 square feet or 310.63 acres more or less.

RR-Rural Residential (County) to MU-Mixed Use – 132.92 +/- Acres

RR to MU (NORTH OF ALBERT GALLATIN)

Beginning at a 1/2" iron rod (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Albert Gallatin Avenue;

Thence, with the lines of the property deeded to Pamela K. Newby by deed recorded in record book 4917, page 275, R.O.S.C.T. south 48°53'40" east, 397.03 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence leaving said property line across the proposed Bowles property the following 4 calls:

South 27°25'15" east, 175.57 feet to a point;

South 82°48'35" east, 27.08 feet to a point;

South 82°48'35" east, 1183.06 feet to a point;

South 07°10'53" east, 453.64 feet to a point lying on the north right of way of Albert Gallatin Avenue Extension (under construction);

Thence with the north right of way of Albert Gallatin Avenue the following nine calls;

North 82°49'11" west, 793.45 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 07°10'49" east, 45 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 82°49'11" west, 177.35 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

With a curve to the right an arc length of 229.31 feet, having a radius of 1804.86 feet, a delta angle of 07°16'46", and with a chord of north 79°10'48" west, 229.15 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 66°22'23" west, 301.20 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 02°40'34" west, 291.24 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 15°42'41" west, 155.72 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 07°00'14" west, 144.22 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 04°22'40" east, 105.04 feet to the point of beginning;

Containing an area of 714,666 square feet or 16.41 acres more or less.

RR to MU (SOUTH OF ALBERT GALLATIN)

Beginning at a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the south right of way line of Albert Gallatin Avenue;

Thence, with the south right of way line of Albert Gallatin Avenue the following eleven calls;

North 33°47'49" east, 409.09 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 31°31'48" east, 296.06 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 38°36'25" east, 91.98 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 67°05'36" east, 256.09 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 65°49'11" east, 47.05 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 81°48'55" east, 300.96 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 85°11'03" east, 563.02 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 07°10'49" west, 45.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 82°49'11" east, 125.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 07°10'49" east, 45.00 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

South 82°49'11" east, 672.75 feet to a point lying on the southern right of way line of Albert Gallatin Avenue;

Thence, leaving said right of way and along a line across proposed Bowles property the following eight calls;

South 07°11'05" west, 953.86 feet to a point;

Along a curve to the right having an arc length of 12.45 feet, having a radius of 25 feet, a delta angle of 28°32'23", and with a chord bearing south 21°27'17" west, 12.32 feet to a point;

South 35°43'28" west, 455.33 feet to a point;

Along a curve to the right having an arc length of 26.85 feet, having a radius of 25.00 feet, a delta angle of 61°32'32", and with a chord bearing south 66°29'44" west, 25.58 feet to a point;

North 82°44'00" west, 1426.53 feet to a point;

Along a curve to the left having an arc length of 821.75 feet, having a radius of 2965.00 feet, a delta angle of 15°52'46", and with a chord bearing south 23°59'19" west, 819.12 feet to a point;

South 16°02'56" west, 1725.77 feet to a point;

Along a curve to the right having an arc length of 70.06 feet, having a radius of 635.00 feet, a delta angle of 06°19'18", and with a chord bearing south 19°12'34" west, 70.03 feet to a point;

South 22°22'13" west, 201.05 feet to a point on the north right of way line of Tennessee Highway 25;

Thence, with the north right of way line of Tennessee Highway 25 the following three calls;

North 67°27'35" west, 577.65 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 49°57'34" west, 104.56 feet to a concrete right of way monument (old);

North 53°35'54" west, 152.43 feet to a concrete right of way monument (old) at the intersection of the east right of way line of Tennessee Highway 109 and the north right of way line of Tennessee Highway 25;

Thence, with the east right of way line of Highway 109 the following eight calls;

North 15°34'48" east, 335.00 feet to a concrete row monument (old);

North 12°08'28" east, 400.64 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 18°39'58" east, 443.29 feet to a concrete right of way monument (old);

North 28°30'09" east, 197.85 feet to a ½" iron rod (new) with a cap stamped "Ragan Smith Associates";

North 15°35'44" east, 294.92 feet to a concrete right of way monument (old);

North 26°29'38" east, 147.18 feet to a concrete right of way monument (old);

North 26°33'54" east, 709.21 feet to a 5/8" iron rod (old);

North 25°35'37" east, 538.18 feet to the point of beginning;

Containing an area of 5,075,108 square feet or 116.51 acres more or less.

RR-Rural Residential (County) to PBP-Planned Business Park – 86.92 +/- Acres

Beginning at a 5/8" iron rod (old) located on the east right of way line of Tennessee Highway 109;

Thence, with the east right of way line of said Highway 109 the following two calls:

North 25°26'30" east, 613.32 feet to a concrete right of way monument (old);

North 31°42'37" east, 335.21 feet to a point;

Thence, leaving said right of way line and continuing along a line across the proposed Bowles property the following twenty-five calls:

South 42°03'23" east, 134.55 feet to a point;

South 43°15'50" east, 128.94 feet to a point;

South 54°23'19" east, 68.65 feet to a point;

South 78°41'48" east, 42.69 feet to a point;

South 65°36'56" east, 166.7 feet to a point;

South 79°09'23" east, 113.88 feet to a point;

South 51°09'49" east, 86.16 feet to a point;

South 32°06'30" east, 259.54 feet to a point;

South 19°46'36" east, 302.10 feet to a point;

South 10°49'33" east, 213.68 feet to a point;

South 37°21'26" east, 76.79 feet to a point;

South 17°27'53" east, 303.94 feet to a point;

South 01°41'09" west, 101.67 feet to a point;

South 07°41'55" east, 315.01 feet to a point;

South 06°35'09" west, 98.12 feet to a point;

South 01°31'32" east, 287.88 feet to a point,

South 10°39'20" east, 111.73 feet to a point;

South 28°40'18" east, 91.99 feet to a point;

South 15°22'36" east, 116.71 feet to a point;

North 82°49'07" west, 724.51 feet to a point;

With a curve to the left an arc length of 117.81 feet, having a radius of 75.00 feet, a delta angle of 90°00'00", and with a chord bearing south 52°10'53" west, 106.07 feet to a point;

South 07°10'53" west, 572.35 feet to a point;

North 82°48'35" west, 1183.06 feet to a point;

North 82°48'35" west, 27.08 feet to a point;

North 27°25'15" west, 175.57 feet to a 1/2" iron rod (new) with a cap stamped "Ragan Smith Associates";

Thence, with the lines of the property deeded to Pamela K. Newby by deed recorded in record book 4917, page 275, R.O.S.C.T., the following two calls:

North 72°47'28" east, 357.72 feet to a 1/2" iron rod (old) with a cap stamped "RLS 910";

North 06°44'18" east, 1856.47 feet to the point of beginning;

Containing an area of 3,786,235 square feet or 86.92 acres, more or less.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for the Bowles Property, consisting of a 32 sheet plan, prepared by EDGE, Planning, Landscape Architecture, & Urban Design of Nashville, TN, and CSDG Planning, Engineering, and Landscape Architecture of Nashville, TN, dated November 9, 2020, with a final revision date of January 14, 2021, with the following conditions:

1. Remove the note on Sheet PM-1.1 about the evolving to full intersection for Parcel D. This can only be shown as a right-in/right-out on State Route 25 (Red River Road).
2. Revise all roadway cross sections to have a minimum 30" curb and gutter section (24" gutter pan) so a portion of the curb inlets are not located in the asphalt pavement.
3. Add the following note to the plan "Review and approval for construction plans, stormwater calculations, and traffic impact studies will be handled under separate cover. Alterations made by these approved sets must be reflected on this PMDP/FMDP. These revisions may include, but are not limited to changes in lot layout, roadway configuration, and revision to open spaces."
4. Provide City Council with a list of uses on Parcel I that will be eliminated/not permissible in the parcel from the MU zoning uses.
5. Submit digital files consisting of the PDF and AutoCAD (dwg.) drawings of the Preliminary Master Development Plan to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O21Ø2-6 of the City of Gallatin, Sumner County, Tennessee, rezoning three parcels totaling 655.44 +/- acres to R-8 (PRD) - Medium Density Residential (Planned Residential Development) District, MU-Mixed Use District, and PBP-Planned Business Park District with a Preliminary Master Development Plan for the Bowles Property.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a portion of three parcels, totaling 655.44 +/- acres, from the RR-Rural Residential (County) to the R-8 (PRD) – Medium Density Residential (Planned Residential Development) District (435.6 +/- acres), from the RR-Rural Residential (County) District to the MU-Mixed Use District (132.92 +/- acres), and from the RR-Rural Residential (County) District to the PBP-Planned Business Park District (86.92 +/- acres) with a Preliminary Master Development Plan for the Bowles Property, located north of Red River Road and east of Highway 109; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2020-170 (ZONE-2020-0022).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2102-17

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF A 31.378 +/- ACRE PARCEL (TAX MAP 135, PARCEL 032.01), LOCATED WEST OF WOODS FERRY ROAD AND SOUTH OF NICHOLS LANE AT 1460 WOODS FERRY ROAD, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin received a petition by a property owner for the annexation of a 31.378 +/- acre portion of a parcel; and

WHEREAS, the area proposed for annexation to the City of Gallatin is substantially contiguous to the corporate limits to the City and within the City's Urban Growth Boundary; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to Tenn. Code Ann. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, has reviewed and recommended approval of this Plan of Service, as contained in GMRPC No. Resolution 2020-135.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'
Legal Description –Tax Map Parcel 135//032.01, 31.378 +/- Acres

WOODS CROSSING

DESCRIPTION OF THE ANN WYLLIE, SUSAN OWNENS, AND ELIZABETH CHAFFIN
PROPERTY:
31.378 Acres+/-

Being a tract of land lying in the city of Gallatin, Sumner County, Tennessee and being more particularly described as follows:

Commencing at an existing iron rod on the westerly right-of-way line of Woods Ferry Road, 50 feet in width, at a corner common with the property conveyed to W. T. Wheeler JR. and Donna Marie J. Wheeler of record in Deed Book 256, Page 141;

Thence leaving the westerly right-of-way line of Woods Ferry Road with the southerly line of the aforesaid property conveyed to Wheeler, South 79 deg 31 min 31 sec West, 382.92 feet to the true Point of Beginning for this tract;

Thence through the property conveyed to Ann Chaffin Wyllie and David Wyllie; Susan Chaffin Owen; and Elizabeth Jill Chaffin of record in Will Book 71, Page 414; Book 2932, Page 153; Book 4725, Page 437; and Record Book 5142, Page 356 for the following calls: with a curve to the left having a radius of 1696.00, a curve length of 398.20 feet and a chord bearing and distance of South 27 deg 29 min 10 sec East, 397.28 feet; with a curve to the right having a radius of 514.55, a curve length of 405.09 feet and a chord bearing and distance of South 11 deg 39 min 31 sec East, 394.71 feet; South 18 deg 59 min 07 sec West, 132.90 feet to the northerly line of Lot 1 on the Final Plat titled Charles Roy Aston, of record in Plat Book 25, Page 207;

Thence first with the northerly line of said Lot 1 and then with the northerly line of Lot 2 on Charles Roy Aston, South 67 deg 12 min 41 sec West, 472.71 feet to an existing iron rod;

Thence with the westerly line of said Lot 2, South 13 deg 39 min 13 sec East, 113.91 feet to an existing iron rod on the northerly line of the property conveyed to William G. Kirkpatrick, Sr. of record in Record Book 3245, Page 242;

Thence with the northerly line of the property conveyed to William G. Kirkpatrick, Sr., for the following calls: North 82 deg 40 min 41 sec West, 301.95 feet to an old cedar post, North 83 deg 41 min 55 sec West, 1072.33 feet to an existing iron rod on the easterly line of the property conveyed to William G. Kirkpatrick of record in Deed Book 256, Page 398;

Thence with the easterly line of William G. Kirkpatrick, North 7 deg 21 min 18 sec East, 537.52 feet to an existing iron rod at a corner common with the property conveyed to W. T. Wheeler JR. and Donna Marie J. Wheeler of record in Deed Book 256, Page 141;

Thence with the southerly line of said Wheeler for the following calls: South 83 deg 55 min 46 sec East, 681.03 feet to an existing iron rod, North 4 deg 01 min 51 sec East, 397.92 feet to an existing iron rod, North 79 deg 31 min 31 sec East, 793.60 feet to the point of beginning; containing 1,366,805 ± sq. ft. or 31.378 acres more or less.

Being part of the property conveyed to Ann Chaffin Wyllie and David Wyllie; Susan Chaffin Owen; and Elizabeth Jill Chaffin of record in Will Book 71, Page 414; Book 2932, Page 153; Book 4725, Page 437; and Record Book 5142, Page 356.

Tax Map Reference: Map 135 Parcel 32.01

EXHIBIT 'B'

PLAN OF SERVICE FOR TAX MAP 135, PARCEL 032.01 (ANNX-2020-0015) pursuant to Tenn. Code Annotated § 6-51-102(b)

A. Potable Water

Water service will be provided by Gallatin Public Utilities Department upon extension of water lines to the property by the property developer. Currently, city water lines extend to the adjacent property to the east. This property (Parcel 32.00) is located within the Gallatin Public Utilities service area. Water service can be provided to accommodate the development by extending water lines through developer-funded and constructed water mains. The 122 homes proposed for the annexation property will generate an estimated flow of 767,974 gallons per month. The developer will be responsible for installing water lines throughout the site and for making any necessary improvements off site to ensure adequate water service levels.

B. Sanitary Sewer

The property is adjacent to a property (Parcel 32.00) served by an existing eight (8)-inch sanitary sewer line along Woods Ferry Road. Force mains will be constructed by the developer to pump effluent to this existing line. The developer will be required to make improvements to the lines and associated infrastructure. Upon submittal of construction plans, all forcemain and gravity flow lines shall be indicated on the drawings. These improvements will be constructed in existing or proposed rights-of-way and/or utility easements. The proposed development will generate approximately 511,983 gallons per day of effluent conveyed by sanitary sewer distribution, trunk lines, lift station, and treatment capacity to the WWTP. The existing trunk line eventually flows via gravity to a lift station located farther down Woods Ferry Road near State Route 109. Sanitary sewer service can be made available to accommodate the development by extending sewer lines through developer-funded and -constructed sewer mains.

C. Street Construction and Maintenance

New Public roadways will be constructed by the developer within Woods Crossing. Once accepted, the City will maintain streets within the development.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Future residents will also have access to city-operated Resource recovery programs and services.

E. Planning and Zoning Services

Upon annexation, the City of Gallatin will provide planning and zoning services, including zoning enforcement, to all of the 31.378 +/- acre annexed property.

F. Building Inspections and Code Enforcement Services

Upon annexation, building and code inspection services will be provided by the City of Gallatin.

G. Fire Protection

The Gallatin Fire Department will provide fire protection after the effective date of the annexation. Upon development of the properties, the developer will provide fire hydrants in the annexation area pursuant to NFPA Life Safety Standards as determined by the City's Senior Fire Inspector. Once accepted by the City, the fire hydrants will be maintained by the City of Gallatin. The Fire Department indicated that no additional resources and manpower are needed to adequately service the area. Gallatin Fire Station No. 5, the nearest station, is approximately a half road mile away from the Woods Ferry entry point and response times to this entrance will be within the national best practice standard of four (4) minutes.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department. The Police Department indicated that no additional police officers and departmental vehicles will be needed to provide service to this area.

I. Animal Control

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available to future residents of the property at the City's rates. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. In addition, the development plan includes open space tracts that may serve recreation needs. Common open space may be designated by the developer and the City to serve community recreation needs to meet future recreation level of service standards.

K. Street Lighting and Electric Service

The Gallatin Department of Electricity will provide service upon development of the property. Existing infrastructure will support the proposed development after upgrades. Electric service by GDE shall comply with service design requirements including, where required, placing service lines underground. Upon completion of any future street

construction and acceptance by the City, street lighting will be extended into the annexed area as required by GDE.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. An existing gas line is located in the vicinity of the property. The Gallatin Public Utilities Department may authorize the extension of natural gas service from this existing line into the property upon development at developer expense. Upon authorization to extend gas lines by Gallatin Public Utilities, the City will maintain and monitor such lines.

M. School System

The City shall provide written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2). The School Board has been notified of the pending annexation and proposed development plan.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2102-17 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 31.378 +/- acres (Tax Map 135, Parcel 032.01), located west of Woods Ferry Road and south of Nichols Lane.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 31.378 +/- acres (Tax Map 135, Parcels 032.01) into the City of Gallatin; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-135 (ANNX-2020-0015).

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2102-18

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING A 31.378 +/- ACRE PARCEL (TAX MAP 135, PARCEL 032.01), LOCATED WEST OF WOODS FERRY ROAD AND SOUTH OF NICHOLS LANE AT 1460 WOODS FERRY ROAD, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property of the affected area described in Exhibit 'A' submitted a petition to annex a 31.378 +/- acre parcel located adjacent to and substantially contiguous to the City of Gallatin, Tennessee, city limits and located in the City of Gallatin Urban Growth Boundary; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of GMRPC Resolution No. 2020-135 for the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2102-17.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following property as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize, and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 3.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory

Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description –Tax Map Parcel 135//032.01, 31.378 +/- Acres

WOODS CROSSING

DESCRIPTION OF THE ANN WYLLIE, SUSAN OWNENS, AND ELIZABETH CHAFFIN
PROPERTY:
31.378 Acres+/-

Being a tract of land lying in the city of Gallatin, Sumner County, Tennessee and being more particularly described as follows:

Commencing at an existing iron rod on the westerly right-of-way line of Woods Ferry Road, 50 feet in width, at a corner common with the property conveyed to W. T. Wheeler JR. and Donna Marie J. Wheeler of record in Deed Book 256, Page 141;

Thence leaving the westerly right-of-way line of Woods Ferry Road with the southerly line of the aforesaid property conveyed to Wheeler, South 79 deg 31 min 31 sec West, 382.92 feet to the true Point of Beginning for this tract;

Thence through the property conveyed to Ann Chaffin Wyllie and David Wyllie; Susan Chaffin Owen; and Elizabeth Jill Chaffin of record in Will Book 71, Page 414; Book 2932, Page 153; Book 4725, Page 437; and Record Book 5142, Page 356 for the following calls: with a curve to the left having a radius of 1696.00, a curve length of 398.20 feet and a chord bearing and distance of South 27 deg 29 min 10 sec East, 397.28 feet; with a curve to the right having a radius of 514.55, a curve length of 405.09 feet and a chord bearing and distance of South 11 deg 39 min 31 sec East, 394.71 feet; South 18 deg 59 min 07 sec West, 132.90 feet to the northerly line of Lot 1 on the Final Plat titled Charles Roy Aston, of record in Plat Book 25, Page 207;

Thence first with the northerly line of said Lot 1 and then with the northerly line of Lot 2 on Charles Roy Aston, South 67 deg 12 min 41 sec West, 472.71 feet to an existing iron rod;

Thence with the westerly line of said Lot 2, South 13 deg 39 min 13 sec East, 113.91 feet to an existing iron rod on the northerly line of the property conveyed to William G. Kirkpatrick, Sr. of record in Record Book 3245, Page 242;

Thence with the northerly line of the property conveyed to William G. Kirkpatrick, Sr., for the following calls: North 82 deg 40 min 41 sec West, 301.95 feet to an old cedar post, North 83 deg 41 min 55 sec West, 1072.33 feet to an existing iron rod on the easterly line of the property conveyed to William G. Kirkpatrick of record in Deed Book 256, Page 398;

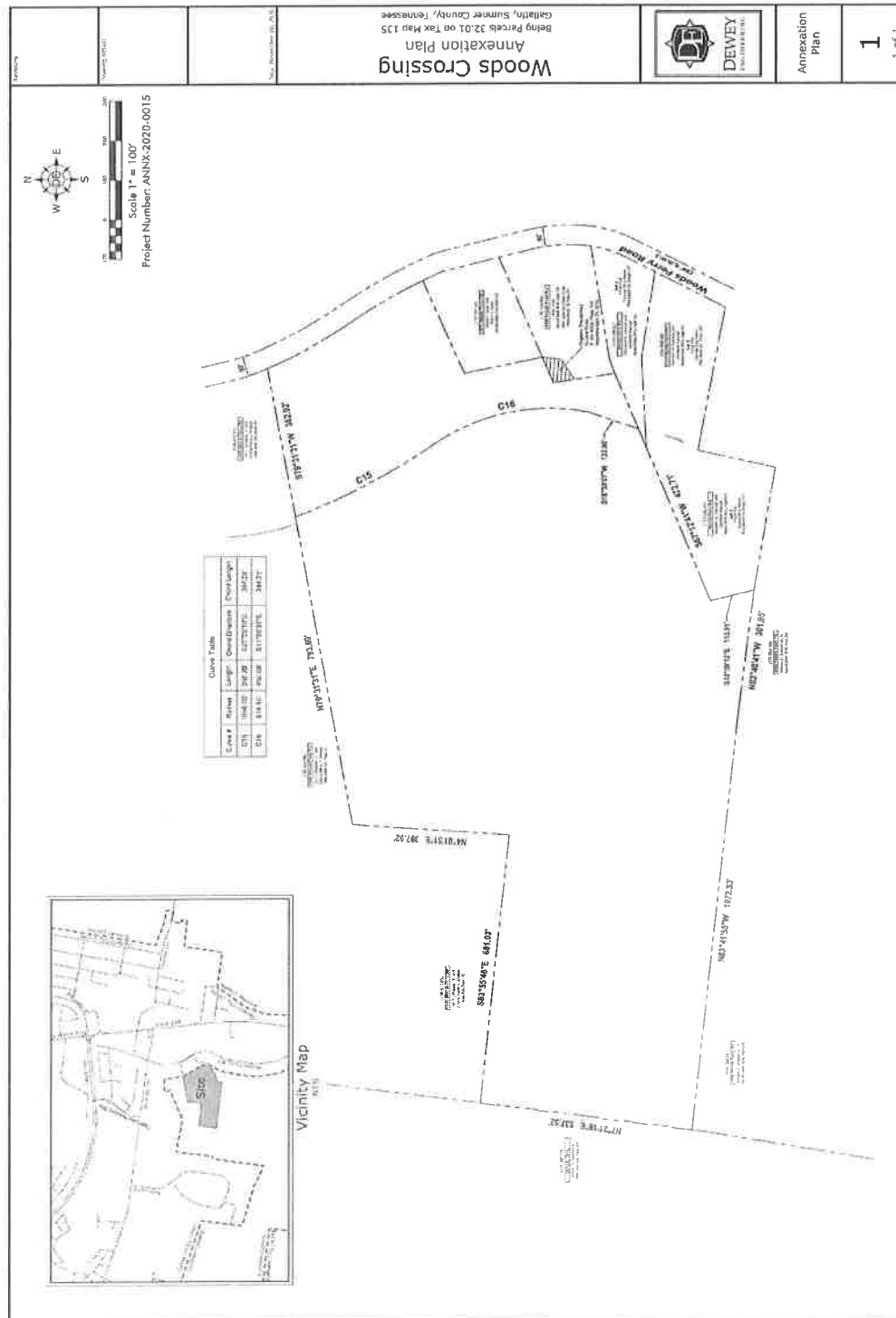
Thence with the easterly line of William G. Kirkpatrick, North 7 deg 21 min 18 sec East, 537.52 feet to an existing iron rod at a corner common with the property conveyed to W. T. Wheeler JR. and Donna Marie J. Wheeler of record in Deed Book 256, Page 141;

Thence with the southerly line of said Wheeler for the following calls: South 83 deg 55 min 46 sec East, 681.03 feet to an existing iron rod, North 4 deg 01 min 51 sec East, 397.92 feet to an existing iron rod, North 79 deg 31 min 31 sec East, 793.60 feet to the point of beginning; containing 1,366,805 $\pm$ sq. ft. or 31.378 acres more or less.

Being part of the property conveyed to Ann Chaffin Wyllie and David Wyllie; Susan Chaffin Owen; and Elizabeth Jill Chaffin of record in Will Book 71, Page 414; Book 2932, Page 153; Book 4725, Page 437; and Record Book 5142, Page 356.

Tax Map Reference: Map 135 Parcel 32.01

EXHIBIT 'B'



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2102-18 of the City of Gallatin, Sumner County, Tennessee, annexing 31.378 +/- acres (Tax Map 135, Parcel 032.01), located west of Woods Ferry Road and south of Nichols Lane.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 31.378 +/- acres (Tax Map 135, Parcel 032.01) into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-135. (ANNX-2020-0015)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02102-8

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING TWO (2) PARCELS TOTALING 36.598 +/- ACRES FROM THE RR-RURAL RESIDENTIAL (COUNTY) AND R40-LOW DENSITY RESIDENTIAL DISTRICTS TO THE R8 (PRD)-MEDIUM DENSITY RESIDENTIAL (PLANNED RESIDENTIAL DEVELOPMENT) DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR WOODS CROSSING, LOCATED WEST OF WOODS FERRY ROAD AND SOUTH OF NICHOLS LANE AT 1460 WOODS FERRY ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE (ZONE-2020-0018).

WHEREAS, the owner of the properties submitted a complete application to rezone 36.598 +/- acres with a Preliminary Master Development Plan for Woods Crossing, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Emerging Walkable Community Character Area, and the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure, and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety, and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution 2020-136; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone two (2) parcels totaling 36.598 +/- acres from the RR-Rural Residential (County) District and R40-Low Density Residential District to the R8 (PRD)-Medium Density Residential (Planned Residential

Development) District as described in Exhibit “A” and with a Preliminary Master Development Plan for Woods Crossing as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize, and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING: February 16, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Descriptions
Exhibit B: Description of PMDP with conditions

EXHIBIT 'A'

RR (County) and R40 TO R8 (PRD) REZONING, TALLING 36.598 +/- ACRES

Legal Description –Tax Map Parcels 135//032.00 and 032.01, 36.598 +/- Acres

WOODS CROSSING

DESCRIPTION OF THE DAVID AND ANN WYLLIE, SUSAN OWNENS, AND ELIZABETH CHAFFIN PROPERTY: 36.598 Acres+/-

Being a tract of land lying in the city of Gallatin, Sumner County, Tennessee and being more particularly described as follows:

Beginning at an existing iron rod on the westerly right-of-way line of Woods Ferry Road, 50 feet in width, at a corner common with the property conveyed to W. T. Wheeler JR. and Donna Marie J. Wheeler of record in Deed Book 256, Page 141;

Thence with the westerly right-of-way line of Woods Ferry Road for the following calls: with a curve to the left having a radius of 1321.00 feet, a curve length of 241.75 feet and a chord bearing and distance of South 28 deg 58 min 10 sec East, 241.41 feet, then with a curve to the right having a radius of 1339.50 feet, a curve length of 209.38 feet and a chord bearing and distance of South 29 deg 44 min 03 sec East, 209.16 feet to an existing iron rod at a corner common with the property conveyed to Daniel F. Goad and Marie P. Goad of record in Record Book 510, Page 562;

Thence leaving the westerly right-of-way line of Woods Ferry Road with the northerly line of the aforesaid Goad property, South 66 deg 02 min 10 sec West, 257.87 feet to an existing iron rod;

Thence with the westerly line of said Goad, South 11 deg 44 min 29 sec East, 200.00 feet to an existing iron rod at a corner common with the property conveyed to Dale Goad of record in Record Book 4928, Page 729;

Thence first with the northerly line and then with the west of said property conveyed to Dale Goad for the following calls: South 66 deg 41 min 26 sec West, 70.70 feet to an existing iron rod, South 8 deg 44 min 21 sec East, 53.22 feet to a corner common with the property conveyed to Allen Goad and Dale Goad of record in Record Book 33, Page 252;

Thence with the westerly line of the property conveyed to the aforesaid property conveyed to Allen Goad and Dale Goad, South 8 deg 44 min 21 sec East, 102.26 feet to an existing iron rod at a corner common with Lot 1 on the Final Plat titled Charles Roy Aston, of record in Plat Book 25, Page 207;

Thence first with the northerly line of said Lot 1 and then with the northerly line of Lot 2 on Charles Roy Aston, South 67 deg 12 min 41 sec West, 625.73 feet to an existing iron rod;

Thence with the westerly line of said Lot 2, South 13 deg 39 min 13 sec East, 113.91 feet to an existing iron rod on the northerly line of the property conveyed to William G. Kirkpatrick, Sr. of record in Record Book 3245, Page 242;

Thence with the northerly line of the property conveyed to William G. Kirkpatrick, Sr., for the following calls: North 82 deg 40 min 41 sec West, 301.95 feet to an old cedar post, North 83 deg 41 min 55 sec West, 1072.33 feet to an existing iron rod on the easterly line of the property conveyed to William G. Kirkpatrick of record in Deed Book 256, Page 398;

Thence with the easterly line of William G. Kirkpatrick, North 7 deg 21 min 18 sec East, 537.52 feet to an existing iron rod at a corner common with the property conveyed to W. T. Wheeler JR. and Donna Marie J. Wheeler of record in Deed Book 256, Page 141;

Thence with the southerly line of said Wheeler for the following calls: South 83 deg 55 min 46 sec East, 681.03 feet to an existing iron rod, North 4 deg 01 min 51 sec East, 397.92 feet to an existing iron rod, North 79 deg 31 min 31 sec East, 1176.52 feet to the point of beginning; containing 1,594,206 ± sq. ft. or 36.598 acres more or less.

Tax Map Reference: Map 135 Parcels 32.00 and 32.01

EXHIBIT 'B'

The Preliminary Master Development Plan for Woods Crossing consists of a:

- Four (4) sheet plan, prepared by Dewey Engineering of Nashville, TN, dated November 19, 2020,

with the following conditions:

1. Add ten (10)-foot-wide front and rear P.U.D.E.s to the typical lot layout for corner lots.
2. Remove Lots 73 and 74 out of the 30' stream buffer as this buffer cannot be reduced or averaged as per the City of Gallatin Storm Water Ordinance.
3. Add the following note: "The Open Space Area northwest of Lot 104 shall be reserved right-of-way to provide flexibility for the future design of Ferguson Road."
4. Submit one (1) corrected digital copy (PDF & DWG) of the Preliminary Master Development Plan to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2102-8 of the City of Gallatin, Sumner County, Tennessee, rezoning two (2) parcels totaling 36.598 +/- acres from the RR–Rural Residential (County) and R40–Low Density Residential Districts to the R8 (PRD)–Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Woods Crossing.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning two (2) parcels totaling 36.598 +/- acres from the RR–Rural Residential (County) and R40–Low Density Residential Districts to the R8 (PRD)–Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Woods Crossing, located west of Woods Ferry Road and south of Nichols Lane at 1460 Woods Ferry Road; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On January 25, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2020-136 (ZONE-2020-0018).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING FEDERAL GRANT TO POLICE DEPARTMENT FOR
FY20 JUSTICE MENTAL HEALTH COLLABORATION PROGRAM

WHEREAS, The City of Gallatin applied for and was awarded a federal Justice Mental Health Collaboration Program three-year grant from the U. S. Department of Justice. The project will total \$582,999 over three years and will be an 80/20 grant during the first two years and 60/40 during the third year with an overall 75% Federal dollars and 25% City dollars;

AND WHEREAS, there will be an In-Kind Match of \$42,805 in Year 1, \$47,314 in Year 2, and \$54,420 in Year 3, for The City of Gallatin, resulting in no additional city funding required;

AND WHEREAS, over the three year period \$110,080 will already be included in the annual operating budget for salaries and benefits of personnel participating in the JMHCP;

NOW THEREFORE BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$438,461 is hereby appropriated to account 110-33190-244-1, Federal Justice Mental Health Grant revenue – Part 2;

AND BE IT FURTHER ORDAINED that \$328,381 is hereby appropriated as follows:

- \$147,712 going to account 11042110-256-244-1, Consultant's Services
- \$140,389 going to account 11042110-259-244-1, Other Professional Services
- \$32,280 going to account 11042110-312-244-1, Small Equipment
- \$8,000 going to account 11042110-285-244-1, Training;

AND BE IT FURTHER ORDAINED that this Ordinance shall take effect on final passage, the public welfare requiring such.

PASSED FIRST READING: March 2, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

02/23/2021

DEPARTMENT: Finance/Police

AGENDA #

SUBJECT:

Ordinance 02102-11 appropriating FY20 JMHCP grant funds

SUMMARY:

Ordinance appropriating \$438,461 from the US Dept of Justice Justice Mental Health Collaboration Program (JMHCP) grant, supporting cross-system collaboration to improve public safety responses and outcomes for individuals with mental illnesses (MI) or co-occurring mental illness and substance abuse (CMISA) who come into contact with the justice system. This program supports public safety efforts through partnerships with social services and other organizations. The DOJ funds will assist with placing (embedding) a social worker and/or mental health professional in the police department to train and assist officers during encounters with people in mental health crisis and will enhance responses to people with MI and CMISA.

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING FEDERAL GRANT TO POLICE DEPARTMENT FOR
FY20 COMPREHENSIVE OPIOID, STIMULANT, AND SUBSTANCE ABUSE SITE-BASED
PROGRAM (COSSAP)

WHEREAS, The City of Gallatin applied for and was awarded a federal Comprehensive Opioid, Stimulant, and Substance Abuse Site-Based Program three-year grant from the U. S. Department of Justice. The project will total \$892,085 over three years and will be a 100/0 grant using 100% Federal dollars and 0% City dollars;

AND WHEREAS, over the three year period \$190,329 will already be included in the annual operating budget for salaries and benefits of personnel participating in the COSSAP;

NOW THEREFORE BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$892,085 is hereby appropriated to account 110-33190-265, Federal COSSAP grant revenue;

AND BE IT FURTHER ORDAINED that \$701,756 is hereby appropriated as follows:

- \$212,579 going to account 11042110-256-265, Consultant's Services
- \$211,542 going to account 11042110-259-265, Other Professional Services
- \$ 10,206 going to account 11042110-280-265, Travel
- \$ 3,500 going to account 11042110-285-265, Training;
- \$ 10,900 going to account 11042110-310-265, Office Supplies
- \$ 13,029 going to account 11042110-312-265, Small Equipment
- \$240,000 going to account 11042110-320-265, Operating Supplies

AND BE IT FURTHER ORDAINED that this Ordinance shall take effect on final passage, the public welfare requiring such.

PASSED FIRST READING: March 2, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

02/23/2021

DEPARTMENT: **Finance/Police**

AGENDA #

SUBJECT:

Ordinance 02102-12 appropriating FY20 COSSAP grant funds

SUMMARY:

Ordinance appropriating \$892,085 from the US Dept of Justice Comprehensive Opioid, Simulant, and Substance Abuse Site-based Program (COSSAP) grant, to develop and implement a comprehensive law enforcement led program to combat substance abuse in the City of Gallatin and Sumner County through a Prevention and Response Officer (PRO) assigned to the Gallatin Police Department and a treatment clinician to be embedded in the Sumner County Jail.

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$255,900 FOR ADDITION TO FIRE HALL
STATION #3 FOR EMS QUARTERS AND VEHICLE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$255,900 is hereby appropriated to 110-36700-52-2, Contributions for FH#3 Addition, and to 11042220-922-52-2, Fire Department Operational Buildings FH#3, for funds received from Sumner County Government for the addition to Fire Hall #3 to house an EMS crew and vehicle; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: March 2, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

February 23, 2021

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Ordinance to appropriate funds from Sumner County for Fire Hall 3 expansion to house EMS crew/equipment

SUMMARY:

Ordinance appropriating \$255,900 from Sumner County Government for cost to expand Fire Hall #3 to house an EMS crew and ambulance.

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02102-14

**ORDINANCE APPROPRIATING \$20,188.23 FROM REVENUE RECEIVED
FROM INSURANCE FOR DAMAGE TO FIRE STATION #3**

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$20,188.23 is hereby appropriated from revenue received from the insurance payment on lightning damage to FIRE STATION #3, account #110-36350, to the following account:

Building Repair and Maintenance account #110-42220-266.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: March 2, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

February 23, 2021

DEPARTMENT: FIRE

AGENDA #

SUBJECT:

ORDINANCE APPROPRIATING \$20,188.23 FROM REVENUE RECEIVED FROM
INSURANCE FOR DAMAGE TO FIRE STATION #3

SUMMARY:

RECOMMENDATION:

ATTACHMENT:



Resolution
Ordinance



Correspondence
Contract



Bid Tabulation
Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE NO. 02102-15

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, AMENDING GALLATIN MUNICIPAL CODE, CHAPTER 2, ARTICLE III, DIVISION 3, PLANNING COMMISSION, SECTION 2-151, CREATION AND MEMBERSHIP AND SECTION 2-153, ADDITIONAL POWERS

WHEREAS, on April 2, 1974, the Tennessee State Planning Commission, in accordance with Tenn. Code Ann. § 13-202 (now § 13-3-102), granted a request made by the City of Gallatin and designated the Gallatin Municipal Planning Commission as the Gallatin Municipal - Regional Planning Commission for its future planning and for the purposes of controlling the zoning and subdivision of certain territory outside said City; and

WHEREAS, the Tennessee Department of Economic and Community Development now serves the role of the State Planning Commission, per Tenn. Code Ann., § 13-3-101(a); and

WHEREAS, in accordance with Tenn. Code Ann. § 13-3-102, the acceptance of a designation of a municipal planning commission as a regional planning commission is not obligatory, but is subject to the consent of the designated municipal planning commission; and

WHEREAS, Sumner County created and established a county planning commission, a county zoning resolution, county subdivision regulations, and a professional engineering and planning staff and, therefore, demonstrated the means of conserving or controlling the physical development of the territory located outside of the corporate limits of the City of Gallatin; and

WHEREAS, the Gallatin Regional-Municipal Planning Commission recommended deactivating its role and authority as a regional planning commission and dissolution of the Gallatin Planning Region with the intention of the City to establish a Municipal Planning Commission per Tennessee Code Annotated, § 13-4-101 et. seq.; and

WHEREAS, deactivating the regional planning authority is deemed desirable for the operation of planning and zoning administration of the City of Gallatin and the immediate surrounding area, and

WHEREAS, the Gallatin Zoning Ordinance, the Gallatin Subdivision Regulations and other regulations adopted and approved by the Gallatin Municipal - Regional Planning Commission shall remain applicable and the policy for development within the municipal boundaries until such time that these are amended to reflect the jurisdiction of the Gallatin Municipal Planning Commission, and

WHEREAS, in accordance with Tenn. Code Ann. § 13-3-102 and § 13-4-101, the City Council of the City of Gallatin requests the Commissioner of the Tennessee Department of Economic and Community Development, with the approval of the Local Government Planning Advisory Committee, to approve a resolution to deactivate the regional planning authority of the Gallatin Municipal - Regional Planning Commission and to dissolve the Gallatin Planning Region, and

WHEREAS, the Tennessee Department of Economic and Community Development Local Government Planning Advisory Committee intends to consider a resolution to deactivate the regional planning authority of the Gallatin Municipal - Regional Planning Commission and to dissolve the Gallatin Planning Region.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, pursuant to Tenn. Code Ann. § 13-4-101 et. seq. and based on approval of a resolution by the Local Government Planning Advisory Committee of the Tennessee Department of Economic and Community Development to deactivate the Gallatin Municipal – Regional Planning Commission and to dissolve the Gallatin Planning Region, the following sections of the Gallatin Municipal Code are hereby amended as follows:

Section 1. Chapter 2, Administration, Article III, Boards, Committees, Commissions, Division 3, Planning Commission.

(a) *Sec 2-151. Creation and Membership* is amended as follows:

Pursuant to the provision of T.C.A. ~~§13-501~~ §13-4-101 et. seq. there is hereby created a municipal planning commission, hereinafter referred to as the planning commission. The planning commission shall consist of seven (7) members. Two (2) of these members shall be the mayor and a councilmember selected by the city council. The other five (5) members shall be appointed by the mayor shall be for five (5) years each. The terms of the mayor and the councilmember selected by the council shall run concurrently with their terms of office. Any vacancy in an appointive membership shall be filled for the unexpired term by the mayor or council as described herein.

(b) *Sec 2-153. – Additional Powers* is amended by the following:

~~Having been designated as a regional planning commission, the~~ The municipal planning commission shall have the additional powers granted by, ~~and shall otherwise be governed by the provision of the state law relating to regional~~ municipal planning commissions.

Section 2. Application of the Zoning Ordinance and other advisory roles

Upon adoption of this ordinance the duties and responsibilities assigned to the Gallatin Municipal- Regional Planning Commission described in the Gallatin Zoning Ordinance, Gallatin Subdivision Regulations and other advisory roles is hereby assigned to the Gallatin Municipal Planning Commission.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this ordinance shall take effect immediately upon adoption of a resolution by the Tennessee Department of Economic and Community Development Local Government Planning Advisory Committee to deactivate the regional planning authority of the Gallatin Municipal - Regional Planning Commission and to dissolve the Gallatin Planning Region, the public welfare requiring such.

PASSED FIRST READING: March 2, 2021.

PASSED SECOND READING:

MAYOR PAIGE BROWN

03/16/21 City Council Meeting Agenda-Page 110

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 23, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2102-22 of the City of Gallatin, Sumner County, Tennessee, requesting the State Department of Economic and Community Development and the Local Government Planning Advisory Committee to deactivate the regional planning authority of the Gallatin Municipal Regional Planning Commission and to dissolve the Gallatin Planning Region and Ordinance No. O12102-15 amending the Gallatin Code of Ordinances related to the creation and membership of the Planning Commission and the additional powers of the Planning Commission and assigning all City's Zoning Ordinance, Subdivision Regulations and other planning related advisory responsibilities currently designated to the Gallatin Municipal Regional Planning Commission to be assigned to the Gallatin Municipal Planning Commission.

SUMMARY:

The resolution requests the State of Tennessee to change the composition of and the jurisdiction of the City's Planning Commission from a regional planning commission to the municipal planning commission. The membership of the planning commission will then be comprised only of persons residing in the city and appointed by the Mayor. The Ordinance will change the title of the planning commission and assign responsibilities described in the Zoning Ordinance and Subdivision regulations and other related functions to the Municipal Planning Commission. The City will still retain the ability to plan for areas outside of the City boundaries.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02102-15

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, AMENDING GALLATIN MUNICIPAL CODE, CHAPTER 2, ARTICLE III, DIVISION 3, PLANNING COMMISSION, SECTION 2-151, CREATION AND MEMBERSHIP AND SECTION 2-153, ADDITIONAL POWERS

WHEREAS, on April 2, 1974, the Tennessee State Planning Commission, in accordance with Tenn. Code Ann. § 13-202 (now § 13-3-102), granted a request made by the City of Gallatin and designated the Gallatin Municipal Planning Commission as the Gallatin Municipal - Regional Planning Commission for its future planning and for the purposes of controlling the zoning and subdivision of certain territory outside said City; and

WHEREAS, the Tennessee Department of Economic and Community Development now serves the role of the State Planning Commission, per Tenn. Code Ann., § 13-3-101(a); and

WHEREAS, in accordance with Tenn. Code Ann. § 13-3-102, the acceptance of a designation of a municipal planning commission as a regional planning commission is not obligatory, but is subject to the consent of the designated municipal planning commission; and

WHEREAS, Sumner County created and established a county planning commission, a county zoning resolution, county subdivision regulations, and a professional engineering and planning staff and, therefore, demonstrated the means of conserving or controlling the physical development of the territory located outside of the corporate limits of the City of Gallatin; and

WHEREAS, the Gallatin Regional-Municipal Planning Commission recommended deactivating its role and authority as a regional planning commission and dissolution of the Gallatin Planning Region with the intention of the City to establish a Municipal Planning Commission per Tennessee Code Annotated, § 13-4-101 et. seq.; and

WHEREAS, deactivating the regional planning authority is deemed desirable for the operation of planning and zoning administration of the City of Gallatin and the immediate surrounding area, and

WHEREAS, the Gallatin Zoning Ordinance, the Gallatin Subdivision Regulations and other regulations adopted and approved by the Gallatin Municipal - Regional Planning Commission shall remain applicable and the policy for development within the municipal boundaries until such time that these are amended to reflect the jurisdiction of the Gallatin Municipal Planning Commission, and

WHEREAS, in accordance with Tenn. Code Ann. § 13-3-102 and § 13-4-101, the City Council of the City of Gallatin requests the Commissioner of the Tennessee Department of Economic and Community Development, with the approval of the Local Government Planning Advisory Committee, to approve a resolution to deactivate the regional planning authority of the Gallatin Municipal - Regional Planning Commission and to dissolve the Gallatin Planning Region, and

WHEREAS, the Tennessee Department of Economic and Community Development Local Government Planning Advisory Committee intends to consider a resolution to deactivate the regional planning authority of the Gallatin Municipal - Regional Planning Commission and to dissolve the Gallatin Planning Region.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, pursuant to Tenn. Code Ann. § 13-4-101 et. seq. and based on approval of a resolution by the Local Government Planning Advisory Committee of the Tennessee Department of Economic and Community Development to deactivate the Gallatin Municipal – Regional Planning Commission and to dissolve the Gallatin Planning Region, the following sections of the Gallatin Municipal Code are hereby amended as follows:

Section 1. Chapter 2, Administration, Article III, Boards, Committees, Commissions, Division 3, Planning Commission.

- (a) *Sec 2-151. Creation and Membership* is amended as follows:

Pursuant to the provision of T.C.A. §13-4-101 et. seq. there is hereby created a municipal planning commission, hereinafter referred to as the planning commission. The planning commission shall consist of seven (7) members. Two (2) of these members shall be the mayor and a councilmember selected by the city council. The other five (5) members shall be appointed by the mayor shall be for five (5) years each. The terms of the mayor and the councilmember selected by the council shall run concurrently with their terms of office. Any vacancy in an appointive membership shall be filled for the unexpired term by the mayor or council as described herein.

- (b) *Sec 2-153. – Additional Powers* is amended by the following:

The municipal planning commission shall have the powers granted by state law relating to municipal planning commissions.

Section 2. Application of the Zoning Ordinance and other advisory roles

Upon adoption of this ordinance the duties and responsibilities assigned to the Gallatin Municipal- Regional Planning Commission described in the Gallatin Zoning Ordinance, Gallatin Subdivision Regulations and other advisory roles is hereby assigned to the Gallatin Municipal Planning Commission.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this ordinance shall take effect immediately upon adoption of a resolution by the Tennessee Department of Economic and Community Development Local Government Planning Advisory Committee to deactivate the regional planning authority of the Gallatin Municipal - Regional Planning Commission and to dissolve the Gallatin Planning Region, the public welfare requiring such.

PASSED FIRST READING: March 2, 2021

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

ORDINANCE NO. 02103-16

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR WINSTON PLACE, ON A 19.84 +/- ACRE PARCEL (TAX MAP 114, PARCEL 046.02), LOCATED EAST OF HIGHWAY 109 AND SOUTH OF RED RIVER ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for an Amended Preliminary Master Development Plan on a 19.84 +/- acre parcel (Tax Map 114, Parcel 046.02), located east of Highway 109 and south of Red River Road in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned MRO–Multiple Residential and Office, which permits single-family residential uses; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed Amended Preliminary Master Development Plan in GMRPC Resolution 2021-022; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Amended Preliminary Master Development Plan for Winston Place, on a 19.84 +/- acre parcel, zoned MRO–Multiple Residential and Office District, as described in Exhibit ‘A’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification with Amended Preliminary Master Development Plan for the property.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Description of PMDP with conditions

EXHIBIT 'A'

The Amended Preliminary Master Development Plan for Winston Place consists of an eight (8) sheet plan prepared by CSDG of Nashville, TN, with Project No. 20-100-01, dated January 11, 2021, with a revision date of March 1, 2021; and a one (1) sheet color plan rendering prepared by CSDG of Nashville, TN, with Project No. 20-100-01, dated February 18, 2021.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

March 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Ordinance No. O21Ø3-16 of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Winston Place, on a 19.84 +/- acre parcel, located east of Highway 109 and south of Red River Road.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Winston Place, on a 19.84 +/- acre parcel, located east of Highway 109 and south of Red River Road, consisting of 68 single-family lots, three (3) open space tracts, and four (4) public rights-of-way; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On February 22, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the Amended Preliminary Master Development Plan in Resolution 2021-022 (File No. MDP-2021-0134).

ATTACHMENT:



Resolution
Ordinance



Correspondence
Contract



Bid Tabulation
Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE NO. 02103-17

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 35.59 +/- ACRES, CONSISTING OF 26.16 +/- ACRES FROM THE R15-MEDIUM DENSITY RESIDENTIAL DISTRICT TO THE R-10 (PRD) – MEDIUM DENSITY PLANNED RESIDENTIAL DEVELOPMENT DISTRICT AND 9.43 +/- ACRES FROM THE R15-MEDIUM DENSITY RESIDENTIAL DISTRICT TO THE PNC-PLANNED NEIGHBORHOOD COMMERCIAL DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE HARSH PROPERTY, LOCATED NORTH OF CAIRO ROAD AND SOUTH OF HARTSVILLE PIKE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone 35.59 +/- acres with a Preliminary Master Development Plan for the Harsh Property, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Established Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2021-024; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 26.16 +/- acre portion of a parcel from the R15-Medium Density Residential District to the R-10 (PRD) Medium Density Planned Residential Development District and a 9.43 +/- acre portion of a parcel from the R-15-Medium Density Residential District to the PNC-Planned Neighborhood Commercial District, as described in Exhibit “A”, with a Preliminary Master Development Plan for the Harsh Property, totaling 35.59 +/- acres, as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

Legal Descriptions

R-15 Medium Density Residential to R-10 PRD – Medium Density Planned Residential Development 26.16 +/- Acres

Beginning at the north most property corner, said point being contiguous with the south right of way corner at the intersection of Hartsville Pike and Cottage Drive;

Thence, with the south right of way line of Cottage Drive South $28^{\circ}56'38''$ East, a distance of 1142.14 feet to a point being contiguous with the southeast property corner of parcel 22;

Thence, leaving said property corner north $53^{\circ}13'45''$ east, a distance of 444.32 feet to a point lying on the southern boundary line of the Tine Cup LLC property;

Thence, along said Tin Cup LLD property south $27^{\circ}00'46''$ east, a distance of 299.57 feet to a point being contiguous with the south east property corner of said property;

Thence, leaving said property corner the following two (2) calls:

South $53^{\circ}22'07''$ west, a distance of 500.84 feet to a point;

Along a curve to the right having an arc length 683.82 feet, having a radius of 2716.00 feet, a delta angle of $14^{\circ}25'32''$, and with a chord bearing south $60^{\circ}34'53''$ west, a distance of 682.02 feet to a point lying on the north right of way line of Cairo Road;

Thence, with the north right of way line of Cairo Road north $66^{\circ}17'27''$ west, a distance of 619.30 feet to a point;

Thence, leaving said right of way along a line across the Harsh property the following five (5) calls:

North $23^{\circ}42'33''$ east, a distance of 309.84 feet to a point;

Along a curve to the right having an arc length 513.61 feet, having a radius of 1170.00 feet, a delta angle of $25^{\circ}09'07''$, and with a chord bearing north $36^{\circ}17'07''$ east, a distance of 509.50 feet to a point;

North $28^{\circ}56'38''$ west, a distance of 322.54 feet to a point;

Along a curve to the left having an arc length of 77.12 feet, having a radius of 254.61 feet, a delta angle of $17^{\circ}21'17''$, and with a chord bearing north $37^{\circ}36'29''$ west, 76.83 feet to a point;

North $46^{\circ}16'20''$ west, a distance of 27.03 feet to a point lying on the south right of way line of Hartsville Pike;

Thence, with said right of way line the following two (2) calls;

Along a curve to the left having an arc length of 214.91 feet, having a radius of 1147.53 feet, a delta angle of $10^{\circ}43'49''$, and with a chord bearing north $49^{\circ}05'09''$ east, 214.60 feet to a point;

North $43^{\circ}43'40''$ east, a distance of 943.20 feet to the point of beginning.

Containing an area of 1,139,377 square feet or 26.16 acres more or less.

R-15 Medium Density Residential to PNC – Planned Neighborhood Commercial
9.43 +/- Acres

Beginning at a point lying on the south right of way line of Hartsville Pike said point being contiguous with the north west property corner of the Harsh property;

Thence with said right of way line the following two (2) calls:

Along a curve to the left having an arc length of 214.91 feet, having a radius of 1147.53 feet, a delta angle of $10^{\circ}43'49''$, and with a chord bearing north $49^{\circ}05'09''$ east, 214.60 feet to a point;

North $43^{\circ}43'40''$ east, a distance of 478.92 feet to a point;

Thence, leaving said right of way line along a line across the Harsh property the following five (5) calls:

South $46^{\circ}16'20''$ east, a distance of 27.03 feet to a point;

Along a curve to the right having an arc length of 77.12 feet, having a radius of 254.61 feet, a delta angle of $17^{\circ}21'17''$, and with a chord bearing south $37^{\circ}36'29''$ east, 76.83 feet to a point;

South $28^{\circ}56'38''$ east, a distance of 322.54 feet to a point;

Along a curve to the left having an arc length 513.61 feet, having a radius of 1170.00 feet, a delta angle of $25^{\circ}09'07''$, and with a chord bearing south $36^{\circ}17'07''$ west, a distance of 509.50 feet to a point;

South $23^{\circ}42'33''$ west, a distance of 309.84 feet to appoint lying on the north right of way line of Cairo Road;

Thence, with the north right of way line of Cairo Road north $66^{\circ}17'27''$ west a distance of 367.49 feet to a point;

Thence, leaving said right of way along a line across the Harsh property north $6^{\circ}20'21''$ east, a distance of 499.88 feet to the point of beginning.

Containing an area of 410,894.83 square feet or 9.43 acres more or less.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for the Harsh Property, consisting of an eight (8) sheet plan, prepared by CSDG of Nashville, TN, with job number 20-113-01, dated January 11, 2021, with a final revision date of March 1, 2021, with the following conditions:

1. Add a plan note indicating that although allowed by TDEC, a 30' wide permeant water quality stream buffer cannot be reduced by averaging in Gallatin. Only a permanent 60' wide buffer can be averaged down to a 30' minimum width as per Article 6 - Section (9) of the Gallatin Storm Water Ordinance.
2. Make the Buffer Easement in the rear of Lots 1-24 also a PUDE.
3. Submit revised digital files consisting of the PDF and AutoCAD (dwg.) drawings of the Preliminary Master Development Plan to the Planning Department addressing all conditions of approval.
4. Add a plan note indicating that Commercial Activities on the PNC-zoned properties are limited to the Commercial Activities permitted in the MRO zone district.
5. Add a plan note indicating that no vinyl siding shall be used.
6. Add a plan note indicating that the front façade of no less than 50% of the homes shall be constructed with at least 35% brick/stone materials.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MARCH 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2103-17 of the City of Gallatin, Sumner County, Tennessee, rezoning a 35.59 +/- acre parcel from the R-15 Medium Density Residential District to the PNC-Planned Neighborhood Commercial District and the R-10 (PRD) - Medium Density Planned Residential Development District with a Preliminary Master Development Plan for the Harsh Property.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 26.16 +/- acre portion of a parcel from the R15-Medium Density Residential District to the R-10 (PRD) Medium Density Planned Residential Development District and a 9.43 +/- acre portion of a parcel from the R-15-Medium Density Residential District to the PNC-Planned Neighborhood Commercial District with a Preliminary Master Development Plan for the Harsh Property, located north of Cairo Road and south of Hartsville Pike; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On February 22, 2021, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2021-024 (ZONE-2021-0036).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02103-18

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 44.79 +/- ACRES AND AN ADJACENT 2.04 +/- ACRE SEGMENT OF ABANDONED CSX RAILROAD RIGHT-OF-WAY FROM THE RR-RURAL RESIDENTIAL (COUNTY) DISTRICT TO R-8 PRD – MEDIUM DENSITY RESIDENTIAL PLANNED RESIDENTIAL DEVELOPMENT DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR BLEDSOE SPRINGS AND ZONING A 1.06 +/- ACRE PORTION OF ABANDONED CSX RAILROAD FROM RR-RURAL RESIDENTIAL (COUNTY) DISTRICT TO IR-INDUSTRIAL RESTRICTIVE DISTRICT, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property and the City of Gallatin submitted an application to rezone 44.79 +/- acres and a 3.1 +/- acre portion of the adjacent abandoned railroad right-of-way with a Preliminary Master Development Plan for Bledsoe Springs, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Established Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and did not recommend approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2021-029; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. §13-7-203.; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 44.79 +/- acres and a 2.04 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR - Rural Residential District (County) to the R-8 PRD – Medium Density Residential Planned Residential Development District and rezone 1.06 +/- acre portion of abandoned railroad right-of-way from the RR-Rural Residential District (County) to the IR-Industrial Restrictive District, as described in Exhibit ‘A’ and approves the Preliminary Master Development Plan for Bledsoe Springs as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description

Exhibit B: Description of PMDP

EXHIBIT 'A'

PORTER ANNEXATION REQUEST – 46.83 +/- ACRES
RR-Rural Residential to R-8 (PRD) – Medium Density Planned Residential Development

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

The property described herein is located in the 2nd Civil District of Sumner County, Tennessee; situated on the north side of Tennessee State Highway 25 (also known as Hartsville Pike); being located across the street from the intersections of Robertson Road and Carolyn Lane, being Job Number 20061TB as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 29th day of April, 2020 in detail as follows:

Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southeast corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tellos Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eights inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eights inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center

of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the left having a delta of 1 degree 31 minutes 01 second, a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eighths inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eighths inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eighths inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane

coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628
1768 New Highway 52, Westmoreland, TN 37186

**Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//015.00,
2.04 (+/-) Acres**

Description of property at: Gallatin, Sumner County,
TN To: TOMMY PORTER AND JEFF PORTER
CSXT Deed File No.: 502518

BEING located in the 2nd Civil District, Sumner County, Tennessee, southeast of Gateway Drive, and more particularly described as follows:

BEGINNING at an iron rod southeast of Gateway Drive, same being the northernmost corner of this property, the easternmost corner of Tract #1 of the railroad property (2.06 acres as per survey of same date), and in the line of the City of Gallatin (RB 3983, PG 425 and RB 3043, PG 249, ROSCT); thence with line of City of Gallatin South 47 degrees 01 minute 22 seconds East 33.02 feet to an iron rod; thence with line of Tommy Huston Porter and Jeffrey Todd Porter (RB 3638, PG 465 and RB 3638, PG 462, ROSCT) South 41 degrees 25 minutes 12 seconds West 1696.90 feet to an iron rod, same being point of curvature of a curve proceeding clockwise, having a deflection angle of 03 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent length of 351.00 feet, and a chord of South 43 degrees 09 minutes 11 seconds West 701.67 feet; thence along said curve an arc length of 701.78 feet to an iron rod, same being point of curvature of a curve proceeding clockwise, having a deflection angle of 01 degree 31 minutes 09 seconds, a radius of 10,651.31 feet, a tangent length of 141.21 feet, and a chord of South 45 degrees 38 minutes 45 seconds West 282.40 feet; thence along said curve an arc length of 282.41 feet to an iron rod; thence with line of James G. Alexander (RB 1892, PG 265, ROSCT) North 86 degrees 26 minutes 42 seconds West 45.08 feet to an iron rod; thence with line of said Tract #1 along a curve proceeding counter-clockwise, having a deflection angle of 01 degree 41 minutes 04 seconds, a radius of 10,618.31 feet, a tangent length of 156.10 feet, and a chord of North 45 degrees 43 minutes 43 seconds East 312.17 feet; thence along said curve an arc length of 312.18 feet to an iron rod, same being point of

curvature of a curve proceeding counter-clockwise, having a deflection angle of 03 degrees 27 minutes 59 seconds, a radius of 11,566.74 feet, a tangent length of 350.00 feet, and a chord of North 43 degrees 09 minutes 11 seconds East 699.68 feet; thence along said curve an arc length of 697.78 feet to an iron rod; thence North 41 degrees 25 minutes 11 seconds East 1697.79 feet to the point of beginning containing 2.04 acres more or less by survey by Jim Carman, Registered Land Surveyor, Tennessee Number 2053, address 150 Middle Fork Road, Hartsville, Tennessee, 37074, dated March 23, 2020.

Being the east 33 feet of the former corridor of rail road shown as Parcel No. 7 on the Louisville and Nashville Railroad Company Right of Way and Track Maps Scottsville Branch, V.9./2.(vl 1477) and a portion of Parcel No.I on V.9./3 (vl 14 78), both of which are dated June 30 1917.

On December 29, 1982 the Louisville and Nashville Railroad Company merged into Seaboard Coast Line Railroad Company and the name of the surviving corporation changed to Seaboard System Railroad, Inc. On July 1, 1986, Seaboard System Railroad, Inc. changed its name to CSX Transportation, Inc.

CITY OF GALLATIN ANNEXATION REQUEST – 1.06 +/- ACRES
RR-Rural Residential District to IR-Industrial Restrictive District

**Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//103.00 (City-owned),
0.59 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at an existing ½” iron pin monument capped “TN 1571” in the westerly right-of- way of the CSX Transportation Railroad, said monument being the northeasterly corner of the City of Gallatin Property as recorded in Record Book 231, Page 451 in the Register’s Office of Sumner County, Tennessee;

Thence leaving said City of Gallatin Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, S 88°44'08" E a distance of 44.16' to a point, which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way the following two calls: S 42°54'33" W a distance of 518.79' to a point;

Thence with a curve turning to the right with an arc length of 275.66', with a radius of 11566.74', with a chord bearing of S 43°35'31" W, with a chord length of 275.66', to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, N 51°13'40" W a distance of 33.15' to an existing 5/8” iron pin monument, said monument being the easterly line of the City of Gallatin Property;

Thence continuing along with the westerly right-of-way of the CSX Transportation Railroad and easterly line of the City of Gallatin Property the following two calls: with a curve turning to the left with an arc length of 278.06', with a radius of 11533.74', with a chord bearing of N 43°35'59" E, with a chord length of 278.05', to a point;

Thence N 42°54'33" E a distance of 489.44' an existing ½" iron pin monument capped "TN 1571", which is the point of beginning, having an area of 25,772 square feet, 0.59 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

**Legal Description – RR Right-of-way Adjacent to Gateway Drive (City-owned ROW),
0.47 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at a point in the easterly property line of the City of Gallatin Property as recorded in Record Book 3120, Page 229 in the Register's Office of Sumner County, Tennessee, said point also being the easterly right-of-way of Gateway Drive and the westerly right-of-way of the CSX Transportation Railroad;

Thence leaving said easterly property line of the City of Gallatin Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, S 46°58'37" E a distance of 33.00' to an existing ½" iron pin monument capped "RLS 2053" which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way, S 42°54'33" W a distance of 611.22' to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, N 79°18'26" W a distance of 39.01' to a point, said point being the easterly line of the City of Gallatin Property and easterly right-of-way of Gateway Drive;

Thence continuing along with easterly line of the City of Gallatin Property and the easterly right-of-way of Gateway Drive and the westerly right-of-way of the CSX Transportation Railroad, N 42°54'33" E a distance of 632.08' to a point, which is the point of beginning, having an area of 20,514 square feet, 0.47 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

EXHIBIT 'B'

The rezoning for the Bledsoe Springs property shall be substantially consistent with the Preliminary Master Development Plan for Bledsoe Springs, consisting of a twelve (12) sheet plan, prepared by GreenLID Design of Gallatin, TN, with project number 20.047G, dated January 13, 2021, with a final revision date of March 1, 2021, with the following conditions:

1. Correctly show the city limits boundaries on the vicinity map on Sheet C1.0.
2. Place all bufferyards within labeled open space tracts. Contiguous open space tracts shall be combined into one tract (Ex. Open Space E, Open Space J, and adjacent bufferyard can be one open space tract).
3. Show Hartsville Pike as within city limits on all sheets where visible.
4. Indicate on architecture exhibit that all homes will be a minimum of 70% brick/stone and cementitious materials (per communication with the applicant).
5. Provide adequate easements for drainage structures as required.
6. The developer shall acquire any necessary easements for GDE to extend facilities from Commerce Way to the project site.
7. Submit revised digital files consisting of the PDF and AutoCAD (dwg.) drawings of the Preliminary Master Development Plan to the Planning Department addressing all conditions of approval.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MARCH 9, 2021

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O21Ø3-18 of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.04 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR – Rural Residential (County) District to the R-8 PRD – Medium Density Planned Residential Development District with a Preliminary Master Development Plan for Bledsoe Springs and zoning a 1.06 +/- acre portion of an abandoned railroad right-of-way from RR-Rural Residential (County) District to the IR-Industrial Restrictive District.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.04 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR – Rural Residential (County) District to the R-8 PRD – Medium Density Planned Residential Development District with a Preliminary Master Development Plan for Bledsoe Springs and zoning a 1.06 +/- acre portion of an abandoned railroad right-of-way from RR-Rural Residential (County) District to the IR-Industrial Restrictive District, located north of Hartsville Pike and east of Airport Road; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On February 22, 2021, the Gallatin Municipal-Regional Planning Commission did not recommend approval of GMRPC Resolution No. 2021-029 for the rezoning and master development plan (ZONE-2021-0030).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$53,355.68 FROM MIRACLE PARK DONATIONS
REVENUE FUND TO MIRACLE PARK EXPENSE FUND

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$53,355.68 is hereby appropriated from the Miracle Park Donations, revenue account #110-36700-211, to the Parks and Recreation Miracle Park, expense account #110-44720-937-211, for work on the Miracle Park complex.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

03/09/2021

DEPARTMENT: Parks and Recreation

AGENDA #

SUBJECT:

Ordinance appropriating funds for Miracle Park.

SUMMARY:

Ordinance appropriating funds from Miracle Park Donations to Miracle Park expense account.

RECOMMENDATION:

Approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2103-25

**RESOLUTION ACCEPTING PUBLIC IMPROVEMENTS BY THE CITY OF
GALLATIN, TENNESSEE
REVERE AT HIDDEN CREEK**

WHEREAS, THE CITY OF GALLATIN PLANNING COMMISSION has recommended acceptance by the City of Gallatin of the public improvements in the development hereinafter named Revere at Hidden Creek; and

WHEREAS, THE CITY OF GALLATIN ENGINEERING DIVISION hereby certifies that the public drainage infrastructure, rights-of-way, and public easements in Revere at Hidden Creek have been satisfactorily completed and have been installed in accordance with the approved plans and specifications and that there has been full compliance with the City of Gallatin Subdivision Regulations; and

WHEREAS, THE CITY OF GALLATIN PUBLIC UTILITIES DEPARTMENT hereby certifies that the public utility improvements in the development described hereafter have been satisfactorily completed and have been installed in accordance with the approved plans and specifications and that there has been full compliance with the City of Gallatin Subdivision Regulations and City of Gallatin Municipal Code.

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, pursuant to Chapter 3, Section 3-105, et seq. of the Subdivision Regulations of Gallatin, Tennessee, that the public drainage infrastructure, rights-of way, public easements, and public utility improvements, as described in Revere at Hidden Creek, Plat Book 30, Page(s) 133, recorded on July 6, 2017 in the Register's Office for Sumner County, are hereby accepted by the City of Gallatin, Tennessee.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this Resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

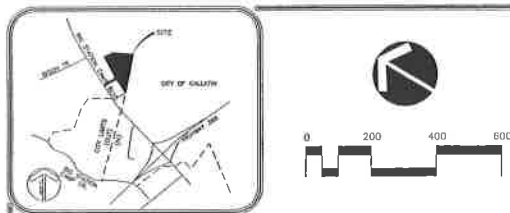
MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY



- GENERAL NOTES**
1. THE PURPOSE OF THIS PLAT IS TO CREATE A 3 LOT SUBDIVISION AND DEDICATE RIGHT-OF-WAY AND EASEMENTS.
 2. BEARINGS AS SHOWN HEREON ARE BASED ON TENNESSEE COORDINATE SYSTEM OF 1983.
 3. BY SCALED MAP LOCATION AND GRAPHIC PLOTTING ONLY, THIS PROPERTY LIES WITHIN FLOOD ZONE "X", AS DESIGNATED ON CURRENT FEDERAL EMERGENCY MANAGEMENT AGENCY MAP NO. 47185C0400, WITH A REVISION DATE OF APRIL 17, 2012, WHICH MAKES UP A PART OF THE NATIONAL FLOOD INSURANCE ADMINISTRATION REPORT. COMMUNITY NO. 470183, PANEL NO. 400, SHEET 6, WHICH IS THE CURRENT FLOOD INSURANCE RATE MAP FOR THE COMMUNITY IN WHICH SAID PREMISES IS SITUATED, SAID MAP DEFINES ZONE "X" UNDER "OTHER AREAS" AS AREAS DETERMINED TO BE OUTSIDE THE 0.2% ANNUAL CHANCE FLOODPLAIN.
 4. THE ZONING FOR THIS PROPERTY IS MU (MIXED USE), MINIMUM YARD REQUIREMENTS ARE DETERMINED BY THE CITY OF GALLATIN ZONING ORDINANCE.
 5. ALL SIDEWALKS ALONG SPRINGDALE LANE ARE 6 AND 8 FEET IN WIDTH. ALL SIDEWALKS ALONG SWEETBRIAR WAY ARE 5 FEET IN WIDTH.
 6. ALL LOTS ARE TO ACCESS FROM PUBLIC R/W.
 7. THE PLAT IS PARCEL NUMBER 6.07 AS SHOWN ON SLAINER COUNTY PROPERTY MAP NUMBER 137, AND IS THE SAME PROPERTY CONNECTED TO HEREIN AT HIDDEN CREEK, LLC FROM JAMES SHAWNEE FRANKLIN OF RECORD IN DEED BOOK 4207, PAGE 225, REGISTER'S OFFICE FOR SUMNER COUNTY, TENNESSEE.
 8. THIS SURVEYOR HAS NOT PHYSICALLY LOCATED THE UNDERGROUND UTILITIES, ABOVE GROUND AND UNDERGROUND UTILITIES SHOWN WERE TAKEN FROM MISCELLANEOUS APPLICANCES AT THE SITE, PUBLIC RECORDS AND/OR MAPS PREPARED BY OTHERS. THE SURVEYOR MAKES NO GUARANTEE THAT THE UNDERGROUND UTILITIES SHOWN CORRESPOND TO THE ACTUAL UTILITIES IN THE AREA. EITHER BY SERVICE OR ABANDONED. THE SURVEYOR FURTHER DOES NOT WARRANT THAT THE UNDERGROUND UTILITIES SHOWN ARE IN THE EXACT LOCATION INDICATED. THEREFORE, RELIANCE UPON THE TYPE, SIZE AND LOCATION OF UTILITIES SHOWN SHOULD BE DONE SO WITH THIS CIRCUMSTANCE COMPOUNDED. DETAILED VERIFICATION OF EXISTENCE, LOCATION AND DEPTH SHOULD ALSO BE MADE PRIOR TO ANY DECISION RELATIVE THEREOF IS MADE. AVAILABILITY AND COST OF SERVICE SHOULD BE CONFIRMED WITH THE APPROPRIATE UTILITY COMPANY. IN TENNESSEE, IT IS A REQUIREMENT, PER THE UNDERGROUND UTILITY DAMAGE PREVENTION ACT, THAT ANYONE WHO ENGAGES IN EXCAVATION, MUST NOTIFY ALL KNOWN UNDERGROUND UTILITY OWNERS, NO LESS THAN (3) THREE HOURS MORE THAN (10) TEN WORKING DAYS PRIOR TO THE DATE OF THEIR INTENT TO EXCAVATE AND ALSO TO AVOID ANY POSSIBLE INJURY OR CORRELATE, TENNESSEE ONLY CALL 1-815-350-1987 OR 1-800-351-1111.
 9. EXISTING USE OF THIS PROPERTY IS VACANT, PROPOSED USE OF THIS PROPERTY IS RESIDENTIAL, MULTI-FAMILY DWELLINGS.
 10. ALL EASEMENTS SHALL BE CONSIDERED "PUBLIC" IN ACCORDANCE TO THE GALLATIN SUBDIVISION REGULATIONS.
 11. THE PAYMENT WIDTH OF SPRINGDALE LANE IS 35 FEET. THE PAYMENT WIDTH OF SWEETBRIAR WAY IS 25 FEET. THE PAYMENT WIDTH OF BIC STATION CAMP ROAD VARIES.
 12. ALL PROPOSED DETENTION POND DRAINAGE EASEMENTS SHALL HAVE UNRESTRICTED ACCESS TO PUBLIC RIGHT-OF-WAYS FOR MAINTENANCE, AS REQUIRED.
 13. UTILITY EASEMENTS WILL BE COVERED ON THE UTILITIES AS INSTALLED.
 14. THIS PLAT IS SUBJECT TO THE STORMWATER MAINTENANCE AGREEMENT AS INCORPORATED IN BK 4222, PG. 201, REGISTER'S OFFICE, SUMNER COUNTY, TN.

- LEGEND**
- CONCRETE MONUMENT (NEW) — S — SANITARY SEWER LINE
 - IRON ROD (NEW) — W — WATER LINE
 - P.U.D.E. PUBLIC UTILITY AND DRAINAGE EASEMENT
 - POSCA REGISTER'S OFFICE FOR SUMNER COUNTY, TENNESSEE
 - STREET ADDRESS
 - LOT NUMBER

CURVE TABLE

CURVE	RADIUS	LENGTH	DELTA	TANGENT	CHORD	CHD BEC.
C1	569.08'	193.88'	49°42'23"	293.50'	438.32'	613.37'±
C2	569.08'	148.88'	36°59'29"	25.27'	148.43'	101.37'±
C3	631.00'	520.72'	47°16'57"	278.22'	506.07'	534.90'±
C4	25.00'	37.40'	88°51'25"	23.25'	34.65'	354.07'±
C5	25.00'	40.18'	82°56'44"	23.94'	38.00'	338.53'±
C6	631.00'	188.18'	15°02'57"	82.58'	155.71'	501.77'±
C7	25.00'	35.40'	70°46'56"	19.80'	31.84'	322.08'±
C8	25.00'	34.35'	72°48'56"	20.54'	31.74'	387.29'±

LINE TABLE

LINE	BEARING	DISTANCE
L1	N81°22'14"W	89.85'
L2	N58°28'34"W	350.07'
L3	N58°28'34"W	121.21'
L4	N09°10'07"E	112.14'
L5	N05°55'18"W	563.13'
L6	S50°28'34"W	350.07'
L7	S50°28'34"W	123.15'
L8	N02°56'41"W	127.41'
L9	S07°56'41"W	121.83'
L10	S02°58'18"E	344.07'
L11	S08°28'34"W	325.09'
L12	S08°28'34"W	327.07'



PHASES 1 AND 2 PROPERTY ADDRESSES

LOT	ADDRESS
1	3010 SWEET BIRCH WAY
2	3011 SWEET BIRCH WAY
3	2050 SPRINGDALE AVENUE
4	2051 SPRINGDALE AVENUE
5	2052 SPRINGDALE AVENUE
6	2146 SPRINGDALE AVENUE
7	2147 SPRINGDALE AVENUE

AREA SUMMARY

AREA	AREA
LOT 1	1,365,114 SQ. FT.
LOT 2	1,365,114 SQ. FT.
LOT 3	1,365,114 SQ. FT.
TOTAL	4,095,342 SQ. FT.

TOTAL AREA = 1,365,114 SQUARE FEET OR 31.34 ACRES ±

CERTIFICATE OF OWNERSHIP AND DEDICATION

I, HEREBY CERTIFY THAT I AM THE OWNER OF THE PROPERTY SHOWN AND DESCRIBED HEREON AS EXISTING IN DEED BOOK 4207, PAGE 225, SUMNER COUNTY, TENNESSEE, AND THAT I HEREBY ACCEPT THIS PLAN OF SUBDIVISION WITH MY PUBLIC EASEMENTS, EASEMENTS AND OTHER RIGHTS HAVE BEEN FILED AS REQUIRED BY THE GALLATIN MUNICIPAL-REGIONAL PLANNING COMMISSION.

James Shawnee Franklin
Harley I. Gross
 President

CERTIFICATE OF ACCURACY

I HEREBY CERTIFY THAT THE PLAN SHOWN AND DESCRIBED HEREON IS A TRUE AND CORRECT SURVEY TO THE ACCURACY REQUIRED BY GALLATIN MUNICIPAL-REGIONAL PLANNING COMMISSION AND THAT THE MEASUREMENTS HAVE BEEN PLACED, AS SHOWN HEREON TO THE SATISFACTION OF THE MEASUREMENTS AND THE PLAT IS CORRECT TO THE ACCURACY OF A 1/4" = 1' SURVEY WITH A HARD OF PRECISION THAT IS EXCEEDED 1/4" = 1' SURVEY.

James Shawnee Franklin
 Surveyor

CERTIFICATE OF APPROVAL OF UTILITY SYSTEMS

I HEREBY CERTIFY THAT THE FOLLOWING UTILITY SYSTEMS SHOWN ON THIS PLAN, SUBDIVISION PLAN, HAVE BEEN REVIEWED BY THE GALLATIN MUNICIPAL-REGIONAL PLANNING COMMISSION, AND THAT A PERFORMANCE SAFETY AND RISK ANALYSIS HAS BEEN PERFORMED WITHIN THE UTILITY SYSTEMS WHICH WILL GUARANTEE SAID INSTALLATION.

James Shawnee Franklin
 Surveyor

CERTIFICATE OF APPROVAL OF RECORDS FOR COMPLETION OF RECORDS

I HEREBY CERTIFY THAT ALL REQUIRED RECORDS ON THIS PLAN, SUBDIVISION PLAN, HAVE BEEN REVIEWED BY AN ACCEPTABLE ENGINEER AND APPROVED BY THE SUPERVISOR OF THE GALLATIN MUNICIPAL-REGIONAL PLANNING COMMISSION, AND THAT A PERFORMANCE SAFETY AND RISK ANALYSIS HAS BEEN PERFORMED WITHIN THE UTILITY SYSTEMS WHICH WILL GUARANTEE SAID INSTALLATION.

James Shawnee Franklin
 Surveyor

CERTIFICATE OF APPROVAL FOR RECORDING

I HEREBY CERTIFY THAT THE SUBDIVISION PLAN SHOWN HEREON HAS BEEN FOUND TO COMPLY WITH THE GALLATIN MUNICIPAL-REGIONAL PLANNING COMMISSION, AND THAT IT HAS BEEN APPROVED FOR RECORDING IN THE OFFICE OF THE COUNTY RECORDS.

James Shawnee Franklin
 Surveyor

FINAL PLAT

REVERE AT HIDDEN CREEK

FOURTH CIVIL DISTRICT OF SUMNER COUNTY
 CITY OF GALLATIN, TENNESSEE

REV. DATE: FEBRUARY 28, 2017
 REV. DATE: FEBRUARY 13, 2017
 DATE: DECEMBER 6, 2016
 400 N. MAIN ST. #200, N. 1000

RAGAN-SMITH

LAND PLANNERS • CIVIL ENGINEERS
 ARCHITECTS • SURVEYORS
 215 WOODLAND ST. #100, N. 1000, N. 1000
 (615) 949-3232
 EMAIL: RAGAN@RAGAN-SMITH.COM

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

March 09, 2021

DEPARTMENT: **Engineering**

AGENDA # 9

SUBJECT:

Resolution Accepting Public Improvements for Revere at Hidden Creek

SUMMARY:

The Planning Commission approved the GMRPC Resolution on February 22, 2021, to accept the public improvements for Revere at Hidden Creek.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R21Ø3-26

**RESOLUTION AUTHORIZING THE MAYOR TO SIGN
CONTRACT WITH SCOTTY'S CONTRACTING FOR PHASE I OF THE
POLICE/FIRE TRAINING FACILITY**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor of Gallatin is authorized to sign and execute contract documents with Scotty's Contracting for a contract amount of \$205,781.50 for mass grading of Police/Fire Training Facility.

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

02/04/2020

City of Gallatin

1.0 Introduction

The City of Gallatin is seeking bids for **Gallatin Training Facility Mass Grading**. Bids are to be submitted no later than **February 25th, 2021 @ 2:00pm** in a sealed envelope clearly identified "Gallatin Training Facility Mass Grading" enclosed, bid due date and time marked on outside of envelope. Any questions please contact J.R. Smith @ 615-451-5899.

1.1 Scope of Work

Awarded contractor shall provide all services as outlined in "5.0 Mass Grading Scope and Specifications" to the specifications outlined.

2.0 Vendor Requirements

- Vendor must complete attached price sheet.
- Vendor must maintain insurance requirements.
- Price good for 6 months.
- Scope of work must be completed in eight months from date of signed contract.
- Performance bond in the amount of 110% of awarded contract bid price provided prior to execution of contract.
- Bid bond in the amount of 5% of Project Total bid price provided with bid submission.

3.0 Evaluation of Proposals

The City of Gallatin will award the contract to lowest responsible and responsive bidder meeting specifications, quality, and performance standards pursuant to the Municipal Purchasing Act of 1983. Response will be based on the following factors;

- Completeness of response
- Cost
- Vendor/contractor track record, including references
- Quality of service and product performance

4.0 Contract Award

The City of Gallatin reserves the right to reject any or all proposals and to waive any informality found therein. The City of Gallatin will award a contract based on evaluations described above.

5.0 Mass Grading Scope and Specifications

Description. This work shall consist of the mass grading and associated activities as identified in the Gallatin Training Facility construction plans in accordance with the applicable provisions in the plans and in contract documents. Project is broken into two separate phases, phase 1 and phase 2. Contract may include performance of all, some, or none of the items identified below for each specific phase as specified by the City upon award of bid. Specifically, the following items and provisions will be the contractor's responsibility:

- Installation of appropriate EPSC measures as outlined in the construction plans, approved project SWPPP, and as required to remain in compliance with the sites NOC and any other relevant environmental permits. Work shall be done in accordance to TDOT 2021 Standard Specifications (209) Contractor is responsible for maintenance of EPSC during project duration, and bid price for individual measures shall include maintenance cost. For "NAG" items, seeding of areas to be matted shall be included in price.
- Clearing and grubbing of the site. Vegetative materials shall be mulched, burned, or removed in a manner compliant with City of Gallatin regulations and appropriate permit(s) obtained. This work includes removal of the old barn located on site. Work shall be done in accordance to TDOT 2021 Standard Specifications (201.03)
- Mass grading of site, including the cutting and filling to the elevations as shown in the construction plans. Work shall be done in accordance to TDOT 2021 Standard Specifications (203) **Note specifics referencing rock excavation below under "Method of Measurement and Payment"*.
 - Grading shall be performed to within 6" or closer of final grading plan.
 - Contractor is responsible for positive drainage in all areas as shown on grading plan.
 - Contractor is responsible for removal of any excess excavation from the site.
 - In the event only one phase of grading is done, the area in the other phase can be used for permanent removal site of excess excavation. Disposal location and EPSC measures shall be agreed upon between City and Contractor prior to disposal.
 - Contractor is responsible for providing any borrow material needed.
 - In the event only one phase of grading is done, the area in the other phase can be used to obtain needed borrow material. Borrow location and EPSC measures shall be agreed upon between City and Contractor prior to borrow activities.
 - Contractor is responsible for stabilization of all slopes and disturbed areas, with the exception of paved areas. This stabilization will be paid through the EPSC measures.
- Bio and Detention Areas as shown on construction plans, including installation of stone, underdrains, geotextile and filter medias.

- Any survey layout needed for outlined activities.

The City of Gallatin will be responsible through in-house forces and/or separate contracts for the following items:

- All Drainage infrastructure as shown on construction plans, with the exception of the Bio Areas materials, underdrains and drainage ditches.
 - Contractor shall coordinate with City and give adequate time for installation of drainage infrastructure. Prior to drainage infrastructure going in, contractor must have grading to within 2.5' from top of pipe elevation and provide access for backhoe to areas drainage pipe or structure is to be placed.
- All road and parking surfaces. Once grade of roadways and parking area is established to within 10" of final surface, and passes a proof roll (loaded tandem axle 20 cy bed), City will place base stone layer. Final asphalt surface will be installed after contractor has completed their final work. Contractor is responsible for sub-grade passing proof roll prior to base stone application.
- All concrete work as shown on construction plans. Work will be installed after contractor has completed their final work.
- Landscaping as shown on construction plans. Work will be installed after contractor has completed their final work.
- Fencing as shown on construction plans. Work will be installed after contractor has completed their final work.
- Any building or wall structures on construction plans. Work will be installed after contractor has completed their final work.

Equipment. Contractor is responsible for all equipment needed for completion of work.

Traffic Control. All traffic control shall be in accordance with the **Manual on Uniform Traffic Control Devices** and is the responsibility of the contractor.

Performance. Contractor and its designated sub-contractors are responsible for performance of all items identified in project scope, including stabilization of final areas identified as contractor's responsibility. Any damage to existing City infrastructure shall be repaired at contractors cost in manner acceptable to the City.

Safety. Contractor is responsible for providing a clean safe work environment in compliance with all TOSHA, OSHA, or other applicable requirements.

Method of Measurement and Payment. Payment and measurement will be performed as outlined:

EPSC measures installed: Payment will be made based on measures on the ground installed and paid per item unit of measure as identified in bid. "NAG A,B,&C"

represents North American Green S150 erosion control matting w/ varying staple patterns. Approved equivalent is acceptable.

Clearing and Grubbing: Payment will be made based upon percentage overall area of work complete and paid as a lump sum item.

Mass Grading of Site (LS): Payment will be made based upon percentage overall area of work complete and paid as a lump sum item. In the event rock is encountered in excavation, an additional price for rock will apply as follows:

Solid Rock (CY): Non-degradable rock that can not be economically excavated by the proper use of a power shovel or without the use of explosives. Payment will be made based upon the cubic yard (CY) measure of rock excavated. Measurement methods will be agreed upon by contractor and City prior to any rock excavation.

Fragmented Rock (CY): Non-degradable rock that can be excavated by the proper use of a power shovel, hydraulic hammer, and ripping methods, and does not require the use of explosives. Payment will be made based upon the cubic yard (CY) measure of rock excavated. Measurement methods will be agreed upon by contractor and City prior to any rock excavation.

Bio Retention Areas: Payment will be made based upon percentage of work complete and paid as a lump sum item per specific Bio Retention Area.

8.0 Questions, submissions and site Visit

Gallatin Public Works

Attn: Richard Depriest

641 Long Hollow Pike

Gallatin TN 37066

Telephone: 615-388-9094 or 615-451-5909

Plans and bid documents are available for download on the City website:

<https://www.gallatintn.gov/264/Finance>

Click on "Doing Business" then click on "BID /RFP Opportunities" for list of projects available for bid.

A voluntary pre-bid meeting will be held at the site on February 16, 2021 @ 1:00 PM.

By February 22, an addendum addressing any questions or changes to bid will be issued. All potential bidders shall send their email address to richard.depriest@gallatintn.gov , to receive the addendum.

6.0 Proposal Submission

ALL SUBMISSIONS MUST BE SEALED AND CLEARLY MARKED

Gallatin Training Facility Mass Grading

Proposals shall be directed to the attention of:

Finance Department

Attn: J.R. Smith, Jr.

132 West Main Street

Gallatin, TN 37066

Telephone: 615-451-5899

PRICES

Phase 1

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures			-	
Silt Fence	LF	1750		
Inlet Protection	EA	4		
Rock Check	EA	4		
Construction Exit	EA	1		
Filter Ring	EA	3		
NAG A	SY	3400		
NAG B	SY	1600		
NAG C	SY	1700		
Rip Rap Outlet Protection	Ton	40		
Seed/Straw	SY	5200		
Clearing and Grubbing of Site (Phase 1)	LS	1		
Mass Grading of Site (Phase 1)	LS	1		
Solid Rock	CY	?		
Fragmented Rock	CY	550		
Bio Retention Area 2 (EA)	LS	1		
Bio Retention Area 3 (EA)	LS	1		

Total Phase 1: _____

Phase 2

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	700		
Inlet Protection	EA	4		
Rock Check	EA	6		
Construction Exit	EA	1		
Filter Ring	EA	1		
NAG A	SY	14,200		
NAG B	SY	0		
NAG C	SY	0		
Rip Rap Outlet Protection	Ton	25		
Seed/Straw	SY	18,400		
Clearing and Grubbing of Site (Phase 2)	LS	1		
Mass Grading of Site (Phase 2)	LS	1		
Solid Rock	CY	?		
Fragmented Rock	CY	1000		
Bio Retention Area 1 (EA)	LS	1		

Total Phase 2: _____

Total Phase 1 & 2: _____

Discount if both phases awarded (minus): _____

PROJECT TOTAL: _____

Name of Company: _____

Address: _____

Telephone: _____

Signature: _____

Print Name: _____

Title: _____

Date: _____

Email: _____

Iran Divestment Act:

By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that to the best of its knowledge and believe that each bidder is not on the list created pursuant to §12-12-106.

CITY OF GALLATIN, TENNESSEE

CONTRACT FOR GALLATIN TRAINING FACILITY MASS GRADING

Contract made this ____ day of _____, 2021 between the City of Gallatin,
Tennessee, ("City") and _____ ("Contractor").

City and Contractor agree:

1. **Contract Documents.** This Contract is made as a result of an Advertisement for Bid issued by City and attached to this Contract as an exhibit. Contractor was awarded the bid as the lowest responsible bidder. This Contract and attached exhibit(s) constitute the entire agreement between the parties. No waiver, consent, or modification or change of terms of this Contract shall bind either party unless in writing and signed by both parties. Such waiver, consent, modification or change, if made, shall be effective only in the specific instance and for the specific purpose given. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Contract. Contractor, by signature of its authorized representative, hereby acknowledges that he/she has read this Contract, understands it, and agrees to be bound by its terms and conditions.

2. **Scope.** Contractor shall provide the services described in the contract documents within the time prescribed in the contract documents. Exceptions, alterations, or modifications to the contract documents, if any, shall be attached to this Contract as a separate exhibit.

3. **Price & Payment.** City shall pay Contractor amounts earned under the Contract. All payments will be made at the times and in the manner provided in the contract documents, but in no event shall payment be made prior to completion of a defined segment of work and acceptance of said work by City.

4. **Indemnification.** Contractor agrees to defend, indemnify and save City, its officers, employees and agents harmless from any and all losses, claims, actions, costs, expenses, judgments, subrogations, or other damages resulting from injury to any person (including injury resulting in death,) or damage (including loss or destruction) to property, of whatsoever nature arising out of or incident to the performance of this Contract by Contractor (including but not limited to, Contractor's employees, agents, and others designated by Contractor to perform work or services attendant to this Contract.) Contractor shall not be held responsible for any losses, expenses, claims, subrogations, actions, costs, judgments, or other damages, directly, solely, and approximately caused by the negligence of City.

5. **Insurance.** Contractor shall, at its own expense, at all times during the term of this agreement, maintain in force:

5.1. **General Liability.** A comprehensive general liability policy including coverage for contractual liability for obligations assumed under this Contract, blanket contractual liability, products and completed operations, owner's and contractor's protective insurance and comprehensive automobile liability, including owned and non-owned automobiles. The liability under each policy shall be a minimum of \$1,000,000 per occurrence (combined single limit for bodily injury and property damage claims) or \$1,000,000 per occurrence for bodily injury and \$100,000 per occurrence for property damage. Liability coverage shall be provided on an "occurrence" not "claims" basis.

5.2. **Workers' Compensation.** Worker's compensation insurance in compliance with T.C.A. § 50-6-101 *et seq.*, which requires subject employers to provide Tennessee workers' compensation coverage for all their subject workers.

5.3. **Automobile Liability.** Automobile liability insurance with a combined single limit, or the equivalent, of not less than \$1,000,000 for each accident for Bodily Injury and Property Damage, including coverage for owned, hired or non-owned vehicles, as applicable.

5.4. **Additional Insured.** The City, its officers, employees and agents shall be named as additional insureds on each required insurance policy. Contractor shall submit certificates of insurance acceptable to the City with the signed Contract prior to the commencement of any work under this agreement. These certificates shall contain a provision that coverage afforded under the policies cannot be canceled and restrictive modifications cannot be made until at least 30 days prior written notice has been given to City. Insuring companies or entities are subject to the City's acceptance. If requested, complete copies of insurance policies, trust agreements, etc. shall be provided to the City. The Contractor shall be financially responsible for all pertinent deductibles, self-insured retentions and/or self-insurance.

6. **Compliance with Law.** Contractor shall promptly observe and comply with all present and future laws, orders, regulations, rules and ordinances of federal, state, and city governments with respect to the services.

7. **Default.** A default shall occur under any of the following circumstances:

7.1. If the Contractor fails to begin the work under Contract within the time specified, or fails to perform the work with sufficient workers or equipment or with sufficient materials to insure the prompt completion of the project, or shall neglect or refuse to remove materials or perform anew such work as shall be rejected as defective or unsuitable, or shall discontinue the prosecution of the work.

7.2. If the Contractor shall become insolvent or declared bankrupt, or commit any act of bankruptcy or insolvency, or allow any final judgment to stand against the Contractor unsatisfied for a period of forty-eight (48) hours, or shall make an

assignment for the benefit of creditors.

7.3. From any other cause whatsoever, shall not carry on the work in an acceptable manner.

7.4. Contractor commits any material breach or default of any covenant, warranty, certification, or obligation it owes under the Contract.

7.5. Contractor loses any license, certificate or certification that it required to perform work or service attendant to this Contract.

7.6. Contractor attempts to assign rights in, or delegate duties under the Contract.

8. **Remedies.** In addition to the rights and remedies to which the City may be entitled by law for the enforcement of its rights under this Contract, City shall have full power and authority, without violating this Contract, to take prosecution of the work from the Contractor, and appropriate or use any or all of the materials and equipment on the ground that may be suitable and acceptable and may cause a contract for the completion of this Contract according to its terms and provisions, or use such methods as required for the completion of the Contract, in any acceptable manner. All costs and charges incurred by the City together with the costs of completing the work under the Contract, shall be deducted from any money due or which shall become due the Contractor. In case the expense so incurred by the City shall be less than the sum which would have been payable under the Contract if it had been completed by the Contractor, then the Contractor shall be entitled to receive the difference less any damages for delay to which the City may be entitled. In case such expense shall exceed the sum which would have been payable under the Contract, the Contractor and the surety shall be liable and agree to and shall pay the City the amount of the excess with damages for delay of performance, if any.

9. **Termination.**

9.1. **Mutual consent.** This Contract may be terminated at any time by mutual consent of both parties.

9.2. **City's Convenience.** This Contract may be terminated at any time by City upon 30 days notice in writing and delivered by certified mail or in person.

9.3. **For Cause.** City may terminate or modify this Contract, in whole or in part, effective upon delivery of written notice to Contractor, or at such later date as may be established by City under any of the following conditions:

a. If City funding from federal, state, county, or other sources is not obtained and continued at levels sufficient to allow for the purchase of the indicated quantity of services;

b. If federal or state regulations or guidelines are modified, changed or interpreted in such a way that the services are no longer allowable or appropriate for purchase under this Contract or are no longer eligible for the funding proposed for payments authorized by this Contract; or

c. If any license or certificate required by law or regulation to be held by Contractor to provide the services required by this Contract is for any reason denied, revoked, suspended, or not renewed.

9.4. For Default or Breach.

a. Either City or Contractor may terminate this Contract in the event of a breach of the Contract by the other. Prior to such termination, the party seeking termination shall give to the other party written notice of the breach and intent to terminate. If the party committing the breach has not entirely cured the breach within 15 days of the date of the notice, or within such other period as the party giving notice may authorize or require, then the Contract may be terminated at any time thereafter by a written notice of termination by the party giving notice.

b. Time is of the essence for Contractor's performance of each and every obligation and duty under this Contract. City, by written notice to Contractor of default or breach, may at any time terminate the whole or any part of this Contract if Contractor fails to provide services called for by this Contract within the time specified herein or in any extension thereof.

c. The rights and remedies of City provided in this subsection (10.4) are not exclusive and are in addition to any other rights and remedies provided by law or under this Contract.

9.5. Obligation/Liability of Parties. Termination or modification of this Contract, pursuant to subsections 9.1, 9.2, 9.3 and 9.4 above, shall be without prejudice to any obligations or liabilities of either party already accrued prior to such termination or modification. However, upon receiving a notice of termination (regardless of whether such notice is given pursuant to subsections 9.1, 9.2, 9.3 and 9.4 of this section), Contractor shall immediately cease all activities under this Contract, unless expressly directed otherwise by City in notice of termination. Further, upon termination, Contractor shall deliver to City all contract documents, information, works-in-progress and other property that are or would be deliverables had the Contract been completed. City shall pay Contractor for work performed prior to the termination date if such work was performed in accordance with the Contract.

10. Funds Available and Authorized. City has sufficient funds currently available and authorized for expenditure to finance the costs of this Contract within the City's fiscal year budget. Contractor understands and agrees that City's payment of amounts under this Contract attributable to work performed after the last day of the current fiscal year is contingent on City appropriations, or other expenditure authority

sufficient to allow City, in the exercise of its reasonable administrative discretion, to continue to make payments under this Contract. In the event City has insufficient appropriations, limitations or other expenditure authority, City may terminate this Contract without penalty or liability to City, effective upon the delivery of written notice to Contractor, with no further liability to Contractor.

11. Assignment and Subcontracts. Contractor shall not assign this Contract without the written consent of City. Any attempted assignment without written consent of City shall be void. Contractor shall be fully responsible for the acts or omissions of any assigns or subcontractors and of all persons employed by them, and the approval by City of any assignment or subcontract shall not create any contractual relation between the assignee or subcontractor and City.

12. Governing Law; Jurisdiction; Venue. This Contract shall be governed and construed in accordance with the laws of the State of Tennessee without resort to any jurisdiction's conflict of laws, rules or doctrines. Any claim, action, suit or proceeding (collectively, "the claim") between the City and the Contractor that arises from or relates to this Contract shall be brought and conducted solely and exclusively within the Chancery or Circuit Courts of Sumner County for the State of Tennessee. If, however, the claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Middle Tennessee filed in Davidson County, Tennessee. Contractor, by the signature herein of its authorized representative, hereby consents to the *in personam* jurisdiction of said courts. In no event shall this section be construed as a waiver by City of any form of defense or immunity, based on the Eleventh Amendment to the United States Constitution, or otherwise, from any claim or from the jurisdiction.

13. MERGER CLAUSE. THIS CONTRACT AND ATTACHED EXHIBITS CONSTITUTE THE ENTIRE AGREEMENT BETWEEN THE PARTIES. NO WAIVER, CONSENT, MODIFICATION OR CHANGE OF TERMS OF THIS CONTRACT SHALL BIND EITHER PARTY UNLESS IN WRITING AND SIGNED BY BOTH PARTIES. SUCH WAIVER, CONSENT, MODIFICATION OR CHANGE, IF MADE, SHALL BE EFFECTIVE ONLY IN THE SPECIFIC INSTANCE AND FOR THE SPECIFIC PURPOSE GIVEN. THERE ARE NO UNDERSTANDINGS, AGREEMENTS, OR REPRESENTATIONS, ORAL OR WRITTEN, NOT SPECIFIED HEREIN REGARDING THIS CONTRACT. CONTRACTOR, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT HE/SHE HAS READ THIS CONTRACT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

14. Prior Approval Required. Approval of the City of Gallatin Council or Mayor is required before any work may begin under this Contract.

CITY OF GALLATIN, TENNESSEE

CONTRACTOR

BY: _____
Paige Brown, Mayor

BY: _____

ATTEST:

Connie Kittrell, City Recorder

APPROVED AS TO FORM:

Susan High-McAuley, City Attorney



The City of Gallatin, TN
Police Department Bid Opening
Training Facility Bid
25-Feb-21

Company Name	Total Price
Scotty's Contracting & Stone, LLC; 2300 Barren River Road, Bowling	Phase 1: \$205,781.50
	Phase 2: \$1,635,136.53
Charles Deweese Construction, 765 Industrial Bypass N. ; Franklin KY 42134	Phase 1: \$326,294.00
	Phase 2: \$1,874,405.00
New Century Excavation, LLC, 773 Cumberland Hills Drive Hendersonville TN 37075	Phase 1: \$205,670.80
	Phase 2: No bid
Rawsco LLC, 819 Scott St. Murfreesboro TN 37129	Phase 1: \$335,781.00
	Phase 2: \$1,735,918.75
EXPLANATION: Training Facility Bid opening	
BID AWARDED TO FOLLOWING VENDOR:	
ACCOUNT NUMBER:	
FUNDS AVAILABLE:	
DEPARTMENT HEAD SIGNATURE:	DATE:

SCOTTY'S Contracting

PRICES

Phase 1

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	1750	\$ 2.14	\$3,745.00
Inlet Protection	EA	4	\$ 301.70	\$ 1,206.80
Rock Check	EA	4	\$ 330.53	\$ 1,322.12
Construction Exit	EA	1	\$ 3,458.61	\$ 3,458.61
Filter Ring	EA	3	\$ 271.76	\$ 815.28
NAG A	SY	3400	\$ 1.54	\$ 5,236.00
NAG B	SY	1600	\$ 1.54	\$ 2,464.00
NAG C	SY	1700	\$ 1.54	\$ 2,618.00
Rip Rap Outlet Protection	Ton	40	\$ 36.43	\$ 1,457.20
Seed/Straw	SY	5200	\$ 0.46	\$ 2,392.00
Clearing and Grubbing of Site (Phase 1)	LS	1	\$ 20,041.14	\$ 20,041.14
Mass Grading of Site (Phase 1)	LS	1	\$ 91,121.02	\$ 91,121.02
Solid Rock	CY	?	\$ 12/cy	
Fragmented Rock	CY	550	\$ 40/cy	\$ 22,000
Bio Retention Area 2 (EA)	LS	1	\$ 32,700.58	\$ 32,700.58
Bio Retention Area 3 (EA)	LS	1	\$ 15,203.73	\$ 15,203.73

Total Phase 1: \$ 205,781.50

SCOTTY'S Contracting

Phase 2

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	700	\$ 2.40	\$1,680.00
Inlet Protection	EA	4	\$ 351.40	\$1,405.60
Rock Check	EA	6	\$ 351.48	\$2,108.88
Construction Exit	EA	1	\$3,553.32	\$3,553.32
Filter Ring	EA	1	\$ 409.03	\$409.03
NAG A	SY	14,200	\$1.54	\$21,868.00
NAG B	SY	0	\$ 5.00	
NAG C	SY	0	\$ 5.00	
Rip Rap Outlet Protection	Ton	25	\$ 39.30	\$982.50
Seed/Straw	SY	18,400	\$ 0.40	\$7,360.00
Clearing and Grubbing of Site (Phase 2)	LS	1	\$50,753.05	\$50,753.05
Mass Grading of Site (Phase 2)	LS	1	\$1,429,308.28	\$1,429,308.28
Solid Rock	CY	?	\$ 35 / cy	
Fragmented Rock	CY	1000	\$ 50 / cy	\$50,000
Bio Retention Area 1 (EA)	LS	1	\$74,767.07	\$74,767.07

Total Phase 2: \$1,635,136.53

Total Phase 1 & 2: \$1,840,918.03

Discount if both phases awarded (minus): \$ 5,000.00

PROJECT TOTAL: \$1,835,918.03

Name of Company: SCOTTY'S CONTRACTING & STONE, LLC
2300 BARREN RIVER ROAD
PO BOX 4500
Address: BOWLING GREEN, KY 42102-4500

Telephone: 270-781-3998

Signature: 

Print Name: CHRIS HIGGINS

Title: VICE PRESIDENT

Date: 2/25/21

Email: heathc@scottyscontracting.com

Iran Divestment Act:

By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that to the best of its knowledge and believe that each bidder is not on the list created pursuant to §12-12-106.



Document A310™ – 2010

Bid Bond

CONTRACTOR:

(Name, legal status and address)

Scotty's Contracting & Stone, LLC
2300 Barren River Rd
Bowling Green, KY 42101

SURETY:

(Name, legal status and principal place of business)

Western Surety Company
151 N Franklin St
Chicago, IL 60606

OWNER:

(Name, legal status and address)

City of Gallatin – Finance Department
132 West Main Street
Gallatin, TN 37066

BOND AMOUNT: 5% of amount bid

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

Any singular reference to Contractor, Surety, Owner or other party shall be considered plural where applicable.

PROJECT:

(Name, location or address, and Project number, if any)

Gallatin Training Facility Mass Grading

The Contractor and Surety are bound to the Owner in the amount set forth above, for the payment of which the Contractor and Surety bind themselves, their heirs, executors, administrators, successors and assigns, jointly and severally, as provided herein. The conditions of this Bond are such that if the Owner accepts the bid of the Contractor within the time specified in the bid documents, or within such time period as may be agreed to by the Owner and Contractor, and the Contractor either (1) enters into a contract with the Owner in accordance with the terms of such bid, and gives such bond or bonds as may be specified in the bidding or Contract Documents, with a surety admitted in the jurisdiction of the Project and otherwise acceptable to the Owner, for the faithful performance of such Contract and for the prompt payment of labor and material furnished in the prosecution thereof; or (2) pays to the Owner the difference, not to exceed the amount of this Bond, between the amount specified in said bid and such larger amount for which the Owner may in good faith contract with another party to perform the work covered by said bid, then this obligation shall be null and void, otherwise to remain in full force and effect. The Surety hereby waives any notice of an agreement between the Owner and Contractor to extend the time in which the Owner may accept the bid. Waiver of notice by the Surety shall not apply to any extension exceeding sixty (60) days in the aggregate beyond the time for acceptance of bids specified in the bid documents, and the Owner and Contractor shall obtain the Surety's consent for an extension beyond sixty (60) days.

If this Bond is issued in connection with a subcontractor's bid to a Contractor, the term Contractor in this Bond shall be deemed to be Subcontractor and the term Owner shall be deemed to be Contractor.

When this Bond has been furnished to comply with a statutory or other legal requirement in the location of the Project, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

Signed and sealed this 25th day of February, 2021

(Witness)

(Witness)

Scotty's Contracting & Stone, LLC

(Principal)

(Title)

Western Surety Company

(Surety)

(Title)

Lakala Carter, Attorney-in-Fact

(Seal)

(Seal)

CAUTION: You should sign and seal this AIA Contract Document, on which this text appears in REG. An original signature that changes will not be considered.

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POWER OF ATTORNEY APPOINTING INDIVIDUAL ATTORNEY-IN-FACT

Know All Men By These Presents, That Continental Casualty Company, an Illinois insurance company, National Fire Insurance Company of Hartford, an Illinois insurance company, and American Casualty Company of Reading, Pennsylvania, a Pennsylvania insurance company (herein called "the CNA Companies"), are duly organized and existing insurance companies having their principal offices in the City of Chicago, and State of Illinois, and that they do by virtue of the signatures and seals herein affixed hereby make, constitute and appoint

Charles Cecil Martin, Melissa Propst, Bruce A Barrick, LaKala Carter, Individually

of Bowling Green, KY, their true and lawful Attorney(s)-in-Fact with full power and authority hereby conferred to sign, seal and execute for and on their behalf bonds, undertakings and other obligatory instruments of similar nature

- In Unlimited Amounts -

and to bind them thereby as fully and to the same extent as if such instruments were signed by a duly authorized officer of their insurance companies and all the acts of said Attorney, pursuant to the authority hereby given is hereby ratified and confirmed.

This Power of Attorney is made and executed pursuant to and by authority of the By-Law and Resolutions, printed on the reverse hereof, duly adopted, as indicated, by the Boards of Directors of the insurance companies.

In Witness Whereof, the CNA Companies have caused these presents to be signed by their Vice President and their corporate seals to be hereto affixed on this 25th day of March, 2020.



Continental Casualty Company
National Fire Insurance Company of Hartford
American Casualty Company of Reading, Pennsylvania

Paul T. Bruffat

Paul T. Bruffat

Vice President

State of South Dakota, County of Minnehaha, ss:

On this 25th day of March, 2020, before me personally came Paul T. Bruffat to me known, who, being by me duly sworn, did depose and say: that he resides in the City of Sioux Falls, State of South Dakota; that he is a Vice President of Continental Casualty Company, an Illinois insurance company, National Fire Insurance Company of Hartford, an Illinois insurance company, and American Casualty Company of Reading, Pennsylvania, a Pennsylvania insurance company described in and which executed the above instrument; that he knows the seals of said insurance companies; that the seals affixed to the said instrument are such corporate seals; that they were so affixed pursuant to authority given by the Boards of Directors of said insurance companies and that he signed his name thereto pursuant to like authority, and acknowledges same to be the act and deed of said insurance companies.



My Commission Expires June 23, 2021

J. Mohr

Notary Public

CERTIFICATE

I, D. Johnson, Assistant Secretary of Continental Casualty Company, an Illinois insurance company, National Fire Insurance Company of Hartford, an Illinois insurance company, and American Casualty Company of Reading, Pennsylvania, a Pennsylvania insurance company do hereby certify that the Power of Attorney herein above set forth is still in force, and further certify that the By-Law and Resolution of the Board of Directors of the insurance companies printed on the reverse hereof is still in force. In testimony whereof I have hereto subscribed my name and affixed the seal of the said insurance companies this 25th day of Feb, 2021



Continental Casualty Company
National Fire Insurance Company of Hartford
American Casualty Company of Reading, Pennsylvania

D. Johnson

D. Johnson

Assistant Secretary

Form F6853-4/2012

Go to www.cnasurety.com > Owner / Obligor Services > Validate Bond Coverage, if you want to verify bond authenticity.

Authorizing By-Laws and Resolutions

ADOPTED BY THE BOARD OF DIRECTORS OF CONTINENTAL CASUALTY COMPANY:

This Power of Attorney is made and executed pursuant to and by authority of the following resolution duly adopted by the Board of Directors of the Company at a meeting held on May 12, 1995:

"RESOLVED: That any Senior or Group Vice President may authorize an officer to sign specific documents, agreements and instruments on behalf of the Company provided that the name of such authorized officer and a description of the documents, agreements or instruments that such officer may sign will be provided in writing by the Senior or Group Vice President to the Secretary of the Company prior to such execution becoming effective."

This Power of Attorney is signed by Paul T. Bruffat, Vice President, who has been authorized pursuant to the above resolution to execute power of attorneys on behalf of Continental Casualty Company

This Power of Attorney is signed and sealed by facsimile under and by the authority of the following Resolution adopted by the Board of Directors of the Company by unanimous written consent dated the 25th day of April, 2012:

"Whereas, the bylaws of the Company or specific resolution of the Board of Directors has authorized various officers (the "Authorized Officers") to execute various policies, bonds, undertakings and other obligatory instruments of like nature; and

Whereas, from time to time, the signature of the Authorized Officers, in addition to being provided in original, hard copy format, may be provided via facsimile or otherwise in an electronic format (collectively, "Electronic Signatures"); Now therefore be it resolved: that the Electronic Signature of any Authorized Officer shall be valid and binding on the Company."

ADOPTED BY THE BOARD OF DIRECTORS OF NATIONAL FIRE INSURANCE COMPANY OF HARTFORD:

This Power of Attorney is made and executed pursuant to and by authority of the following resolution duly adopted by the Board of Directors of the Company by unanimous written consent dated May 10, 1995:

"RESOLVED: That any Senior or Group Vice President may authorize an officer to sign specific documents, agreements and instruments on behalf of the Company provided that the name of such authorized officer and a description of the documents, agreements or instruments that such officer may sign will be provided in writing by the Senior or Group Vice President to the Secretary of the Company prior to such execution becoming effective."

This Power of Attorney is signed by Paul T. Bruffat, Vice President, who has been authorized pursuant to the above resolution to execute power of attorneys on behalf of National Fire Insurance Company of Hartford.

This Power of Attorney is signed and sealed by facsimile under and by the authority of the following Resolution adopted by the Board of Directors of the Company by unanimous written consent dated the 25th day of April, 2012:

"Whereas, the bylaws of the Company or specific resolution of the Board of Directors has authorized various officers (the "Authorized Officers") to execute various policies, bonds, undertakings and other obligatory instruments of like nature; and

Whereas, from time to time, the signature of the Authorized Officers, in addition to being provided in original, hard copy format, may be provided via facsimile or otherwise in an electronic format (collectively, "Electronic Signatures"); Now therefore be it resolved: that the Electronic Signature of any Authorized Officer shall be valid and binding on the Company."

ADOPTED BY THE BOARD OF DIRECTORS OF AMERICAN CASUALTY COMPANY OF READING, PENNSYLVANIA:

This Power of Attorney is made and executed pursuant to and by authority of the following resolution duly adopted by the Board of Directors of the Company by unanimous written consent dated May 10, 1995:

"RESOLVED: That any Senior or Group Vice President may authorize an officer to sign specific documents, agreements and instruments on behalf of the Company provided that the name of such authorized officer and a description of the documents, agreements or instruments that such officer may sign will be provided in writing by the Senior or Group Vice President to the Secretary of the Company prior to such execution becoming effective."

This Power of Attorney is signed by Paul T. Bruffat, Vice President, who has been authorized pursuant to the above resolution to execute power of attorneys on behalf of American Casualty Company of Reading, Pennsylvania

This Power of Attorney is signed and sealed by facsimile under and by the authority of the following Resolution adopted by the Board of Directors of the Company by unanimous written consent dated the 25th day of April, 2012:

"Whereas, the bylaws of the Company or specific resolution of the Board of Directors has authorized various officers (the "Authorized Officers") to execute various policies, bonds, undertakings and other obligatory instruments of like nature; and

Whereas, from time to time, the signature of the Authorized Officers, in addition to being provided in original, hard copy format, may be provided via facsimile or otherwise in an electronic format (collectively, "Electronic Signatures"); Now therefore be it resolved: that the Electronic Signature of any Authorized Officer shall be valid and binding on the Company."

RAWSO LLC

PRICES

Phase 1

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	1750	4.30	7,525.00
Inlet Protection	EA	4	170.00	680.00
Rock Check	EA	4	1,125.00	4,500.00
Construction Exit	EA	1	2,500.00	2,500.00
Filter Ring	EA	3	450.00	1,350.00
NAG A	SY	3400	2.75	9,350.00
NAG B	SY	1600	2.95	4,720.00
NAG C	SY	1700	3.25	5,525.00
Rip Rap Outlet Protection	Ton	40	79.15	3,166.00
Seed/Straw	SY	5200	0.35	1,820.00
Clearing and Grubbing of Site (Phase 1)	LS	1	76,775.00	76,775.00
Mass Grading of Site (Phase 1)	LS	1	120,825.00	120,825.00
Solid Rock	CY	9	68.00	
Fragmented Rock	CY	550	50.00	27,500.00
Bin Retention Area 2 (EA)	LS	1	48,965.00	48,965.00
Bin Retention Area 3 (EA)	LS	1	20,580.00	20,580.00

Total Phase 1: 335,781.00

RAWSO LLC

Phase 2

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	700	4.30	3,010.00
Inlet Protection	EA	4	170.00	680.00
Rock Check	EA	6	1,125.00	6,750.00
Construction Exit	EA	1	2500	2,500.00
Filter Ring	EA	1	450.00	450.00
NAG A	SY	14,200	2.95	54,280.00
NAG B	SY	0	2.95	0.00
NAG C	SY	0	3.25	0.00
Rip Rap Outlet Protection	Ton	25	79.15	1,978.75
Seed/Straw	SY	18,400	0.35	6,440.00
Clearing and Grubbing of Site (Phase 2)	LS	1	73,120.00	73,120.00
Mass Grading of Site (Phase 2)	LS	1	1,433,835.00	1,433,835.00
Solid Rock	CY	2	68.00	
Fragmented Rock	CY	1000	50.00	50,000.00
Bio Retention Area 1 (EA)	LS	1	102,875.00	102,875.00

Total Phase 2: 1,735,918.75

Total Phase 1 & 2: 2,071,699.75

Discount if both phases awarded (minus): 3,500.75

PROJECT TOTAL: 2,068,199.00

Name of Company: Rawso LLC

Address: 819 Scott St, Suite A, Murfreesboro TN 37129

Telephone: 615-203-3068

Signature: 

Print Name: SHAWN HAMPTON

Title: VICE PRESIDENT

Date: 02/25/2021

Email: S.hampton@Rawso.com

Iran Divestment Act:

By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that to the best of its knowledge and believe that each bidder is not on the list created pursuant to §12-12-106.

AIA Document A310™ – 2010

Bid Bond

CONTRACTOR:

(Name, legal status and address)

RAWSO, LLC

819 Scott Street, Suite A
Murfreesboro, Tennessee 37129

SURETY:

(Name, legal status and principal place
of business)

Selective Insurance Company of America
40 Wantage Avenue
Branchville, New Jersey 07890

This document has important legal
consequences. Consultation with
an attorney is encouraged with
respect to its completion or
modification.

Any singular reference to
Contractor, Surety, Owner or
other party shall be considered
plural where applicable.

OWNER:

(Name, legal status and address)

City of Gallatin
132 West Main Street
Gallatin, Tennessee 37066

BOND AMOUNT: Five Percent of the Total Amount Bid (5% of the Total Amount Bid)

PROJECT:

(Name, location or address, and Project number, if any)

Gallatin Training Facility Mass Grading
192 Commerce Way
Gallatin, Tennessee

The Contractor and Surety are bound to the Owner in the amount set forth above, for the payment of which the Contractor and Surety bind themselves, their heirs, executors, administrators, successors and assigns, jointly and severally, as provided herein. The conditions of this Bond are such that if the Owner accepts the bid of the Contractor within the time specified in the bid documents, or within such time period as may be agreed to by the Owner and Contractor, and the Contractor either (1) enters into a contract with the Owner in accordance with the terms of such bid, and gives such bond or bonds as may be specified in the bidding or Contract Documents, with a surety admitted in the jurisdiction of the Project and otherwise acceptable to the Owner, for the faithful performance of such Contract and for the prompt payment of labor and material furnished in the prosecution thereof; or (2) pays to the Owner the difference, not to exceed the amount of this Bond, between the amount specified in said bid and such larger amount for which the Owner may in good faith contract with another party to perform the work covered by said bid, then this obligation shall be null and void, otherwise to remain in full force and effect. The Surety hereby waives any notice of an agreement between the Owner and Contractor to extend the time in which the Owner may accept the bid. Waiver of notice by the Surety shall not apply to any extension exceeding sixty (60) days in the aggregate beyond the time for acceptance of bids specified in the bid documents, and the Owner and Contractor shall obtain the Surety's consent for an extension beyond sixty (60) days.

If this Bond is issued in connection with a subcontractor's bid to a Contractor, the term Contractor in this Bond shall be deemed to be Subcontractor and the term Owner shall be deemed to be Contractor.

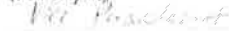
When this Bond has been furnished to comply with a statutory or other legal requirement in the location of the Project, any provision in this Bond conflicting with said statutory or legal requirement shall be deemed deleted herefrom and provisions conforming to such statutory or other legal requirement shall be deemed incorporated herein. When so furnished, the intent is that this Bond shall be construed as a statutory bond and not as a common law bond.

Signed and sealed this Twenty-Fifth day of February, 2021


(Witness)

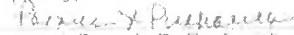
RAWSO, LLC

(Principal)


(Title)

Selective Insurance Company of America

(Surety)


(Title) Pamela D. Puskarch, Attorney-in-Fact

(Seal)

(Seal)

(Witness) Alison Lyons, Account Executive

CAUTION: You should sign an original AIA Contract Document on which this text appears in RED. An original assures that changes will not be obscured.

Init.

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43809

**SELECTIVE®**

Selective Insurance Company of America
40 Wantage Avenue
Branchville, New Jersey 07890
973-948-3000

POWER OF ATTORNEY

SELECTIVE INSURANCE COMPANY OF AMERICA, a New Jersey corporation having its principal office at 40 Wantage Avenue, in Branchville, State of New Jersey ("SICA"), pursuant to Article VII, Section 1 of its By-Laws, which state in pertinent part:

The Chairman of the Board, President, Chief Executive Officer, any Executive Vice President, any Senior Vice President or any Corporate Secretary may, from time to time, appoint attorneys in fact, and agents to act for and on behalf of the Corporation and they may give such appointee such authority, as his/her certificate of authority may prescribe, to sign with the Corporation's name and seal with the Corporation's seal, bonds, recognizances, contracts of indemnity and other writings obligatory in the nature of a bond, recognizance or conditional undertaking, and any of said Officers may, at any time, remove any such appointee and revoke the power and authority given him/her.

does hereby appoint **JAMES L. NOE, III, STEPHANIE RICHARDSON, ANDREW BENNETT, CRAIG M. WHITLOW, PAMELA DENISE PUSKARICH, ALISON LYONS, JAMES TIMOTHY MYERS**

, its true and lawful attorney(s)-in-fact, full authority to execute on SICA's behalf fidelity and surety bonds or undertakings and other documents of a similar character issued by SICA in the course of its business, and to bind SICA thereby as fully as if such instruments had been duly executed by SICA's regularly elected officers at its principal office, in amounts or penalties not exceeding the sum of: **NO LIMITATIONS.**

Signed this 11 day of **NOVEMBER**, 2020

SELECTIVE INSURANCE COMPANY OF AMERICA

By:

Brian C. Sarisky

Its SVP, Chief Underwriting Officer, Commercial Lines



STATE OF NEW JERSEY :

County of Sussex, Branchville

COUNTY OF SUSSEX :

On this 11 day of **NOVEMBER**, 2020 before me, the undersigned officer, personally appeared Brian C. Sarisky, who acknowledged himself to be the Sr. Vice President of SICA, and that he, as such Sr. Vice President, being authorized so to do, executed the foregoing instrument for the purposes therein contained, by signing the name of the corporation by himself as Sr. Vice President and that the same was his free act and deed and the free act and deed of SICA.

Charlene Kimble
Notary Public of New Jersey
My Commission Expires 6/2/2021

Notary Public



The power of attorney is signed and sealed by facsimile under and by the authority of the following Resolution adopted by the Board of Directors of SICA at a meeting duly called and held on the 6th of February 1987, to wit:

"RESOLVED, the Board of Directors of Selective Insurance Company of America authorizes and approves the use of a facsimile corporate seal, facsimile signatures of corporate officers and notarial acknowledgements thereof on powers of attorney for the execution of bonds, recognizances, contracts of indemnity and other writing obligatory in the nature of a bond, recognizance or conditional undertaking."

CERTIFICATION

I do hereby certify as SICA's Corporate Secretary that the foregoing extract of SICA's By-Laws and Resolution are in full force and effect and this Power of Attorney issued pursuant to and in accordance with the By-Laws of SICA.

Signed this 25th day of **FEBRUARY**, 2021

Michael H. Lanza, SICA Corporate Secretary



The power is void unless the Selective watermark appears.

Charles DeWeese Construction

PRICES

Phase 1

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	1750	\$ 3.00	\$ 5,250.00
Inlet Protection	EA	4	\$ 250.00	\$ 1,000.00
Rock Check	EA	4	\$ 175.00	\$ 700.00
Construction Exit	EA	1	\$ 4,250.00	\$ 4,250.00
Filter Ring	EA	3	\$ 250.00	\$ 750.00
NAG A	SY	3400	\$ 2.50	\$ 8,500.00
NAG B	SY	1600	\$ 2.75	\$ 4,400.00
NAG C	SY	1700	\$ 3.00	\$ 5,100.00
Rip Rap Outlet Protection	Ton	40	\$ 50.00	\$ 2,000.00
Seed/Straw	SY	5200	\$.50	\$ 2,600.00
Clearing and Grubbing of Site (Phase 1)	LS	1	\$ 42,900.00	\$ 42,900.00
Mass Grading of Site (Phase 1)	LS	1	\$ 72,700.00	\$ 72,700.00
Solid Rock	CY	?		
Fragmented Rock	CY	550	\$ 215.00	\$ 118,250.00
Bio Retention Area 2 (EA)	LS	1	\$ 40,995.00	\$ 40,995.00
Bio Retention Area 3 (EA)	LS	1	\$ 14,999.00	\$ 14,999.00

Total Phase 1: 324,394.00

Charles Dewese Construction

Phase 2

Item	Unit of Measure	Est. Quantity	Unit Price	Price Total
EPSC Measures				
Silt Fence	LF	700	\$3.00	\$2,100.00
Inlet Protection	EA	4	\$250.00	\$1,000.00
Rock Check	EA	6	\$175.00	\$1,050.00
Construction Exit	EA	1	\$6,250.00	\$6,250.00
Filter Ring	EA	1	\$250.00	\$250.00
NAG A	SY	14,200	\$2.50	\$35,500.00
NAG B	SY	0	—	—
NAG C	SY	0	—	—
Rip Rap Outlet Protection	Ton	25	\$50.00	\$1,250.00
Seed/Straw	SY	18,400	\$.50	\$9,200.00
Clearing and Grubbing of Site (Phase 2)	LS	1	\$18,150.00	\$18,150.00
Mass Grading of Site (Phase 2)	LS	1	\$1,485,370.00	\$1,485,370.00
Solid Rock	CY	?	—	—
Fragmented Rock	CY	1000	\$225.00	\$225,000.00
Bio Retention Area 1 (EA)	LS	1	\$89,285.00	\$89,285.00

Total Phase 2: \$1,874,405.00

Total Phase 1 & 2: \$2,200,799.00

Discount if both phases awarded (minus): \$33,000.00

PROJECT TOTAL: \$2,167,799.00 —
2 DISCOUNT

Name of Company: CHARLES DEVEESE CONSTRUCTION

Address: 765 INDUSTRIAL BYPASS N.
FRANKLIN, KY 42184

Telephone: 270-586-9122

Signature: 

Print Name: CLINT EMBLEY

Title: VICE PRESIDENT - ESTIMATING & PM

Date: 2/24/21

Email: clint@charlesdeveeseconstruction.com

Iran Divestment Act:

By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that to the best of its knowledge and believe that each bidder is not on the list created pursuant to §12-12-106.

THE AMERICAN INSTITUTE OF ARCHITECTS



AIA Document A310

Bid Bond

BOND # CF2102252

KNOW ALL MEN BY THESE PRESENTS, that we **CHARLES DEWEESE CONSTRUCTION, INC.**

765 Industrial Bypass North Franklin, KY 42134

as Principal, hereinafter called the Principal, and **UNITED STATES FIRE INSURANCE COMPANY**

305 Madison Avenue Morristown, NJ 07962

a corporation duly organized under the laws of the State of **DE**

as Surety, hereinafter called the Surety, are held and firmly bound unto **City Of Gallatin, Tn**

132 West Main Street Gallatin, TN 37066

(Here insert full name, and address or legal title of Owner)

as Obligee, hereinafter called the Obligee, in the sum of

Five Percent of Amount Bid-----Dollars (\$ **5.00% of attached bid**),

for the payment of which sum well and truly to be made, the said Principal and the said Surety, bind ourselves, our heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has submitted a bid for
Mass Grading - Two Phases - Gallatin Training Facility

(Here insert full name, address and description of project)

NOW, THEREFORE, if the Obligee shall accept the bid of the Principal and the Principal shall enter into a Contract with the Obligee in accordance with the terms of such bid and give such bond or bonds as may be specified in the bidding or Contract Documents with good and sufficient surety for the faithful performance of such Contract and for the prompt payment of labor and material furnished in the prosecution thereof, or in the event of the failure of the Principal to enter such Contract and give such bond or bonds, if the Principal shall pay to the Obligee the difference not to exceed the penalty hereof between the amount specified in said bid and such larger amount for which the Obligee may in good faith contract with another party to perform the Work covered by said bid then this obligation shall be null and void, otherwise to remain in full force and effect.

Signed and sealed this **25th** day of **February** 2021

CHARLES DEWEESE CONSTRUCTION, INC.

(Principal)

(Seal)

Vice President - Estimating & PM
(Title)

UNITED STATES FIRE INSURANCE COMPANY

(Title)

Kelly L. Berry, ATTORNEY-IN-FACT
Bonds Southeast, Inc.
1030 17th Avenue South
Nashville, TN 37212
(615)321-9700

POWER OF ATTORNEY
UNITED STATES FIRE INSURANCE COMPANY
PRINCIPAL OFFICE - MORRISTOWN, NEW JERSEY

01130405521

KNOW ALL MEN BY THESE PRESENTS: That United States Fire Insurance Company, a corporation duly organized and existing under the laws of the state of Delaware, has made, constituted and appointed, and does hereby make, constitute and appoint:

Gregory E. Nash, Phillip H. Condra, Kelly Berry

each, its true and lawful Attorney(s)-In-Fact, with full power and authority hereby conferred in its name, place and stead, to execute, acknowledge and deliver: Any and all bonds and undertakings of surety and other documents that the ordinary course of surety business may require, and to bind United States Fire Insurance Company thereby as fully and to the same extent as if such bonds or undertakings had been duly executed and acknowledged by the regularly elected officers of United States Fire Insurance Company at its principal office, in amounts or penalties not exceeding: Seven Million, Five Hundred Thousand Dollars (\$7,500,000).

This Power of Attorney limits the act of those named therein to the bonds and undertakings specifically named therein, and they have no authority to bind United States Fire Insurance Company except in the manner and to the extent therein stated.

This Power of Attorney revokes all previous Powers of Attorney issued on behalf of the Attorneys-In-Fact named above and expires on January 31, 2022.

This Power of Attorney is granted pursuant to Article IV of the By-Laws of United States Fire Insurance Company as now in full force and effect, and consistent with Article III thereof, which Articles provide, in pertinent part:

Article IV, Execution of Instruments - Except as the Board of Directors may authorize by resolution, the Chairman of the Board, President, any Vice-President, any Assistant Vice President, the Secretary, or any Assistant Secretary shall have power on behalf of the Corporation:

(a) to execute, affix the corporate seal manually or by facsimile to, acknowledge, verify and deliver any contracts, obligations, instruments and documents whatsoever in connection with its business including, without limiting the foregoing, any bonds, guarantees, undertakings, recognizances, powers of attorney or revocations of any powers of attorney, stipulations, policies of insurance, deeds, leases, mortgages, releases, satisfactions and agency agreements;

(b) to appoint, in writing, one or more persons for any or all of the purposes mentioned in the preceding paragraph (a), including affixing the seal of the Corporation.

Article III, Officers, Section 3.11, Facsimile Signatures. The signature of any officer authorized by the Corporation to sign any bonds, guarantees, undertakings, recognizances, stipulations, powers of attorney or revocations of any powers of attorney and policies of insurance issued by the Corporation may be printed, facsimile, lithographed or otherwise produced. In addition, if and as authorized by the Board of Directors, dividend warrants or checks, or other numerous instruments similar to one another in form, may be signed by the facsimile signature or signatures, lithographed or otherwise produced, of such officer or officers of the Corporation as from time to time may be authorized to sign such instruments on behalf of the Corporation. The Corporation may continue to use for the purposes herein stated the facsimile signature of any person or persons who shall have been such officer or officers of the Corporation, notwithstanding the fact that he may have ceased to be such at the time when such instruments shall be issued.

IN WITNESS WHEREOF, United States Fire Insurance Company has caused these presents to be signed and attested by its appropriate officer and its corporate seal hereunto affixed this 22nd day of August 2019.

UNITED STATES FIRE INSURANCE COMPANY



A.R.S.

Anthony R. Slimowicz, President

State of Pennsylvania)
County of Philadelphia)

On this 22nd day of August 2019, before me, a Notary public of the State of Pennsylvania, came the above named officer of United States Fire Insurance Company, to me personally known to be the individual and officer described herein, and acknowledged that he executed the foregoing instrument and affixed the seal of United States Fire Insurance Company thereto by the authority of his office.

Commonwealth of Pennsylvania - Notary Seal
Tamara Watkins, Notary Public
Philadelphia County
My commission expires August 22, 2023
Commission number 1348843

Tamara Watkins

Tamara Watkins

(Notary Public)

I, the undersigned officer of United States Fire Insurance Company, a Delaware corporation, do hereby certify that the original Power of Attorney of which the foregoing is a full, true and correct copy is still in force and effect and has not been revoked.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the corporate seal of United States Fire Insurance Company on the 25th day of February 20 21

UNITED STATES FIRE INSURANCE COMPANY



Al Wright

Al Wright, Senior Vice President

Phase 1

Gallatin Training Facility

New Century Excavation, LLC

773 Cumberland Hills Drive

Hendersonville, TN 37075

615-483-0869 - jdkrawchuk.nce@gmail.com

Job: 192 Commerce

Plan date: June 28, 2018

Engineer: Leath

ITEM	DESCRIPTION	QUANTITY	UNIT	UNIT PRICE	AMOUNT
EROSION CONTROL					
100	Construction entrance	1.00	LS	2,000.00	2,000.00
105	Silt fence w/wired backing	906.00	LF	3.00	2,718.00
160	Temporary seed	4,554.00	SY	0.30	1,366.20
165	Erosion control matting	7,490.00	SY	1.50	11,235.00
170	Erosion control monitoring	8.00	MN	375.00	3,000.00
	Erosion control sub-total				20,319.20
EXCAVATION AND GRADING					
200	Equipment mobilization	1.00	LS	2,000.00	2,000.00
205	Survey layout	1.00	LS	5,000.00	5,000.00
210	Clearing and grubbing	1.00	LS	6,500.00	6,500.00
215	Strip topsoil 8"	3,545.00	CY	4.73	16,767.85
220	Cut	8,245.00	CY	5.35	44,110.75
225	Fill	11,795.00	CY	3.50	41,282.50
230	Import	3,400.00	CY	5.70	19,380.00
235	Ponds	551.00	CY	3.50	1,928.50
240	Grading Slopes	7,490.00	SY	2.45	18,350.50
	Excavation and grading sub-total				155,320.10
BIOPONDS					
300	Biopond 2 - 6" Preforated pipe	148.00	LF	20.00	2,960.00
305	Stone	151.00	T	35.00	5,285.00
310	Filter Fabric	2,329.00	SF	1.50	3,493.50
315	Bio Media	259.00	CY	41.00	10,619.00
320	Biopond 3 - 6" Preforated pipe	52.00	LF	20.00	1,040.00
325	Stone	51.00	T	35.00	1,785.00
330	Filter Fabric	800.00	SF	1.50	1,200.00
335	Bio Media	89.00	CY	41.00	3,649.00
	Bioponds sub-total				30,031.50
GRAND TOTAL					205,670.80

NOTES:

EXCLUSIONS/QUALIFICATIONS:

1. No permits, inspection fees or assessments.
2. No survey layout. We provide the GPS modeling for equipment ONLY.
3. No soils or compaction testing. This will be performed by a neutral third party paid by owner/developer.

New Century

4. All cleared brush and trees will be mulched and used onsite for erosion control.
5. Initial set-up of erosion control. All erosion control maintenance will be on a time and material basis.
6. Import material pricing is based on using the pond area of Phase 2 as a borrow area
7. All stripped topsoil will be stockpiled on the site. No haul off is included.
8. We have bid this project with the assumption that we have suitable materials to construct the compacted fills. The fill material shall be within a +/- 2-5% optimum moisture range. We do not have provisions for drying or discing to get this material within this optimum moisture range. No undercutting of unsuitable/unstable soils without proper written authorization in the form of a field change order.
9. No permanent seeding, mulching, sodding or matting.
10. Rock removal, blasting or hammering is excluded
11. Delays in work caused by owner/developer paying fees, obtaining permits or any circumstances beyond the control of New Century Excavation, LLC that create demobilization/remobilization, will be charged at a rate of \$375.00 per piece of equipment each way, out and back in to the project.
12. Trench spoils to be moved by others.
13. No wet weather spring or sink hole remediation
14. No relocation of utilities
15. No concrete, curbs, sidewalks, paving or landscaping included.

CONTINGENCY ITEMS:

1. Drill and blast for mass rock cuts and borrow materials \$7.00 per cubic yard.
2. Remove, handle and recompact overblast materials \$ 4.75 per cubic yard. This will be based on 38% of the mass rock quantity.
3. Rock contingency for probing and trench blasting utilities \$30.00 per lineal foot of trench for 0-10 foot depth, \$36.00 per lineal foot for 10-14 feet, \$42.00 per lineal foot for 14-18 feet, \$48.00 per lineal foot for 18-22 feet. Probing will be \$3.00 per vertical foot.
4. Hammer cap rock and trench rock for suitable fill materials 8,000 lb. hammer \$275.00 per hour. 10,000 lb. hammer \$325.00 per hour. 12,000 lb. hammer \$425.00 per hour.
5. Spoils placement and compaction \$4.75/CY, Spoils haul off \$18.00/CY

Firing Range (Phase A)

Updated 9-8-2020

Item Description	Unit of Measure	Quantity	\$/Unit of Measure	Cost	
Mobilization	LS	1	\$1,500	\$1,650	Contractor
Clear and Grub (includes burning)	LS	1	\$31,850	\$35,035	Contractor
Mass grading (does not include Rock excavation)	LS	1	\$150,000	\$165,000	Contractor
Storm Pipe and Structures	See attached	1	\$19,641	\$21,605	PW Install
Bio retention	LS	1	\$82,000	\$90,200	Contractor
EPSC	LS	1	\$15,000	\$16,500	Contractor
Road and Parking Pad	See attached	1	\$63,260	\$69,586	PW Install
Concrete work	See attached	1	\$17,080	\$18,788	PW Install
Fence	LF	1500	\$30	\$49,500	Contractor
Gate (20')	EA	1	\$2,500	\$2,750	Contractor
6,000 SF I-beam building	LS	0	\$0	\$0	PD budget
Target mounts	LS	0	\$0	\$0	PD budget
Back Protection Wall	LS	0	\$0	\$0	PD budget
Landscaping/Buffer	LS	1	\$7,500	\$8,250	PW Install
Utilities	LS	1	\$10,000	\$11,000	Contractor
TOTAL (110%):				\$538,851	

*Does not include any building structures or back protection wall.

Fire Training/Station (Phase B)

Updated 9-8-2020

Item Description	Unit of Measure	Quantity	\$/Unit of Measure	Cost	
Mobilization	LS	1	\$1,500	\$1,500	Contractor
Clear and Grub (includes burning)	LS	1	\$18,200	\$18,200	Contractor
Mass grading (does not include Rock excavation)	LS	1	\$598,000	\$598,000	Contractor
Storm Pipe and Structures	See attached	1	\$11,120	\$11,120	PW Install
Bio retention	LS	1	\$103,000	\$103,000	Contractor
EPSC	LS	1	\$10,000	\$10,000	Contractor
Road	See attached	1	\$48,040	\$48,040	PW Install
Concrete Training Pad (400'x320')	SY	14,222	\$75	\$1,066,667	Contractor
Asphalt Training Pad (400'x320')	See attached	1	\$696,300	\$696,300	Contractor/PW
Fence	LF	0	\$30	\$0	Contractor
Gate (20')	EA	0	\$2,500	\$0	Contractor
Landscaping/Buffer	LS	1	\$7,500	\$7,500	PW Install
TOTAL (110%) w/ Concrete pad:				\$2,236,833	
TOTAL (110%) w/ Asphalt pad:				\$1,792,393	

*Includes rough grading for station C.

*Does not include fences/gates.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

March 9, 2021

DEPARTMENT: **Public Works**

AGENDA #

SUBJECT:

Police/Fire Training Facility

SUMMARY:

This is to request that the bid for Mass Grading of the Police/Fire Training Facility be awarded to Scotty's contracting due to disqualification of low bidder (incomplete bid submittal and no bid bond). Resolution to allow Mayor to sign contract for Phase I

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☒ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes: